

KIRKCALDY OF GRANGE
BY : LOUIS : A
BARBÉ



FAMOUS
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KIRKCALDY OF GRANGE

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PREFACE

THE materials available for a biography of Sir William Kirkcaldy of Grange are very unequally distributed over the two portions into which his life naturally divides itself. For the first of them, I have been obliged to content myself with the rather meagre and fragmentary information to be gathered from the old chroniclers. As regards the incidents that occur during those earlier years, I cannot, therefore, claim much novelty for my sketch. By looking closely into dates, however, I have been able to rectify some minor details, and to set forth events in their proper sequence.

On the second part of Sir William's public career, the documents preserved in the Record Office throw considerable light. Some of them have been utilised, to a certain extent, in connection with the general history of the time; but, so far as I know, no attempt has yet been made to base on them a connected narrative of this important period of Grange's life, or to draw from them an explanation of his policy. By using his own correspondence—both the letters which he wrote, and those which were addressed to him—I have endeavoured to represent the man as he wished to be understood by his contemporaries.

It has not been my special object to justify Kirkcaldy's conduct; but I am not without the hope that the impartial account of it which I have striven to give, may show how unfair it is to form an estimate of him from a consideration of the bare fact that he was, in turn, the champion of two conflicting parties.

L. A. B.

8 WILTON MANSIONS, GLASGOW,
October 1897.

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SIR WILLIAM KIRKCALDY OF
GRANGE

I. THE KIRKCALDYS

IN the parish of Kinghorn, on the northern shore of the Firth of Forth, a farm-house known as the Grange still marks the spot where, three centuries ago, the ancestral seat of the Kirkcaldys stood. The greater part of the present structure is comparatively modern; yet it bears a look of antiquity which indicates that its transformation has been gradual and fragmentary, and not wholly uninfluenced by the design of the original builder. The only date to be seen about it figures, accompanied with an illegible monogram, on the lintel of what is now an inner door, and commemorates some addition or alteration made in 1687. Two portions, however, show traces of even greater age, and may, with some plausibility, be looked upon as relics of the old baronial mansion. They are a dovecot, and a flanking tower of solid masonry. A low recess, near the foot of the latter, is traditionally believed to have been the entrance to a subterranean passage leading down to the shore, beneath the village which the cottages of the dependents of the family formed, and on the site of which a few dwellings still cluster together. That, in the days when the prosperity of the Lairds of Grange was at its height, this village was of some size and importance, may be inferred from the fact that it possessed a chapel of its own, dedicated to St Mary, and used as a burial-place for the family.

The Kirkcaldys, who took their territorial appellation from their estate of Grange, and who probably derived their name from the ancient town near which that baronial seat was situated, were amongst the oldest and most influential families in the county of Fife. As early as the thirteenth century, Sir William de Kirkcaldy is mentioned amongst the nobles on whom the fortune of war imposed temporary submission to Edward I., and who were compelled solemnly to take the oath of allegiance to him, on the Gospels, in presence of his Commissioners. In 1440, the name of Sir George de

Kirkcaldy appears in a charter which made over to him one half of the lands of Seafield and of Tyrie.

About the middle of the sixteenth century, the family of Kirkcaldy was represented by Sir James, who, having married Janet, daughter of his neighbour Sir John Melville of Raith, was introduced by his father-in-law to the court and service of King James V. He was first appointed to be a simple Gentleman of the Privy Chamber, but was soon afterwards advanced to the more important and responsible post of Treasurer. The confidence and favour with which he was honoured by his royal master excited the jealousy and the fear of Cardinal Beaton, to whom he was opposed in religion, as an adherent to the doctrines of the Reformation, and in politics, as an ardent advocate of an alliance with England. All the efforts of his rival to bring about his fall proved ineffectual as long as the King lived. Under the regency of the Earl of Arran, however, the influence of the Churchman prevailed; and the Treasurer was set aside to make room for John Hamilton, abbot of Paisley.

Contemporary chronicles testify to the important part played by Sir James Kirkcaldy during the troubled days of his tenure of office. He is described by Melville as 'a stout bold man, who always offered by single combat, and at the point of the sword, to maintain what he spoke.' That, in those turbulent times, the fiery and rather overbearing temper of which these words are only a veiled and too partial description, should have brought trouble upon him, was but a natural consequence; and it is not surprising to learn from the evidence of a remission granted him in 1538, that respect for law and order did not always guide his conduct. A few years later, the energy of his character showed itself in the prompt and decisive action which he took under circumstances as critical for the State as they were dangerous to his liberty, and even to his life. It was he who, with Sir Thomas Erskine and Sir James Learmonth, on the authority of a verbal message brought to him by a youth, and with the King's ring for his sole warrant, ordered the arrest of Sir James Hamilton, the powerful and notorious Bastard of Arran, lodged him in the Castle, brought him to immediate trial on a charge of being in secret intelligence with the banished Earl of Angus, the Douglasses, and other declared enemies of the realm, and of having formed a plot to break into the King's chamber to slay him, and sent him to a traitor's doom before influence could be brought to bear upon the fickle monarch in favour of his former favourite.

It was to the Treasurer that the delicate negotiations between James V. and his uncle Henry VIII. were entrusted; and it was owing to his influence that, whilst the King of England was at Pomfret, during his northern progress, 'one of the King of Scots' most secret councillors' appeared at the Court, to arrange a meeting between the sovereigns. Unfortunately for Sir James's scheme, his opponents discovered it at the critical moment. For the purpose of bringing him into discredit, they accused him of favouring the new creed, as in truth he did, though he had not yet made public profession of it; and they put his name on a list of noblemen whom they urged the King to burn as heretics. But inconstant though he was, James was not so easily to be turned against his Treasurer, for he believed him to be loyal, trustworthy, and thoroughly devoted to his sovereign's interests. At their next meeting, he showed Sir James the black roll, and jestingly, or perhaps only half jestingly, asked him what objection he could raise to the Churchmen's suggestions. Having thus been invited to plead his cause, Kirkcaldy availed himself to the utmost of the opportunity which the King's good-nature afforded him. Not only did he draw a glowing picture of the advantages which would accrue to both sovereign and people from an alliance with England, and warningly point out the danger of rejecting King Henry's friendly advances, he also denounced the selfish policy of his opponents, represented the gross abuses of the Roman Church, inveighed against the ungodly and scandalous lives of the prelates, and advised the King, not indeed to send the Cardinal and his bishops to the stake, as they wished to do by their enemies, but, if he would be well and rich, to take home again to the profit of the Crown all vacant benefices, by little and little, as they fell by the death of each prelate. The proposal to turn the tables on the Churchmen, besides holding out a promise of much-needed pecuniary help, contained an element of grim humour, which, for the time at least, caught the King's fancy; and his resolve to adopt it was so far sincere, that it led to a characteristic scene at his next conference with the Cardinal and his prelates at Holyrood. Gradually working himself into a passion as he rebuked them for their treacherous and cruel advice, he disconcerted them by his indignant words and impetuous threats of violence. 'Wherefore,' he asked, 'gave my predecessors so many lands and rents to the Kirk? Was it to maintain hawks, dogs, and concubines, to a number of idle priests? Pack, you javells! Get you to your charges, and reform your own lives; and be not instruments of discord betwixt my nobility and me, or

else, I vow to God, I shall reform you, not as the King of Denmark doth, by imprisonment, nor yet as the King of England doth, by hanging and heading, but by sharper punishments; if ever I hear such a motion made by you again, I shall stick you with this whingar!’ And as he drew his dagger to emphasize his meaning, the terrified priests, more careful of their personal safety than of their dignity, precipitately fled from his presence.

This temporary check did not discourage the Treasurer’s opponents. As a proof that they, too, were actuated by disinterested and patriotic motives, they offered to make the King an annual grant of fifty thousand crowns, out of the rents of the Church, for the maintenance of hired soldiers, in case King Henry should levy war against him because of his refusal to keep his promise with regard to a personal interview at York. Even this bribe might have failed to win James over to their views but for a circumstance which deprived him for a while of the counsel and support of the Treasurer. He had lately sanctioned the betrothal of Helen Leslie, heiress of Kellie, who was a ward of the Crown, to Kirkcaldy’s second son; and Sir James found it necessary to go over into Angus on business connected with this advantageous matrimonial alliance. His rivals did not neglect to make the most of the opportunity which his absence from Court afforded. They renewed the charge of heresy against him, basing it on the fact that he always carried an English version of the New Testament about with him in his pocket; they complained of the haughtiness and arrogance which had characterized his conduct ever since he thought himself secure in the King’s favour; they denounced his greed, of which his anxiety to marry his son to an heiress with a dowry of twenty thousand pounds was adduced as a proof; and they questioned his fitness, in point of honesty, for the responsible position to which he had been raised.

Seeing that James was wholly unmoved by accusations which he knew to be prompted by malice and envy, and which he met by unhesitatingly declaring his esteem and affection for Kirkcaldy, to whom, if he had not done it already, he would willingly entrust the fortune of his ward, they insidiously changed their tactics, and directed their attack against what they well knew to be the weakest point in the dissolute monarch’s character. ‘Sir,’ said the Prior of Pittenweem, himself a notorious and unscrupulous libertine, ‘the heiress of Kellie is a lusty, fair lass, and I dare pledge my life that, if your Majesty will send for her presently, the Treasurer shall refuse to send her to you.’ On this point, too, James asserted his absolute confidence

in Kirkcaldy's fidelity and devotedness; nevertheless he so far yielded to the tempters as to consent to their putting him to the test. The plan devised by them was, that a letter should be written and entrusted to the Prior of Pittenweem, who was to deliver it in person, and, if the Treasurer obeyed the order contained in it, to bring Helen Leslie to the King.

The event was precisely such as had been anticipated when choice was made of an agent who, to his evil reputation joined the further qualification of being at deadly enmity with the Laird of Grange. Sir James refused to entrust his son's intended bride to the unprincipled messenger, at whom he did not hesitate to cast the plain and vigorous epithets which his flagrant licentiousness deserved, and which the blunt and unconventional language of the time justified. Rejoicing in the failure of his mission and the success of his scheme, the Prior hastened back to Edinburgh. On hearing his carefully and craftily framed report of what had taken place, the King flew into a violent passion, and in the heat of it, consented to the issue of a warrant for the arrest of Sir James as soon as he returned.

When the Treasurer, who had no difficulty in penetrating the designs of his enemies, and who consequently followed close on the Prior's heels, presented himself at Holyrood, he was refused admittance. Disregarding the prohibition, however, he made his way to the presence of the King, who was just then at supper; but only to be received with ominous silence by the angry monarch. This did not awe him into a passive submission, which would have been interpreted into a confession of guilt. Respectfully, yet firmly, addressing his sovereign, he begged to be told what offence he had committed, and why he had suddenly been deprived of the favour with which he had so lately been honoured. The reply was such as he expected it would be. 'Why,' asked James, 'why did you refuse to send me the maiden whom I wrote for, and give spiteful language to him I sent for her?' Put in this form, the charge was easy to meet. Kirkcaldy dared anyone present to accuse him of disobedience to the King's command. He had, he admitted, declined to give Helen Leslie into the Prior's keeping; but his refusal was justified by the messenger's too well-known character—a character which he did not veil his words to denounce. Moreover, as he had stated at the time, he considered himself the fittest person to accompany the young lady to Court; and, in proof that he had never been unwilling to yield compliance to the King's wishes, he was able to answer in the affirmative when asked whether he had brought the gentlewoman with him.

James understood from his Treasurer's undaunted manner, no less than from his straightforward explanation, that a faithful servant had been falsely accused and unjustly condemned; but if he could recall the warrant which had been extorted from him, he could not prevent the consequences of a more momentous step which he had also been induced to take. Beaton and his party had prevailed on him to adopt their policy, and decisively to reject the proffered alliance with England—a slight to Henry, which that imperious monarch was not slow to resent, and which was the immediate cause of one of the most disastrous and humiliating defeats ever inflicted on Scotland.

Once again Sir James Kirkcaldy figures in connection with the sovereign whom his advice, had it not been so petulantly neglected, might have saved from the closing disaster of his career. After the ill-fated battle of Solway Moss, when King James wandered aimlessly and hopelessly into Fifeshire, ashamed to look any man in the face, it was to Halyards, one of the Laird of Grange's estates, that he came for rest and shelter. The Treasurer was absent at the time, but the unfortunate and broken-hearted monarch was received with loyal affection by Lady Janet, an 'auncient and godlie matron,' and waited upon during his brief stay by her eldest son, William Kirkcaldy. The youth was destined to behold many a sorrowful scene in after years, yet few so pathetic and so impressive as that of which he was a silent spectator on the memorable evening of the King's stay. At supper, James sat pensive and dejected, unable to realise the full extent of the disaster that had fallen upon him, and inwardly repeating his 'continuall regrave': 'Oh! Oh! Fled Oliver? Is Oliver taken? Oh! Fled Oliver?' Lady Grange, in a kindly attempt to comfort him, begged him to take the work of God in good part. But his incoherent answer showed how little he had understood her meaning. 'My portion of this world is short,' he said, 'for I will not be with you fifteen days.'

To break the distressing silence which followed the gloomy reply, one of the attendants inquired where his Majesty wished preparation to be made for celebrating Christmas, which was near at hand. With a 'disdainful countenance,' as though the matter were one with which he had no concern, 'I cannot tell,' he answered, 'choose you the place. But this I can tell you; before Christmas you will be masterless, and the realm without a king.' And he seemed so convinced of the truth of his prediction that, although there

was no sign of approaching death about him, none dared contradict him for fear of his anger.

Next day the wretched King left Halyards, accompanied by young Kirkcaldy. The Treasurer himself joined them a little later; and both father and son were amongst the attendants who stood about the dying monarch in the palace of Falkland, on the 13th of December 1542, and vainly strove to soothe the mighty grief which found expression in the one despairing cry: 'Fie! fie! Is Oliver fled—and taken? Then all is lost—all is lost!'

II. THE TRAGEDY AT ST ANDREWS

WILLIAM KIRKCALDY, who makes his first appearance in the pages of history as the attendant of James V. during the brief interval between the shameful rout of Solway Moss and the last melancholy scene at Falkland, is usually represented as being but a child at the time. No record indicates the year of his birth; but it is assumed to have taken place about 1530. That, however, does not seem to tally with the known dates of several events in which he and other members of his family bore a part.

In the first place, if it be not impossible, it may be looked upon as at least improbable, that a lad of twelve was given to James as an attendant, under the peculiar circumstances of his visit to Halyards. It is still less likely that, whether the will attributed to James V. be genuine, or fraudulent, as was afterwards maintained, such a mere child should figure amongst the witnesses to it, and should, as the document, under any circumstances, fully establishes, have been allowed to be present at the King's last moments. Nor does it agree with the description of Lady Grange as 'an ancient matron,' that the eldest of her nine children should have been so young at the time.

As we have already seen, it is mentioned by Melville that, as early as 1542, a younger brother, James Kirkcaldy, had obtained 'the ward and marriage of Kellie in Angus,' and that his father, the Treasurer, had 'gone there to take possession thereof' whilst the negotiations with Henry VIII. were still pending. The difficulty of believing that the betrothal of James Kirkcaldy—if, indeed, the passage do not actually refer, as some have thought, to his marriage—took place when he was at most but eleven years old, naturally suggests doubts as to the accuracy of the date assigned to his elder brother's birth. Such early matrimonial engagements were not, it is true, unknown, or even uncommon, in those days; but that the intended

bride, at least, was no longer in her girlhood may fairly be inferred from the details of the discreditable plot against the Treasurer, in which the Prior of Pittenweem made her play a part.

All that can be ascertained with regard to Kirkcaldy's education is supplied by a letter, in which Randolph, the English agent, writing to him, makes allusion to their early acquaintance, as students, in France, at the time that the University of Paris was presided over by the Cardinal of Lorraine. As Randolph was born in 1523, he would have been Kirkcaldy's senior by seven years, a disparity of age which still further diminishes the plausibility of the theory that the latter was born in 1530. Yet another objection to it may be gathered from a passage in *Master Randolph's Fantasy*, a poem recording the events of what is known as the Round About Raid, in 1566. Sir William Kirkcaldy is mentioned in it, amongst the rebellious nobles; and the special reference to his 'horye head' would unquestionably seem to imply that he was more than thirty-six years old at the time. Finally, it is known that Kirkcaldy's only daughter, Janet, was married to the Laird of St Colme's Inch at the beginning of the year 1561; and it is assuredly not easy to make that fact accord with the assumed date of her father's birth.

Such are the difficulties in the way of accepting Grant's opinion, that Kirkcaldy's birth 'probably took place about the year 1530,' or Froude's later statement that 'the Treasurer's eldest son' was 'a boy of about seventeen,' in the year 1546. None of the arguments adduced may be convincing if considered singly; but, when all are taken together, they assume sufficient weight to justify the supposition that Kirkcaldy was at least as old as his fellow-student, Thomas Randolph; that he was a young man of over twenty when he accompanied his King from Halyards to Falkland; and that he was, not a lad of sixteen or seventeen, but a man approaching his thirtieth year at the time of the important event which has now to be chronicled as the next in his career, and in which he was destined to play important parts that would scarcely have been entrusted to a 'boy.'

It is possibly owing to his absence on the Continent, for the prosecution of his studies, that, after James V.'s death, young Kirkcaldy's name disappears for a time from the chronicles of the age. When mention of him is again made, it is in connection with an event which, even in those troubled days, when men were but too familiar with deeds of violence, sent a thrill of terror through the land, and which still stands out in terrible

prominence amongst the most striking examples of the lawlessness of our forefathers, of the contempt which they displayed for human life in the furtherance of their political schemes, and of the disregard for the fundamental precepts of morality which, by a strange inconsistency, they were able to reconcile with an earnest zeal for religion. It is as one of the assassins of Cardinal Beaton that William Kirkcaldy first takes an active part in the political and religious struggle in which he was destined to figure so conspicuously.

By what means Beaton had risen to power, with what uncompromising fixity of purpose, and in what cause he wielded it, there is no necessity for recalling. Neither would it serve any good purpose to re-open the controversy which has raged about his memory. Even if it were possible to attempt an impartial and unbiased estimate of his work and character without being confronted at the outset by the difficulty of obtaining any evidence, either for impeachment or for defence, but that of witnesses whose avowed partisanship at once marks them as untrustworthy, there would be but little prospect of a definitive settlement of the vexed question so long as one side endorses the sentiments of him who wrote 'merrily' of the 'godly fact' of his murder, whilst another holds him up to veneration as a martyr.

In 1546, the Cardinal had attained a position of almost absolute authority in the kingdom; but he had also incurred the hatred of powerful and determined men, by whom his death was resolved upon, and who were only waiting for a favourable opportunity to carry out their desperate designs. Foremost amongst them were the Kirkcaldys. Whatever may have been the motives by which the other conspirators were swayed, it seems impossible to doubt that the late Treasurer and his family were actuated by a desire to be revenged, rather upon the Statesman who had thwarted their policy than upon the Churchman who opposed their religion. As early as 1544, long before the execution of Wishart had occurred to lend a semblance of wild justice to the plot against the Cardinal, it had been reported by the Earl of Hertford to Henry VIII., that 'the Larde of Grange, late Thesaurer of Scotland, wolde attempt eyther to apprehend or slee him at some time when he sholde goe through the Fyfeland, and, in case he colde so apprehend him, wolde delyver him unto His Majesty.'

Owing to various circumstances, amongst which, however, cannot be included any special precautions taken by the intended victim, who,

according to his enemies, had reached that point of infatuated security which fatally precedes destruction, the 'manie purposes devysed how to cutt off' Beaton, all failed till Friday the 28th of May 1546. On the evening of that day, Norman Lesley, Master of Rothes, with five companions, came to St Andrews, which William Kirkcaldy had entered before him. John Lesley, who was better known, and whose very presence would have caused alarm, did not venture to join them until darkness had set in. Early on the Saturday morning, the conspirators proceeded, in small parties, to the abbey churchyard, in close proximity to Beaton's castle. As soon as the gates of the stronghold were opened and the drawbridge let down, for the purpose of admitting workmen with the materials necessary for carrying on the new works undertaken by the prelate, William Kirkcaldy, with six accomplices, made his appearance, and entered into conversation with the unsuspecting porter, inquiring of him whether the Cardinal were yet awake, whilst the others pretended to be engrossed in watching the masons at their work. During the short dialogue which followed, the Master of Rothes and three other conspirators came forward. As it was important that no alarm should yet be raised, they passed on without appearing to notice Kirkcaldy or his party, and, with assumed carelessness, took up their position in the middle of the courtyard. Immediately after this, a third band of conspirators, amongst whom was the impetuous Lesley, hastily made for the gate. Startled at their appearance—for, more careless or more eager than those who had preceded them, they pressed forward 'somewhat rudelie'—and recognizing a man who was known to have sworn the death of the Cardinal, the porter ran to the chain, and endeavoured to raise the drawbridge. In another moment he would have succeeded in keeping out the fiercest of the conspirators, but, as the bridge was slowly rising, Lesley cleared the gap with one bold spring, and leaped into the courtyard. As a prelude to the bloody work, the porter was felled to the ground, the keys were snatched from him, and the senseless body was cast into the moat.

This first deed of violence and murder is, by Froude, attributed to William Kirkcaldy. His assertion, however, is only deduced from the description given by the chroniclers of the respective positions taken up by the conspirators, and not actually based on their actual words. That Kirkcaldy, who, but a few moments earlier, was in conversation with the porter, had a better opportunity for attacking the man than any of the accomplices within the gates, scarcely admits of denial. It may even be

granted that, being a willing party to the desperate enterprise of killing the Cardinal, he would have felt but little hesitation in preventing the gate-keeper from marring the whole plot. On the other hand, however, it is quite as natural to suppose, with Grant, that Lesley, in his fierce rush, made directly for the warder, and that it was by him that the unfortunate man's 'heid was brokin' as he 'maid him for defence.' The point, it may be thought, is but a trifling one. Yet, considering the bloodless part taken by Kirkcaldy in the subsequent proceedings, his biographer may be allowed to dwell on it for a moment, not, indeed, with the intention of showing him to have been less guilty, morally, than any of his associates, but rather for the purpose of clearing him from the charge of having, with his own hand, shed a fellow-creature's blood on that terrible day.

Though numbering but sixteen, the conspirators were resolute and armed; and, it was an easy task for them to overawe the peaceful workmen who, though they had run forward to ascertain the cause of the tumult, manifested no inclination to interfere on either side, but quietly allowed themselves to be 'put forth at the wicket gate.' As soon as this was accomplished, William Kirkcaldy made for the postern, where he took up his position in order to prevent the 'fox' from escaping. His confederates, in the meantime, entered the Castle, and proceeding to the apartments of the gentlemen of the household, of whom there were no less than fifty, obliged them, by threats of immediate death if they offered any resistance, to depart as peacefully as the workmen had done.

By this time, the conspirators, feeling themselves secure, had thrown away all restraint; and their shouts of exultation, as they ran from room to room, awakened the Cardinal who, as it was only 'betwixt four and fyve hours,' was still in bed when his castle was invaded. Opening his window to inquire the cause of the unwonted noise, he was informed that Norman Lesley had taken possession of the place. His first endeavour was to seek safety in flight. He ran towards the postern at which Kirkcaldy was stationed; but perceiving the way to be barred, he at once returned to his apartments, seized his two-handed sword, and ordered his page to barricade the door with 'kists and other impediments.' Scarcely had the furniture been piled up when John Lesley, with James Melville of Carnbee and Peter Carmichael, arrived and demanded to be let in. 'Who calls?' asked Beaton.—'My name is Lesley,' was the reply.—'Is that Norman?' again inquired the Cardinal.—'Nay,' he was told, 'my name is John.'—'I will have

Norman,' he continued, 'for he is my friend.'—'Content yourself with such as are here,' said the implacable Lesley, 'for other shall ye get none.'

There was a pause, during which Beaton hastily thrust a box of gold under a heap of coals that was kept in a hidden recess of the room, whilst the assailants were fruitlessly endeavouring to burst the massive door. Resuming the interrupted parley, the Cardinal called out, 'Will ye save my life?'—It was John Lesley that replied: 'It may be that we will.'—'Nay,' returned Beaton, hesitating to trust so ambiguous a promise, 'swear unto me, by God's wounds, and I will open unto you.'—'Then,' cried Lesley, 'that which was said is unsaid,' and he ordered live coals to be brought for the purpose of burning down the wooden barricade. Such, at least, is the account given by Knox; but Lindsay of Pitscottie only says that the question from within was, 'Will ye slay me?' and the answer from without an unconditional 'No.' Both agree that, at this moment, the door was thrown open—a circumstance which seems to point to the accuracy of the latter's narrative.

The assassins rushed in, whilst the doomed Cardinal, sinking into a chair, exclaimed, 'I am a priest! I am a priest! Ye will not slay me!' But he appealed to men who knew no mercy. 'According to his former vows,' John Lesley struck him repeatedly with his whingar, and was seconded by Carmichael in the work of death. But Melville, 'a man of nature most gentle and most modest'—such is Knox's account of him—seeing that they were both under the influence of strong passion, thrust them aside rebukingly. 'This work and judgment of God, although it be secret,' he said, 'ought to be done with greater gravity.' Then, drawing his sword, and turning the point of it towards the terror-stricken Cardinal, he spoke the stern words: 'Repent thee of thy former wicked life, but especially of the shedding of the blood of that notable servant of God, Mr George Wishart, which, albeit the flame of fire hath consumed it before men, yet crieth it for vengeance upon thee, and we from God are sent to revenge it. For here, before my God I protest, that neither the hatred of thy person, the love of thy riches, nor the fear of any trouble thou couldst have wrought to me in particular, moved or moveth me to strike at thee, but only because thou hast been, and remainest, an obstinate enemy against Christ Jesus and his Holy Gospel.' Then, with his hunting-knife, he ran the shrinking victim again and again through the body. Mangled and bathed in his life-blood, the Cardinal sank from his chair to the floor, his dying lips repeating the protest which had only excited

his murderers to greater ferocity: 'I am a priest! I am a priest! Fie, fie! All is gone!'

III. THE CONSPIRATORS AT BAY

THE men who had so deliberately planned and so boldly perpetrated the murder of Cardinal Beaton, were fully conscious of the gravity of the situation in which they now found themselves. They knew that the crime which they had committed in slaying the Chancellor of the Realm bore with it the guilt of high treason, and that, if they refused to give themselves up, they would be declared rebels, and dealt with as such. But they had gone too far to retreat. If safety were to be secured, it could only be by union amongst themselves; and instead of separating, to wander as outlaws through the country or to shut themselves up singly in their fortalices, they determined to maintain themselves in the stronghold which they had captured. Its very position seemed to suggest and to justify such a course. Situated on a rock-bound headland a little to the north of the city of St Andrews, the imposing castle which Bishop Roger, son of the Earl of Leicester, ‘founded and gart bigged be,’ in the year 1200, was guarded on two sides by the sea, and, whilst practically inaccessible to a hostile fleet, might, with comparative ease, keep up communication with a friendly force, and receive supplies from it. A deep moat and strongly fortified walls protected it from the attack of a land army, and had more than once before enabled it to hold out against superior numbers. Food and ammunition had been abundantly provided by Beaton himself, as a precaution against a possible attempt on the part of the English; and, within the walls which had been known to give accommodation to guests whose mounted attendants alone numbered four hundred and twenty, there was ample room for quartering the partisans by whom they expected to be joined.

To the advantages which the natural position and elaborate defences of the fortress afforded, chance added another, which, though of a very different kind, might be depended upon to operate strongly in favour of the conspirators, and which may, very probably, have exercised a not

unappreciable influence upon their decision. It happened that, at the time when Cardinal Beaton's castle was seized upon, James Hamilton, the Earl of Arran's eldest son, was residing with him. Instead of being sent away, as were the other gentlemen of the household, he was retained by the captors as a hostage. It was thought that consideration for his son's safety would hamper the Regent's action; and not only prevent him from having recourse to measures of extreme severity in the course of the unavoidable siege, but also affect the conditions to be granted, if the garrison were eventually forced to surrender.

Nor was that all. A scheme of Arran's own, for the marriage of his heir with the young Queen of Scots, was thought to be at the bottom of his opposition to the alliance by which the King of England hoped to unite the two Crowns. In the eyes of Henry, James Hamilton was a rival to his own son Edward; and they who had it in their power to hand over the youth to his safe keeping, possessed a further claim upon the protection and assistance which his share in the plot for Beaton's destruction led them to expect from him. Under the special circumstances of the case, there was, therefore, as much wisdom as daring in what might, at first sight, appear the desperate determination of holding the Castle.

The first to throw in his lot with the sixteen, was one who had not, it is true, figured so prominently and actively as they in the slaughter of the Cardinal, but who was too much implicated in their action, and could too easily be proved to be in actual fact their accomplice, to expect anything but the severest treatment at the hands of the avengers. Before the day was out, Sir James Kirkcaldy, with his sons and brothers, arrived in St Andrews, and was admitted into the Castle. Some more of the Melvilles followed soon after; and by gradual accessions to its strength, as the news of what had been done at St Andrews spread through the country, the rebel garrison increased to about one hundred and fifty fighting men. The names of those connected with the murder either as 'first interprisers,' or as 'part takers, maintainers, defenders, victuallers, assisters, and counsel givers,' numbered thirty-five. They were set forth in the proclamation, issued thirteen days after the death of Beaton, which was publicly read, at the Market Cross of Cupar, by John Paterson, Carrick Pursuivant, and which summoned the persons mentioned in it to appear within six days at the bar of Parliament, under pain of being declared rebels. Amongst them were eight Kirkcaldys and four Melvilles. That the majority of those who had taken refuge at St

Andrews, because they ‘suspected themselves to be borne at evil will,’ were not mistaken as to the sentiments entertained towards them by the party of which the Cardinal had been the head, was proved by ‘letters and memorials’ which were discovered amongst Beaton’s papers, and which disclosed a project, formed by him, and sanctioned by the Council, for their treacherous and summary removal, by death or imprisonment, on the Monday following.

Amongst others, whom sympathy with its garrison drew to St Andrews, mention is made by the chroniclers of John Knox and his three pupils—George and Francis Douglas, and Alexander Cockburn—of John Rough, a Reformed Preacher, whom Bonner subsequently sent to the stake, as a heretic; of Henry Balneaves of Halhill, who had occupied the position of Clerk-Treasurer under Sir James Kirkcaldy; and of Sir David Lindsay, who found the subject of a poem in the tragedy that had been enacted in the Castle, and gave expression to the sentiments of the less fanatical section of his party in the well-known lines:—

‘As for the Cardinal, I grant
He was the man we well might want;
God will forgive it soon.
But of a truth, the sooth to say,
Although the loon be well away,
The deed was foully done.’

The measures taken by the Regent with a view to the punishment of the rebels did not bear evidence of much zeal or energy on his part. Nearly three months had elapsed since the murder of Beaton when, on the 21st of August, a proclamation was issued, calling upon the vassals of the Crown to assemble within a week for the purpose of forcing the garrison of St Andrews into submission. But, even that does not appear to have been followed by any very strenuous exertions. A body of troops was, it is true, sent against the rebels; but the military operations must have been conducted in a very inadequate manner, for, at Martinmas, according to Pitscottie, ‘all men cryed out and desired the Governour to punisch sick injuries done within the realme; and also the Queine perswadit the Governour to put remeid heirto.’

It was mainly by the Catholic clergy that pressure was brought to bear upon Arran. By voluntarily undertaking to contribute £2000 monthly towards the support of the royal troops, as long as the siege of the Castle

should last, the prelates gave practical proof of their determination not to allow the assassins of their religious and political leader, the Cardinal, to escape with impunity. Then, at length, 'an army' marched into Fifeshire, to invest the stronghold in real earnest; and 'tua gritt cannonees, to wit Cruik Mow and the Deafe Meg,' were brought to bear upon it. The massive defences, it is true, suffered but slight injury from the lead-cased stone shot which the primitive artillery of the time discharged against them; but the mere fact of its being cut off from all communication on the land-side gradually began to tell on the garrison; and the leaders found themselves obliged to make urgent appeal for assistance to their friend and protector, Henry VIII. As early as the beginning of September, in consequence of the proclamation which the Regent had issued shortly before, and which indicated the commencement of hostilities, they had sent letters to the English Council; and on the seventeenth of that month the King was advised to send 'at least some small force, which should not onely appeare a comfort to them, but be a defence against the Scottis on the sees.' The immediate effect of this recommendation was the dispatch of eight ships, with the 'Maister of Wark of Ingland,' whose object, according to the Diurnal of Occurrents, was 'to spy' the Castle. It may be doubted whether this first squadron brought any material assistance to the besieged; for, when it returned, about the end of October, 'William Kirkcaldy of Grange, younger, past to Ingland, for supplie,' with it, accompanied by Henry Balneaves of Halhill and John Lesley.

On their arrival in London, the envoys lost no time in informing Henry of the object of their mission. Nor does the King, on his side, appear to have acted less expeditiously. Before the end of the month, he wrote to Admiral Tyrrell, informing him that he had 'been moved to send forth presently to the sees the number of six ships furnished for the wars, that is to say, the *Pauncey*, the *Mynyon*, the *Hart*, the *Jennet*, the *Dragon*, and the *Lyon*,' and had appointed him to the command. According to further instructions, Tyrrell, on reaching the Firth, was to land parties at unprotected points on either shore, 'to spoil and burn small villages and houses,' and thus, not only strike terror into the population, but also create a diversion in favour of the Castle, from the siege of which forces would probably be withdrawn, and sent to check the progress of the English raiders. The Master of Rothes and the Laird of Grange were to be told that his Majesty was 'sorry to understand their care and trouble for their defence,' and that 'conforme to

the request of Mr Kirkcaldy to helpe them with some vitail and munition,' one of the six ships was laden with supplies, which were to be handed over in such quantity as the Admiral might judge necessary.

Another paragraph in the same letter explains one of the reasons of the King's liberality, and shows on what condition Kirkcaldy had been able to secure help from England. 'And, because the sayd Mr Kirkcaldy, who is sone and heire to the Lard of Grange aforesaid, at his late beeing with us, signified by his letters, on the behalf of the Master of Rothes and his father, that for a token of their service and goode wille to us, they wold delyver in hostage the sonne of the Erle of Arran, ye shal cause request to be made, in our name, for him, setting forth that besides the performance therby of the promesse of the sayd Kirkcaldy, and the confirmation of our credit and estimation of them, they shal doo a thing so much to our contentation, as shal give us occasion the nerer to stykk unto them, and temploye our force to the repulse of their enemyes the more willingly.'

Whilst Henry Balneaves and John Lesley remained in England 'for forming and perfyting all contracts betwixt the defenders and King Henrie,' Kirkcaldy returned to St Andrews. The besieged had not yet been able to make that 'plaine passage by an yron gate, through the east wall to the sea, which greetly releevd them' at a later stage of the blockade; and, when the English ships arrived, there was consequently some difficulty in effecting communication with them. Ultimately, however, Kirkcaldy succeeded in landing with the supplies; but it was 'not without some losse of men.'

On the side of the besiegers, Kirkcaldy's departure which, according to the Diurnal of Occurrents, took place on the 26th of October, had filliped the leaders into a display of energy. On the Tuesday following it, the Governor and the Lords with him, anxious to put an end to the siege before the arrival of supplies from England, sent to offer the rebels the restitution of their lands, heritages, tacks, benefices and moveables, on condition that they should surrender the Castle and give up young Hamilton. The proposal was met with a curt refusal. Three days later preparation was made for a vigorous attack; and four cannons, a battering culverin, two smaller culverins, and some double falcons were sent to the west trenches for the purpose of battering the sea-tower that stood at the north-west, and also the west wall. Then, when all this artillery had been brought into position, the cannonade began from two sides at once. On the first day it lasted without cessation from seven in the morning till four in the afternoon. The fire was

unusually effective. That from the new battery brought down all the battlements and the top-storey of the sea-tower, and the whole roof of the apartments overlooking the shore. On the land-side the feathered bolts shot from the balistæ at the hall and chapel, broke in the roof, and drove those of the garrison who were stationed at that point to the safer shelter of the inner walls. Nor were the besieged inactive. Pointing their own cannon at the attacking artillery they retaliated by killing 'John Borthwick, principal gunner, and sundry of the soldiers and men of war,' and by wounding the Earl of Argyle's master-gunner so seriously that he was reported to be still bedfast nearly two months later. On the morrow the Governor's artillery again opened its fire, and kept it up as vigorously, though not more murderously, than the day before. Further damage was done to the high parts and roof, but the garrison once more escaped serious injury. The assailants were less fortunate, for they again lost a gunner, James Law, and three other men with him. Such 'great slaughter made upon their gunners' disheartened the leaders of the royal troops; and tacitly recognising their inability to take the Castle by open force, 'they gave up further shooting with great artillery, and continued the siege with blockading and small fire arms.'

The provisions which Kirkcaldy had obtained and brought from England afforded but brief relief to the beleaguered garrison. From the 22nd of November to the 10th of December there was no flesh-meat within the Castle; and the other supplies gradually dwindled down to ten boles of meal and five puncheons of wine. But the desperate defenders showed no sign of wavering. As a result of their great watching and waking, of the want of flesh, and of the bad quality of the fish which had become their chief diet, Walter Melville—one of the leaders—and twenty men were stricken with a deadly sickness; but this only moved their comrades to use greater exertions and, in the words of one of them, daily to make slaughter of their enemies. Nor were their efforts limited to that. Whilst some were fighting others were working at the construction of a postern door, and of a trench leading from it to a rock lying off the kitchen tower. When this was at length completed two men were able to set out nightly in a small boat, and, landing at Tentsmuir, to obtain a scant supply of flesh and flour from a secret friend, the Laird of Montquhanny.

About the middle of December the besieged were reduced to such extremities that a well-conducted and vigorous attack could scarcely have

failed to give Arran possession of the Castle. Fortunately for them, however, he was not fully aware of their desperate condition, whilst, on the other hand, the circumstances in which he was himself placed made him long for the termination of the protracted siege. A violent pestilence that broke out in St Andrews and threatened to spread through the beleaguering army, gave him a plausible excuse for opening negotiations without appearing to be driven to it either by the obstinacy of the rebels or by the repeated protests addressed to him and his Council by Henry VIII. on their behalf.

On the 17th of December, Lyon Herald approached the walls and sounded a parley. That no undue haste on their part should reveal how anxious they themselves were for a cessation of hostilities, the leaders did not condescend to notice him, and he was obliged to return to the Governor and the Council with the report that he could not obtain speech of them. Later on in the day a second attempt was more successful; and consent was obtained to an interview between the rebel leaders and two envoys from the camp—the Justice-Clerk and the Provost of Aberdeen. The assumed indifference of those within the Castle caused the negotiations to drag on slowly through several days; and, at the very last moment, the demand that William Kirkcaldy should be handed over as a hostage, was on the point of making them fall through altogether. Finally, however, on the 22nd of December, a truce was agreed upon. The conditions were that the garrison should retain the Castle until the Regent obtained from the Pope absolution for all who had been concerned in the murder of Cardinal Beaton; that they, their friends, families, servants, and others pertaining to them, should never be pursued by law, but should enjoy all the privileges, spiritual and temporal, of which they had been in possession before the murder, ‘even as if it had never beene committed;’ and that, whilst James Hamilton was still kept as a hostage on the one side, David and James Kirkcaldy should be delivered to the Regent on the other, as pledges to insure the surrender of the Castle when the papal absolution arrived.

As soon as the royal army had been withdrawn, those who had held the Castle so valiantly came forth in great exultation. The lawless conduct of some of them was wholly unworthy of the brave men they had shown themselves to be. ‘They became so proud,’ says Pitscottie, ‘that no man might live besyd thame, for they would isch out and ryd throche the countrie quhen they pleased, and sumtymes raise fyre and burne, and

vtherwhylles ravisch vomen, and vse thair bodie as they pleased. And some godlie men in the castell, that thought not thair lyffe nor conversatioun honest, reproved them sharplie, thairfoir, saying, if they left not aff, it could not be bot God would punisch thame for the same quhen they luiket least for it. Notwithstanding of thir admonitiounes, they continwed still in thair former doingis the space of thrie quarteris of are yeir thaireftir.'

As might almost be inferred from the conditions of the armistice, neither besiegers nor besieged really looked upon it as a decisive step towards the termination of the struggle. The object on either side was merely to gain time and to make preparation for greater efforts. Scarcely was the truce signed when the rebel leaders wrote to their agent, Balneaves, instructing him 'to solicit the King's Majesty to write to the Emperor, to write to the Pope for the stopping and hindering' of their absolution. He was further to impress on Henry the absolute need in which they stood of 'support and aid of money.' This money was to be sent by sea; and the greatest precautions were to be taken to avoid exciting suspicion. A ship was to come to St Andrews and to put out a boat, for the ostensible purpose of opening negotiations with the Castle, but, in reality, to hand over the money. After its departure the Governor was to be informed that its object had been to offer victuals, but that they had been refused. Nor was that all. The subsidy was not to be in English currency, of which a sudden influx would necessarily be noticed, but was to consist of the coins of France and other countries. This money, which would be accounted for as proceeding from the Cardinal's coffers, was to be used partly for the revictualing of the Castle, and partly for distribution amongst friends, so that they might be ready, when his Majesty's force came, to do such things as his Majesty might command them. In answer to this appeal Henry sent at least two remittances of money—one of £1180, and another of £1300. This was for pay to the garrison, which consisted of eighty foot and forty horse, and of which each man received eight pence a day. The Council Books show that further sums were transmitted for the leading men; that Norman Lesley's share was £280; and that Sir James Kirkcaldy got £200 as his.

Whilst Balneaves was soliciting help from England, Panter, on behalf of the Regent, was appealing to France. On the strength of the old alliance between the two countries, Francis was requested to send supplies, not only of money, but also of arms, and to place some of his own experienced military leaders at the disposal of Scotland.

About the middle of June 1547, the papal bull upon which so much had been made to depend, reached Scotland, and was communicated to the rebel leaders, together with a summons that they should surrender the Castle, in accordance with the promise given by them the previous December. On making themselves acquainted with the document, they found it contained a remarkable clause, in which Paul III. professed to remit the crime that could not be remitted, '*Remittimus irremissibile.*' It was, in all probability, nothing more than a theological conceit, in the Italian taste. But those whom it most nearly concerned read it otherwise. It was not, they declared, the sure and sufficient absolution which the Governor and his Council had undertaken to procure for them, but merely a trap set for their destruction. They consequently refused to give up the Castle, alleging that the condition upon which they had agreed to do so had not been fulfilled.

When the little garrison thus resolved once more to defy the Regent's power, the armament upon which he depended to force them into subjection, was ready to set sail, if it had not already left the French port. On the 29th of June, a fleet consisting, according to some chroniclers of twenty-one galleys, according to others, of six galleys and two great ships, appeared in sight of St Andrews. Leo Strozzi, who was in command, at once disposed his vessels in such fashion that their artillery should command all the outworks of the Castle, and early next day sent another summons to the garrison to surrender. The bold defenders replied that he had no lawful authority over them, and that they consequently declined to obey his orders. That was the signal for the commencement of active operations on the part of the French squadron. Two days' firing, however, produced no further effect on the fortress than the demolition of portions of the roof; whilst the defenders inflicted serious injuries on the assailants, and besides killing several rowers and soldiers, completely crippled one galley.

Strozzi, by this time, had recognized the futility of continuing the siege from the sea alone, and at once began to make preparation to attack it from the land side as well. The measures which he took showed that he meant more serious work, and that he understood his business better than the Scottish engineers who had conducted operations the summer before. Indeed, he did not hesitate to express his contempt for them as 'unexpert men of war,' to whom it had not occurred to mount batteries on the steeples and all the high places that overlooked the Castle. Nor did he think much

better of the besieged for not bringing down the steeples to prevent such advantage being taken of them.

In getting his own batteries into position, Strozzi's ingenuity was put to the test. His guns had to be taken through streets completely exposed to the fire of the enemy; and if men were employed to transport them, there would necessarily be very heavy losses amongst them. To avoid this, he set up powerful windlasses at the extremity of each street, and by their means was able to draw his cumbrous guns along without sacrificing the life of a single soldier. When this was noticed from the Castle by the Italian engineer, who had been sent from England to assist the garrison, he was not slow in realising the danger of the situation. 'Defend yourselves, Masters,' he exclaimed, 'for now you have to deal with men of war who are very skilful and subtle, for they work their cannons without any men near them.' But the confederates had dared too much to be intimidated by this new device, and they answered resolutely that they should hold the Castle to the last against the united forces of Scotland and France.

The laborious task of raising heavy guns on to the tower of the Abbey Church and the steeple of Saint Salvator's College must have taken a considerable time, for the 24th of July is given as the date of the beginning of the siege from the land side. It had now become evident that the end could not be far off. From their high position the besiegers commanded even the courtyard of the Castle; and it was only with the greatest danger that the besieged could make their way from one point to another. The persistent cannonade drove them first from the block-house, then from the sea-tower, and finally effected a breach in the wall, of which a large portion came crushing down, with a mighty noise. A tremendous storm that broke out checked the progress of the assailants for a few hours, and probably saved the garrison from the slaughter which must inevitably have taken place if the breach had been stormed and the Castle captured by force. Even at this last extremity, there were some within the walls who counselled a last effort, and urged that the whole available force should join in a sortie. But the desperate proposal though discussed was not adopted; and when the storm abated and preparation was again being made for a final assault, a flag of truce announced that, for the first time, the rebel leaders demanded a parley with a view to the surrender of the fortress. But, not even yet was their spirit so utterly crushed that they were ready to consent without demur to any terms. Neither with the Governor nor with any of their own

countrymen would they condescend to negotiate, for these had deserted them, 'Which, I am assured,' said the Laird of Grange, 'God shall revenge ere it be long.' It was to Strozzi himself that they surrendered. According to Knox the terms of the capitulation were: That the lives of all that were within the Castle, as well of the English as of the Scots, should be saved; that they should be safely transported to France; that, at the King of France's expense they should be safely conveyed to any country they might desire, other than Scotland, in case that, upon conditions which should be offered by the King of France unto them, they could not be content to remain in service and freedom there.

Thus, on the 30th of July, 1547, ended the siege of the famous Castle. Entering it at once, the French 'spoylled verrie rigorouslie.' According to Pitscottie, 'they gott both gold, silver, cloathing, bedding, meitt and drink, with all veapones, artaillie, and victuallis, and all vther plenisching, and left nothing behind thame that they might gett carried away in thair gallies.' The 'Diurnal of Occurrents' estimates the value of the spoil at one hundred thousand pounds. By command of the Governor and Council, the Castle itself was razed to the ground. 'Whether this was to fulfil their law, which commandeth places where cardinals are slain so to be used, or for fear that England should have taken it, as they did Broughty rock, we are uncertain,' says Calderwood, who reports the fact.

IV. IN FRANCE

To Arran and his Council, the terms obtained from Strozzi by the rebel garrison seemed to be far too lenient; and they accordingly sent John Hamilton of Milburne to the King of France, who was now Henry II., and to the powerful Cardinal of Lorraine, urging them to repudiate the Captain-General's action, and, in spite of the promises by which they had finally been induced to surrender, to handle the prisoners sharply.

Owing to circumstances which the chroniclers do not explain, the journey to France appears to have been unusually protracted; for, although Strozzi is said to have sailed from St Andrews about the middle of August, it was not till November that the galleys are reported to have reached Rouen. On his arrival, the six score Scotsmen whom he brought with him, learned that they were not to be given the option of entering into the service of France, or of passing, at the King's expense, into any other country they might choose; and that the murder of Cardinal Beaton, and the subsequent rebellious defiance of the royal authority were not to be allowed to go unpunished. John Knox and Balfour, together with the prisoners of lower degree, were kept on the galleys as slaves, and sent to work on the Loire. Their fate was commemorated in the doggerel couplet given by Calderwood as the 'song of triumph' of the Papists:—

'Preests, content you now; preests, content you now,
For Norman and his companie hath filled the galeyes fow.'

In reality, however, Norman Lesley, with the Laird of Pitmillie, and the Laird of Grange for his companions, was conveyed to Cherbourg. Henry Balneaves was imprisoned in Rouen itself, where he spent his enforced leisure in writing a 'comfortable treatise' on Justification by Faith without Works. James Melville was relegated to the Castle of Brest, but very shortly after 'departed from the miseries of this life.'

To William Kirkcaldy, Peter Carmichael, Robert and William Lesley, what was then one of the most formidable fortresses in the kingdom, was assigned as a place of confinement.

Built on a huge rock of granite, in the blue, savage Norman Bay, there stood the imposing structure upon which the admiration of the Middle-Ages bestowed the name of the Wonder of the West. Situated some four miles from the nearest point of the mainland, it was guarded by the sea at high water, but became more inaccessible still when, for a couple of hours each day, the ebbing tide left nothing but a wide expanse of treacherous quicksands between it and the coast. This was the abbey-fortress of Mont Saint-Michel, that 'wonderfully strong place upon the sea-shore,' which had proved the bulwark of Normandy during the long struggle between England and France, and in which insignificant garrisons of determined men had, time and again, successfully held out against the assaults of beleaguering thousands. Here it was that the four Scottish prisoners were destined to spend many months of captivity. But the very fastness of their isolated prison was not without advantage for them. It inspired the Governor with such confidence that he deemed it unnecessary to deprive them of the restricted liberty that the rock afforded. The only annoyance to which they were submitted, was one which affected them through their religious opinions, and which they shared in common with the Scottish prisoners in other parts of the country. Knox relates that those who were in the galleys were threatened with torments if they would not give reverence to the Mass, and that they would have been compelled to kiss a statue of the Virgin, if one of them had not seized it and cast it into the Loire. At Cherbourg, too, the governor of the castle did his utmost to induce Sir James Kirkcaldy and his companions to attend Mass with him. When they refused to do so, he threatened to compel them; but they warned him that, if he chose to adopt such a course, they would, by their irreverent behaviour, let all present know their contempt for the ceremony. William Kirkcaldy, with his three fellow-captives, was subjected to the same importunities by the captain to whose keeping he had been entrusted at Mont Saint-Michel. With equal firmness, though in a more bantering tone, he replied for himself and for them, that 'they would not only hear Mass every day but also help to say it, providing they might stick the priests; otherwise not.'

Being allowed free intercourse with the soldiers of the garrison and with the other inmates of the fortress, Kirkcaldy and his friends succeeded in

buying the services of a messenger, by whose help they were able to hold communication with the other prisoners, from whom they had been separated at Rouen. Availing himself of the means thus afforded, Kirkcaldy wrote to John Knox, to ask his advice with regard to a matter about which it seems difficult to understand that he should have entertained any doubt or felt any scruple. He wished to know whether he and those with him might, with a safe conscience, break their prison. Knox replied that they would incur no moral guilt by embracing any opportunity which God should offer them to regain their liberty, providing they used no unlawful means, and, above all, refrained from shedding blood in the attempt.

Sir James Kirkcaldy was also informed of his son's intention; but he appears to have given the bold scheme but scant encouragement. He feared that, even if it proved successful, those who still remained in captivity would be more harshly treated; and it was out of deference to him that Knox so earnestly deprecated any recourse to violent measures.

To venture across the quicksands alone would have been courting death; and as a first step towards the execution of their daring project, the prisoners had to secure the assistance of a guide. In that, they do not appear to have encountered any serious difficulty. One of the young men engaged in an inferior position about the Castle, in all probability the same who had enabled them to communicate with their friends, undertook to show them a safe way to the mainland if they should succeed in eluding the vigilance of their keepers. For many months circumstances prevented the carrying out of a plan which the restrictions imposed by Knox, and accepted by the four captives, rendered particularly hazardous and difficult; and the second winter since their departure from Scotland still found them fretting for liberty on the isolated rock. At length, however, their knowledge of the customs of those amongst whom they were living told them that the time for action was approaching. In those days, even more than at present, and particularly in Normandy, where it is still widely celebrated, the festival of the Three Kings—*le Jour des Rois*—as the Epiphany is called, was kept as a popular holiday, with much merry-making and carousing. The nature of the quaint ceremonial which formed a part of the feast, led to even more than the customary indulgence on the part of the revellers. Every time that the mock monarch of the evening, elected by favour of the bean hidden in the Twelfth-Night cake, put his goblet to his lips, the cry was raised, '*le Roi boit! le Roi boit!*' and all his faithful subjects showed their loyalty, and their

appreciation of his liberality, by draining their own cups. Even with no stronger beverage than the cider of the country, such repeated potations could not be indulged in with impunity. From their experience of the preceding year, Kirkcaldy and his friends knew that, when the feast closed, the garrison and the household were in no condition to give much attention to their prisoners. They laid their plan accordingly. To abstain from joining in festivities which, though purely social, were intimately connected with a religious feast, they could put forward the same reason that had stood them in good stead before—their utter contempt for popish mummeries; and could, therefore, retain the full possession of their mental and physical energies whilst their keepers were sinking into helpless intoxication. Although the account given by Knox is regrettably bare of details, it suggests that the garrison of Mont Saint-Michel was reduced to its lowest strength; and this circumstance very materially increased the Scotsmen's chances of success.

When the carousing was over in the common hall, and when the revellers had retired to their several quarters, Kirkcaldy and his three friends sallied forth on their perilous expedition. Silently and stealthily making their way to the rooms where the soldiers were sunk in a heavy sleep they first gagged and bound them securely, and then locked the doors on them to prevent pursuit, even if the alarm were given. But the only means of exit from the fortress was closed by three gates, of which the keys were with the Governor; and if these could not be got, the whole enterprise was doomed to failure, in spite of the success with which the daring of the four Scotsmen had so far been favoured. To respect the conditions which Knox had imposed upon them, and impressed with such earnestness as to lead them to look upon them as absolutely essential to the accomplishment of their design, it was necessary for them to deal with the captain as they had done with the guards, not to dispatch him with the weapons that now lay at their disposal, but to overpower him by a sudden attack, and to bind him before he could offer any resistance. In this, too, their desperate determination secured them against failure. Favoured by the darkness, they reached the *Logis du Roi*, which formed a part of the machicolated inner gate, and contained the apartments assigned to the military guardian of the stronghold. When they left it, the Governor was as helpless as his men; and the keys were in their power. After raising the portcullis, they opened and relocked the second gate, passed into the *Cour du Lion*, and came to the

outer barrier of the barbican. The massive bolts and bars of the *Bavole* were hastily pushed back, and the fugitives were outside the walls of the grim prison, secure for a while from pursuit, but with the dangerous journey across the sands still before them. That, too, was performed without untoward accident. So far their guide proved faithful, for their safety was his; and before the rising tide had spread over the vast stretch of sand, and again isolated the Mount, they had reached the mainland, at a point sufficiently distant from Pontorson to insure their being unnoticed by the sentries. Here the guide left them, but not without turning against them the treachery and the unscrupulous greed which had made him their tool. By some means, which the chroniclers unfortunately leave unexplained, but which was doubtless supplied by their need of rest and sleep, as well as by the necessity for concealment, when they got to the shore in the early morning, he succeeded in getting possession of the little stock of money with which they had provided themselves. When the time came for them to resume their flight, they found themselves reduced to the necessity of depending on the charity of the country folk. That alone, even apart from considerations of prudence, made it advisable for the friends to part. The two Lesleys started together in one direction, and ultimately reached a place which Calderwood calls 'Roan,' but which can scarcely have been the inland town of Rohan, as some later writers have thought. It is more natural to suppose that, in their ignorance of the country, they made for Rouen, the port at which they had landed.

William Kirkcaldy and Carmichael proceeded westwards. As soon as the news of their escape became known, diligent search was made for them throughout the district. Disguised as poor mariners, they were, however, able to elude their pursuers; and they slowly and cautiously trudged from one seaport to another, in the hope of finding a friendly ship that would give them passage to England or to Scotland. But all along the coast persistent ill-luck followed them. Saint-Malo, Saint-Brieuc, Morlaix, Roscoff, Brest, were vainly tried in the course of their weary search, which lasted through thirteen weeks; and the fugitives came to the little town of Le Conquet, at the furthest extremity of the peninsula of Finistère, without finding a favourable opportunity to leave the country where, if their identity were revealed, any of the fortresses which they passed might become their prison. There, at length, their wanderings came to a close. In the diminutive harbour, to which, in spite of the dangerous rocks and reefs that stretch

between the coast and the wind-swept island of Ushant, Scottish mariners sometimes steered their course, they found a ship and a skipper willing to take them back to their own country.

Kirkcaldy and his companion landed on the west coast of Scotland in the spring of 1549. But they were not in safety yet. It was only across the Border that they could consider themselves beyond the reach of their enemies. The short journey southwards, however, presented but slight difficulties as compared with what they had already gone through; and before long they found a refuge in Berwick. There they saw John Knox, who had been released that winter; and within a few months they were able to meet others of their friends in England; for the Scottish captives were being gradually liberated, and by the month of July 1550 a general amnesty had opened the gates of the French prisons for the last of the St Andrews rebels.

Nothing is known as to the length of Kirkcaldy's stay in England; but there is evidence of his again being in France before the close of 1550. In that year Sir John Mason, writing from Blois to the English Council, informed it that the secret agent had arrived two days before, but being afraid for his personal safety, had resolved to return at once. He had found a substitute in Kirkcaldy who had promised to communicate to Mason all that he could learn. In future correspondence he was to be referred to as *Coraxe*. His services were accepted, and he received in payment for them a yearly pension, which he continued to draw during the whole of Edward VI.'s reign.

Kirkcaldy's questionable loyalty to the country which afforded him hospitality did not prevent him from performing his duty with conspicuous bravery as a soldier in her army. Henry II. was at that time waging war against the Emperor of Germany, and was glad to avail himself of the services of the Scots. Two of these in particular distinguished themselves by their impetuous courage no less than by their military skill. They were Norman Lesley and William Kirkcaldy. To the former of these the campaign was destined to prove fatal; and the brief but graphic description of the skirmish in which he was mortally wounded, cannot, even at this distance of time, be read without sympathy and admiration. He had gone with the cavalry under the command of the Connétable to harass and impede the progress of the army which the Emperor was bringing to the relief of Renti, besieged by the French. The relative positions of the forces were not equal;

for whilst those of Charles were advancing along a commanding height, Henry's horsemen were in the plain below, and were consequently at the disadvantage of having to ride up hill to attack the enemy. Regardless of the odds the Scottish captain, mounted upon 'a fair gray gelding,' fearlessly headed a charge of thirty of his own countrymen. The incident is best given in the words of another Scot—Sir James Melville—who writes with the authority of an eye-witness. 'He had above his coat of black velvet his coat of armour with two broad white crosses, the one before, and the other behind, with sleeves of mail, and a red bonnet upon his head, whereby he was known and seen afar off by the Constable, the Duke of Enghien, and the Prince of Condé: where, with his thirty, he charged upon sixty of their horsemen with culverines, followed but with seven of his number. He, in our sight, struck five of them from their horses with his spear before it brake: then he drew his sword, and ran in among them, not valuing their continual shooting, to the admiration of the beholders. He slew divers of them, and at length when he saw a company of spearmen coming down against him, he gave his horse the spurs, who carried him to the Constable, and there fell down dead; for he had many shots: and worthy Norman was also shot in divers parts, whereof he died fifteen days after. He was first carried to the King's own tent, where the Duke of Enghien and Prince of Condé told his Majesty, that Hector of Troy was not more valiant than the said Norman: whom the said King would see dressed by his own chirurgeons, and made great moan for him. So did the Constable, and all the rest of the Princes.'

By none was the valiant Master of Rothes more deeply and more sincerely regretted than by his companion in many a perilous adventure—William Kirkcaldy. He had been given the command of a hundred light horsemen; and with these he had been sent out on a secret expedition, from which he did not return till the day after the fatal skirmish. Within a few hours, the battle of Renti afforded him and his Scots an opportunity of avenging their countryman. That he who was 'like a lion in the field' did not spare the enemy may well be assumed. Unfortunately, however, there is no record of his exploits either on that day, or, indeed, on any of the occasions when he did 'such notable service in France.' We only know that his conduct won the warmest praise from such men as Vendôme, Condé, and Aumale; that the famous Connétable would never allow him to stand bare-headed in his presence, and that, in the hearing of Melville, who

records the flattering incident, King Henry II., pointing to him said, 'Yonder is one of the most valiant men of our age.'

Nor was it in battle only that Kirkcaldy won distinction. He showed to equal advantage at the polished court of the Valois, and always figured amongst the foremost in the sports which the King favoured, and in which he himself took a leading part. So openly, indeed, did Henry show his admiration of the Scottish captain, that 'he chose him commonly upon his side in all pastimes he went to.'

But, at the height of his fortunes, Kirkcaldy did not forget his own country, or abandon the policy which he conscientiously believed to be for her advantage. As a soldier, he was ready to serve the French King against his continental enemies; but, as a politician, he did not hesitate or scruple to thwart his schemes by all the means in his power when their object seemed to be the subjection of Scotland to the rule of France—the erection of the land into a province, as Melville forcibly puts it. With this object in view he had thought himself justified in acting as a secret agent, and supplying the English Government with such information as might enable it to follow the negotiations between the French party in Edinburgh and their friends in Paris. But his services had been dispensed with when Queen Mary succeeded her half-brother Edward on the throne. It was no loftier sense of honour, but rather a narrow spirit of intolerance that led to the step; and the reason assigned for the withdrawal of the secret service money, which had enabled Kirkcaldy to obtain, and to supply intelligence to England, was simply that 'no Catholic Power should pay or maintain the murderers of a Catholic Cardinal.'

As Kirkcaldy was in the receipt of ample pay from Henry II., and as even his detractors never accused him of avarice or greed—a charge which it would be difficult to substantiate in the face of the distinct statement made by Melville, that he never sought payment of the 'honourable pension' granted him on his retirement from the French service—it cannot be supposed that he was actuated by mercenary motives when, in 1556, he again offered his services to Queen Mary, through Dr Wotton, promising that she should have 'good intelligence of the affairs of Scotland and of France by his intimacy with those of both nations.' No answer having been vouchsafed to these overtures, Kirkcaldy resolved to return to Scotland, where, as his knowledge of the negotiations carried on with the French Court enabled him to foresee, important events were about to take place.

Before leaving Paris, however, he again applied to the English Ambassador, Dr Wotton, from whom he received a letter of introduction to Lord Paget, Lord Privy-Seal, and Sir William Petre, Secretary of State. It laid special stress on the bearer's discontent with the present state of Scotland, and on his desire to see it delivered from the yoke of the French and restored to its former liberty. It referred to his English sympathies, but added a very important and very honourable qualification; for it was only 'next to his country' that he was represented as having 'a good mind to England.'

On the 28th of May 1557, Lord Wentworth, writing to Queen Mary, informed her that Kirkcaldy was then at Dieppe, 'tarying only the wind to pass to Scotland.'

V. HOME AGAIN

ABOUT the year 1556, Sir James Kirkcaldy closed his chequered career. The latter years of his life, those subsequent to his return from captivity, had been spent in retirement and comparative obscurity. After mentioning his liberation, and the amnesty which put an end to his exile from Scotland, the chronicles and letters of the period make no further reference to him; and it is only from an entry in a writ of Chancery that the approximate date of his death can be determined.

It was as Sir William Kirkcaldy of Grange that his son returned to his native land. The first incident in which he figures, though but of slight importance in itself, is too characteristic of his chivalrous nature and martial spirit to be omitted. It had chanced, some time previously, that in the course of one of those raids, which were of constant occurrence on the Border, John Kirkcaldy had been made prisoner, by a party of Englishmen, belonging to the garrison of Berwick, of which Lord Evers was governor at the time. According to the recognised custom of the age, the young Scotsman was kept in confinement until such time as his friends should pay the ransom demanded by his captors. But, from the account which he gave after his release, it appeared that he had been treated with undue harshness by Lord Evers during his enforced stay within the walls of the English fortress. John Kirkcaldy himself was not of sufficient rank and standing to demand satisfaction of the governor. His cousin, however, was a soldier whose reputation made it no disgrace for the bravest Englishman to break a lance with him. As his kinsman's champion, the Laird of Grange sent a challenge to the Governor of Berwick to meet him in single combat. But he had not reckoned on the punctiliousness of the English lord. Evers pleaded no justification of his conduct, nor did he deny the Scotsmen's right, according to the established laws of chivalry, to demand satisfaction; but he would not recognise the simple Scottish Baron as his equal, and

consequently declined the encounter. To ignore the cartel altogether, would, however, have exposed the English to taunts too insulting to be borne with equanimity; and for the honour of his country and of his family, Lord Evers's brother, Sir Ralph, gallantly made known his readiness to fight with the Laird of Grange 'ane singular combatt upoun horsback with speares.' To this he received the reply, that Sir William was 'verrie weill content thair of, and to meitt him in ony place he pleased.' It was accordingly arranged that the duel should take place at Halidon Hill, in presence of the two garrisons of Berwick and of Eyemouth, but that under pain of treason, no man should come within an arrow's flight of the two champions. Each of them, however, was allowed to have an attendant to bear his spear. There were also to be two trumpeters, and two lords 'to be judges to see the matter finished.' On the appointed day, the two knights rode into the field. Sir Ralph Evers was accompanied by his brother, the Governor of Berwick, in whose cause he was about to fight, and by eleven other English knights. With Sir William Kirkcaldy, there were also twelve gentlemen, of whom one was Monsieur d'Oysel, the King of France's lieutenant.

When the judges of the field examined the armour of the two champions, some difficulty arose by reason of Kirkcaldy's better equipment. According to the English annalist Hollinshed, who is as scrupulous in mentioning the detail as the Scottish chronicler Pitscottie is careful to overlook it, they objected that 'Grange was armed in a coat of plate, and a cuirass aloft upon it,' whilst Evers 'was clad onelie in a single coat of plate, without anie other pieces of armor for defense of his body.' The English knight, however, declared himself satisfied; and the duel was proceeded with. The description given of it by the two writers who have thought it worthy of record, is very characteristic. It shows how national sympathies influence them, even in trifling matters; and may serve to convey some notion of the difficulty which there is in arriving at the truth with regard to more important events. Hollinshed is content with the statement that the combatants 'ran together, and brake both their staves,' and that 'as it fortunied, Master Evers was hurt in the flank.' Pitscottie has expanded this into a picturesque narrative. 'When all things war put to ordour,' he says, 'and the championes horssed, and thair speares in thair handis, then the trumpetteris soundit, and the heraldis cryed, and the judges leitt thame goe, and they ran togidder verrie furiously on both sydis, bot the laird of Grange rane his adversar, the Inglisman, throw the shoulder blaid,

and aff his hors, and was woundit deadlie, and in perrill of his lyff. Bot quhidder he died or leived I cannot tell; but the laird of Grange wan the victorie that day.'

In spite of the irregular and desultory fighting of which the meeting between Kirkcaldy and Evers was an incident, Scotland and England were not actually at war with each other. France, it is true, was using all its influence to create a diversion in its own favour by inducing the Queen-Regent to send a Scottish army across the Border; and, in anticipation of a conflict between the two nations, the restless and warlike Barons of the Marches were already making inroads into the country of the prospective enemy. But when Mary, after having assembled an army at Kelso, announced her intention of declaring war on England, a powerful party, with Chastelherault, Huntly, Cassilis, and Argyle at its head, obliged her to desist. With a view to checking the power of those noblemen, the Regent formed a plan for recalling the Earl of Lennox from his exile in England. This gave rise to negotiations, in which Kirkcaldy acted as agent, and of which a cessation of the Border warfare also appears to have been one of the objects. They were opened by the Bishop of Caithness, who, on the 10th of November 1557, wrote to Lord Wharton:—

'My Lorde; This shall be to chardge and request your Lordshipp in homelye manner to be so favourable and good for such love and favour as I do knowe you bear unto my Lorde my brother, and to tayke the paynes to cause this lytell mass of writings to be wyth all diligence conveyed unto his Lordshipp, so being that passage cannot be had to Wyllyam Kyrkaudye, unto whome the said writings are directed, to be presented by him unto my Laydy's grace, my sister, trusting that your Lordshipp will do so moche for myne owne request, tho' the matter appertained not unto my Lorde or my Laydy forsayd, whose affaires I doubte not but your Lordshippe dothe regarde and weigh as your owne, which movethe me to be the more homely with you at this tyme. Referring the premisses unto your Lordshipp's good mynde, and thus wyth my mooste hartie comendacions unto your good Lordshipp, bid you mooste hartely to farewell. Of Edenboroughe the xth daye of November 1557, by the hande of

Your Lordshipp's good Friend in the olde manner lawfully

ROBARTT, BUSCHOPP of Cathness.'

Three days later, Kirkcaldy, in conformity with the instructions he had received, wrote the following request for a secret interview with Wharton:

'These shall be to certify your Lordship, this last Fryday, at night, there came ane speciall friend of my Ladye Margaret Dowglass's grace, and of my Lorde her bedfellowe's, to me with an masse of Letters dyrected to your Lordship, and because this friend, that hath

sent these letters, knoweth that I have always bene wyllinge to do pleasure and service to the forsayd Laydye and Lorde, hathe desyred me moost earnestly to see them delyvered secretely, wythe certaine secrets to your Lordship, the which I wold gladly do, yf I might be assured to come quietly unto you, wythoute the knowledge of anye but some sure friende of your owne, whome yt will pleas your Lordship, if ye think ye good I come unto you, to cause meet me at Lamertone church, this setterday night, halfe an houre after the sunset, where I shall be with one in company. And for the lesse susspicione, I wold desyre your Lordship that I might be with you in the fornicht, to the ende I might be come back agayne or daye. Besides all these premisses, I have some other matters to declare unto your Lordship. Your answer in writing with expedyccion I moost hartely desyre, and so bidd your Lordship weill fayr. From Haymowth, this Setterday the xiii of November, 1557.

By him whome your Lordship may commaunde after his pore power

WLLM. KIRKALDYE.'

Wharton at once sent a reply. He readily consented to an interview with Kirkcaldy, and undertook to observe all the precautions suggested by his correspondent with a view to insuring the secrecy upon which so much stress was laid. His courteous note concluded with the expression of his satisfaction that the Laird of Grange continued his good mind to my Lady Margaret Lennox and her husband, and with the assurance that they should be informed of it. The meeting duly took place in the evening; and the following detailed account of what was discussed at it was drawn up by Lord Wharton next day, and forwarded to the Privy Council.

'Pleaseth it your most honourable Lordships to be advertised that the 13th of this month William Kirkcaldy sent me a letter; and to the intent to know as I could his meaning or practice, I wrote answer as your Lordships may perceive by the copies of his letter and mine answer therein enclosed. The same night he was with me in my chamber; and first delivered a letter unto me from the Bishop of Caithness, copy whereof I send also with these unto your Lordships. He delivered a packet of letters endorsed to my Lady Margaret Lennox, her Grace, which I have sent with this post towards her and my Lord her husband, with a letter therein from Kirkcaldy to his Lordship. After this I had long talk with him that night, and questioned thoroughly that cause of my Lady Margaret and my Lord of Lennox—from whom the letters were sent, with whose advice, and who would be their friends in that realm, I accounting to him their enemies, which were great and many. His sayings, so near as I could, I gathered as followeth.

'He saith that the Prior of St Andrews, who is accounted the wisest of the late King's base sons, and one of the Council of Scotland, the Earl of

Glencairn and the Bishop of Caithness, did agree to write the letters in the packet, and that the Dowager is of counsel and consenting therewith; and that she wrote her letters to Monsieur d'Oysel, to cause Kirkcaldy make devise to send the letters to me, that they might pass in haste; and that the Dowager's letter did meet d'Oysel beside Dunbar, towards Edinburgh, the 13th of this month. D'Oysel returned^[1] Kirkcaldy, upon the sight of the Dowager's letter, with the packet forthwith, who saith to me, it is the Queen and d'Oysel's device, and d'Oysel very earnest therewith, with many words that he hath given to Kirkcaldy of the great displeasure that the Queen and d'Oysel beareth, especially against the Duke of Chastelherault and the Earl of Huntly, and against others whom d'Oysel nameth the feeble and false noblemen of Scotland. Amongst others, he said when their army retired and their ordnance was to be carried on the water, d'Oysel sent to the Duke that he would see the ordnance returned over the water again and that it might be put in safety. The messenger said to the Duke that d'Oysel was angry with their retire and breach of their promise, and also not regarding the surety of their ordnance. The Duke's answer was, "Let Monsieur d'Oysel gang by his mind, an he will; for as we, the noblemen of Scotland, have determined and written to the Queen, so will we do, and let him look to his own charge." The messenger told the Duke's words to d'Oysel, and so was d'Oysel left. Upon which words, and their manner of dealing, d'Oysel will seek their displeasure by all the ways and means he can, and so will the Dowager, as Kirkcaldy saith.

'In talks with him, I said it was a great matter to enterprise, to bring into that realm my Lady Margaret Lennox and my Lord her husband, and that power of noblemen and of others, with houses of strength must be provided in that realm, and to be in surety thereof before their coming, for I thought they were personages which would not be sent forth of this realm into Scotland, to live in danger of their enemies, now being great. He said, the coming of my Lady to the Dowager, with their friends there, would order that matter; and said, they might first have the Castle of Tantallon, which is in the keeping of the Lord of Craigmillar, and at the Dowager's order. He speaketh liberally, that they would have many friends, and also have on their side the authority that now is. Their friends earnestly desire the hasty sending of Nesbit, my Lord of Lennox's servant. This matter, as I think in my poor opinion, may be wrought for my Lady Margaret and my Lord of

Lennox's purposes, and to continue the displeasure now standing amongst the greatest of that realm.

‘After this, Kirkcaldy said, that he marvelled that the communication between Sir James Crofts and him, for a truce of certain days to have been made, was not agreed unto; and said the same matter was one of the occasions of his coming to me, to declare his doings therein; whom I answered that the same was not like to take effect by his doings for Scotland, for, they made sundry meetings and countenances for truce, and when their army was ready, did let the matter fall, which gave occasion to be thought in this realm not well done. And after, he revived again that communication, which, without others calling for, and personages for that realm to have been appointed for that purpose, he ought to think the same could not take effect. After this, he asked me, if it could not be brought to a truce yet. I said I had no commission, nor anything to say therein; what he would say, I would hear it. And then he desired mine advice. I told him what I had seen—that Scotland, in war, had sent messages to officers or to noblemen, and thereupon meetings of commissioners did follow, for abstinence, which was had, and after, peace. And I making occasion of other communications, he came to this again, and desired that a herald should be sent to my Lord of Northumberland, Lord Warden, and to me, having some prisoners taken by the garrison here, that gentlemen might be appointed, and treat for the order of prisoners of both realms, as before they did; and at that meeting, the former sayings of Sir James Crofts and him to be spoken of, for a truce for certain days, and to be remembered by the Scots. I asked whom he thought should be appointed (if meeting were had). He said, the Lord Seaton, Captain Sarlabois—to be one because he was one before—the Laird of Craigmillar, and the young Laird of Lethington; or two of them. These are the Dowager's and great with her. I told him that I could make him no answer; but said, if it were his mind, I would make advertisements of his sayings, which he desired that I would, to my Lords of the King and Queen's Majesty's most Honourable Privy Council. He said that Scotland would agree to an abstinence for twenty days or for three months; but, always they mind to have a licence for an especial man to pass through this realm with the Dowager's letters to the French King for knowledge of his further pleasure to their treaties and doings. And I asking him what news he had, and reasoning of the present state and devices for the order of their realm, he said, that, on Sunday last, the 7th of November,

there arrived a ship at Leith, with letters and money from the French King. He said he read a letter written from the said King to d'Oysel, wherein was that he should have all his desires of men and money; and that a letter was written from Bettancourt, Master of the Dowager's household (who passed from the Dowager to the French King for an aid in summer last) that he with four ensigns and twelve hundred footmen, and two hundred horsemen, were dispatched to come into Scotland by the West Seas, whom continually they look for there. Captain Crayer and the Englishmen in France are appointed to serve in Scotland as he saith. He said that it was written that the French King was in the field with a great army, and intended to besiege St Quentin. He further said that they have three hundred in garrison in Kelso, and that they have in Eyemouth and Ayton, nine hundred, besides three hundred Scots in garrison, and that they mind, having money now come (whereof was great want), to make a more furniture of five hundred Scotts horsemen, himself, the Laird of Ormestone, James Stuart, one Livingstone, and a fifth, whom he could not name, to be their Captains. I told him these were many hundreds he spoke of, if all might be well paid; and said that his news and these would give occasion to think that this realm should not treat of abstinence nor peace. He answered that Monsieur d'Oysel thought the peace would be made between the King's Highness and the French King, and doubteth nothing thereof, except the Duke of Savoy; and therefore he would that peace should be treated upon here.

'He saith that they will have a parliament at Saint Andrew's day to appoint the marriage of the Queen, which, he saith, will be solemnised after Christmas, or at Easter, and not to fail. He saith the going of Monsieur d'Oysel to Edinburgh at this time, is for the order of the money come, which the Dowager and d'Oysel will keep secret so much as they can, because the Scotts will be greedy thereof.'

On this incident, which does not appear to have led to any definite results, Tytler has founded a charge of gross inconsistency against Sir William Kirkcaldy. Even the fragment of Wharton's report quoted by him contains nothing that can be looked upon as supporting the accusation. An examination of all the documents bearing on the case wholly refutes it. It makes it clear that the main object of the conference was the recall of the Earl of Lennox—a scheme to which Kirkcaldy, who, in his own words, had 'always been willing to do pleasure and service' to the Earl and his wife, might honourably lend himself. With regard to the informal conversation on

the subject of a truce, it was, obviously, nothing more than the revival of a subject which had already been openly discussed with Crofts; and whatever construction may be given to it, there is manifest unfairness in distorting it into the abandonment, on Kirkcaldy's part, of the principles which he had formerly professed; on the contrary, if it can be held to prove anything, that can only be a wish for the establishment of more friendly relations with England. As to 'inviting a French army into the country,' there is nothing in Wharton's report that justifies the assumption that Grange favoured such a measure. He referred to the expected arrival of troops, simply in answer to the question asked him, as to the latest news; and the fact of his communicating such details to an English agent might, with some plausibility, serve as an argument that he had but little sympathy with the Dowager's French policy.

VI. THE UPROAR OF RELIGION

THE year 1559 marks one of the most important events in the history of the Scottish people. In that year began 'the uproar of religion,' as Pitscottie quaintly yet vigorously styles it. Instigated by her brothers, Mary of Guise, the Queen-Regent of Scotland, inaugurated the unwise and unscrupulous policy by which she and they hoped to check the growing power of the Protestant party, and to secure the ascendancy of France. A little before Easter, she issued a proclamation 'commanding every man, great and small, to observe the Roman Catholic religion, to resort daily to the Mass, that all should make confession in the ear of a priest, and receive the sacrament.' In addition to that, she summoned several of the most influential amongst the Protestant Lords, and, after communicating to them the instructions, 'mixed with some threatenings,' which Bettancourt had brought from the French Court, she called upon them to abjure the principles and practice of the Reformed religion. More injudiciously still, she ordered the leaders of the Reformed clergy to attend a Court of Justice, which was to be held at Stirling, and before which they would be required to defend their teaching and their conduct. In the face of this wanton provocation the 'Professors' acted with calm and dignified determination. They sent Alexander, Earl of Glencairn, and Sir Hugh Campbell of Lowdan, Sheriff of Ayr, to remonstrate with the Queen-Regent, and to beseech her to use no violent measures against the Protestant ministers, 'unless any man were able to convict them of false doctrine.' To this she replied in violent and intolerant language: 'In despite of you, and your ministers both,' she said, 'they shall be banished out of Scotland, albeit they preached as true as ever did Saint Paul.'

Though both astonished and shocked at this 'proud and blasphemous answer,' Glencairn and Campbell maintained their self-restraint. They contented themselves with representing to her that her former tolerance had

given such strength to the Reformed religion, that she could no longer hope to repress it; and with appealing to the promises which she had herself made to her Protestant subjects. At this her anger burst forth again; and she told them that 'it became not subjects to burden their Princes with promises, further than it pleased them to keep.' The deputies firmly replied by pointing out the disastrous consequences that would inevitably ensue from such high-handed action, and by warning the Regent that the responsibility for them would fall upon her. This produced a salutary effect; and Mary so far relented as to promise that she would give the matter further consideration.

At this juncture, the spontaneous development of events brought about new complications, and made it evident that an amicable settlement of the quarrel between the two parties was no longer possible. The town of Perth openly embraced the Reformed religion—a measure which, in the words of the chronicler, 'provoked the Queen-Regent to a new fury.' She at once sent orders to Lord Ruthven, who was Provost at the time, to take the most rigorous means for the suppression of the heretical outbreak. He replied that he could oblige the citizens to bring their bodies to her Grace, and to prostrate themselves before her, till she was satiate with their blood, but that he could not undertake to make them do anything against their consciences. On receiving the 'malapert' answer, Mary of Guise commanded that the summons issued to the preachers should take effect, and that they should appear at Stirling on the 10th of May.

The leaders of the Protestant party still hesitated to abandon their conciliatory policy; and even though it was thought advisable that the most influential gentlemen in Angus and Mearns should assemble in Perth to express their sympathy with the ministers and to give them their moral support, it was prudently resolved that they should appear unarmed, and that the Regent should be informed that their intentions went no further than 'giving confession with the preachers.' Intimidated by this peaceful but suggestive demonstration, Mary thought it wise to meet the 'fervency' of the people with craft. Through the Laird of Dun, who had been sent to her, she expressed her willingness to stay the trial of the ministers, if they and their sympathisers consented to disperse at once. When, after some hesitation, her terms had been accepted, instead of keeping faith with the Protestants, she caused the preachers to be put to the horn for not having appeared in Stirling in obedience to the summons, and all men to be

forbidden under pain of rebellion to assist, comfort, receive, or maintain them in any sort.

The Queen-Regent's duplicity aroused a storm of indignation in Perth, where it became known within a few hours. Next day, John Knox, who had but lately returned to Scotland, ascended the pulpit. It does not appear that he made any direct reference to the treachery of which Mary had been guilty, or that he intended further to excite the resentment of the people. He inveighed against idolatry; set forth the commandments given by God for the destruction of everything connected with false worship; and denounced the Mass as an abomination of the grossest kind.

It is a very striking illustration of the strange confusion of the time, that this discourse was delivered in the parish church, and that immediately after it, and before those who had been stirred by the preacher's fervid eloquence had retired, a priest came forward, and made preparation for the performance of the very function against which Knox had directed his bitter invectives. This ill-timed zeal, or imprudent defiance, called forth an indignant protest from a youth who was near the altar at the moment. 'This is intolerable,' he cried, 'that when God, by his word, hath plainly damned idolatry, we should stand and see it used in despite.' The rash priest replied with a violent blow. Rushing out of the church, the young man seized a heavy stone, returned to the altar, and flung the missile with all his might at the aggressor. The stone missed the priest, but struck a statue, and broke it to pieces. This was the signal for a scene of uproar and violence. In a few moments the church was wrecked, and the mob was on its way to the other religious buildings in the city. The tumult lasted for two whole days, during which the monasteries of the Blackfriars, of the Greyfriars, and of the Carthusians were so completely pillaged and destroyed, that 'the walls only of those great buildings remained.'

Mary of Guise vowed to be avenged; and marched against Perth with a powerful body of troops. But the gentlemen of Fife, Angus, and Mearns, and the burgesses of Dundee were assembling to meet force with force; and though, at first, she affected to despise the rebels, the accession to their number of two thousand five hundred men, under Glencairn, induced her to consent to negotiations. On the 28th of May, a truce was agreed upon. The conditions were that 'no inhabitants of the town should be troubled for any such crimes as might be alleged against them, for the late change of religion, abolishing of idolatry, and downcasting of the places of the same;

and that her Grace would suffer the religion begun to go forward, and leave the town free from the garrisons of the French soldiers.'

On the 29th of May, the 'Congregation' departed from Perth; and on the same day, the Queen-Regent, the Duke of Chastelherault, the Earl of Athole, and several prelates, together with d'Oysel and his French troops, entered it. From the very first, it became evident that Mary of Guise had no intention of allowing the conditions of the truce to interfere with her policy. Indeed, she is reported to have said, that she did not consider herself bound to keep her promises to heretics. As for retaining four hundred of d'Oysel's soldiers as a garrison, she justified that step on the ground that, though in the French service, and in the receipt of French pay, they were Scotsmen.

One of the results of this further act of perfidy was to alienate the Earl of Argyle and Lord James Stuart. As long as they thought that the Regent's object was only the restoration of order, they remained on her side; but now, judging that she was bent on doing all in her power to suppress the Reformation, they departed for St Andrews, where the 'Professors' had retired after leaving Perth.

It does not appear that Sir William Kirkcaldy took any open and prominent part in the events which occurred in the early months of 1559. But there is evidence that he was at St Andrews in the beginning of June. It was there that John Knox first proposed to him that they should endeavour to obtain assistance from Queen Elizabeth. 'If England would but see her own advantage,' the Reformer said, 'Yea, if she would consider the dangers wherein she is standing herself, she would not suffer us to perish in this quarrel; for France hath decreed no less the conquest of England than of Scotland.' As the result of their 'long reasoning,' it was resolved that Kirkcaldy should open negotiations with the English.

If, as Calderwood states, this interview did not take place till after the assembling of the forces of the Congregation on Cupar Moor, on the 13th of June, Kirkcaldy had already, on his own responsibility, communicated with Elizabeth's agent. On the 24th of May he had written to Sir Henry Percy, informing him that although the Queen-Regent of Scotland promised she would be content that all such as favoured God's Word should have liberty to live after their own conscience, yet, in the conclusion of the peace she had uttered her deceitful mind, having since declared that she would be an enemy to all those who did not live after her religion. 'Therefore, I pray

you,' said Sir William, 'let me understand what will be your mistress's part if we desire to be joined in friendship with her; for I assure you there was never a better time to get our friendship than at this time. Therefore make labours and lose no time when it is offered.'

About a month later, on the 23rd of June, Kirkcaldy, who by this time had returned to his own house, wrote to Cecil. The natural love which he bore to his native country, he said, and the unfeigned desire which he had long cherished, that the inhabitants of the whole island might be united in perpetual amity, compelled him to declare their present state, and to require of him counsel and comfort in their danger. Twice already, he informed Cecil, had the Professors of God's Word shown their faces for defence of their brethren, whose blood was sought for the cause of religion; and, at that moment, they were in the field for the deliverance of Perth, which the Queen had taken and, contrary to her promises, garrisoned with her troops. Of the Catholic party in Scotland itself, there was no cause, he believed, to be afraid; for the greater part of the nobility and commonalty had openly defied the Pope; but the Queen and the Papists were plotting to bring in a French army. If this should happen, it was the desire of all goodly men to know what support they might look for from England, with which they were anxious to be one in religion and friendship. The number of these was already great and seemed likely to increase daily, if no foreign nation interfered to coerce them; and Cecil was warned that, if he allowed the latter contingency to take place, he would be preparing a way for his own destruction.

Although Percy's answer to Kirkcaldy has not been preserved, it appears to have been rather an inquiry for direct information as to the objects which the leaders of the Congregation really had in view, than a promise to afford the help so earnestly solicited. It drew from Grange a further communication, written on the 1st of July, the day after the triumphant entry of the Protestant forces into Edinburgh, and containing a distinct exposition of the policy of his party. 'I received your letter this last day of June,' he wrote, 'perceiving thereby the doubt and suspicion you stand in for the coming forward of the Congregation, whom I assure you, you need not to have in suspicion; for they mean nothing but reformation of religion, which shortly throughout the realm they will bring to pass, for the Queen and Monsieur d'Oysel, with all the Frenchmen, for refuge are retired to Dunbar. The foresaid Congregation came this last of June, by three of the

clock, to Edinburgh, where they will take order for the maintenance of the true religion and resisting of the King of France, if he sends any force against them. The manner of their proceeding in reformation is this: they pull down all manner of friaries, and some abbeyes which willingly receive not the Reformation. As to parish churches, they cleanse them of images and all other monuments of idolatry, and command that no masses be said in them; in place thereof the Book set forth by godly King Edward is read in the said churches. They have never as yet meddled with a pennyworth of that which pertains to the Church, but presently they will take order throughout all the parts where they dwell, that all the fruits of the abbeyes and other churches shall be kept and bestowed upon the faithful ministers, until such time as a further order be taken. Some suppose the Queen, seeing no other remedy, will follow their desires, which is a general reformation throughout the whole realm, conform to the pure Word of God; and the Frenchmen to be sent away. If her Grace will do so, they will obey her and serve her, and annex the whole revenues of the abbeyes to the Crown; if her Grace will not be content with this, they are determined to hear of no agreement.'

In the minds of the English statesmen, there was still some doubt as to the position taken up by Kirkcaldy. They remembered that, shortly after his return to Scotland, he had acted as the Queen-Regent's agent; and they had before them the fact that he had not yet openly declared himself to be on the side of the Congregation. Under such circumstances, Cecil thought it prudent not to write directly to the Laird of Grange, whom, as yet, he had no reason for treating otherwise than 'as a private man, not before known otherwise to them but as one in good grace with the Dowager.' He instructed Sir Henry Percy to obtain an interview with Sir William, to thank him privately for his letter and the sentiments to which it gave expression, and at the same time, to tell him that the English Government desired to be more fully informed as to the purposes of the Earls and other Protestants; as to the cause they meant to adopt; and as to the means at their disposal for the accomplishment of their designs. Above all, there was to be a clear understanding as to 'what manner of amity might ensue between the two realms,' if assistance were sent from England, 'and how the same might be hoped to be perpetuated, and not to be so slender as heretofore, with other assurance of continuance than from time to time had pleased France.' Lest Kirkcaldy should think that Cecil's unwillingness to negotiate directly with

him arose from any doubt as to his good faith and honesty, Percy was further commissioned to tell him that all promises communicated through the English agent would be considered just as binding as though they had been made immediately to himself. Considering, however, the very guarded nature of the answer which Sir Henry was to make to the Scottish Laird's advances, the assurance thus given did not commit the English minister too much.

As soon as Kirkcaldy learnt from Percy the reasons put forward by Cecil in explanation of his cautious hesitation, he at once promised to supply, within a few days, the information required by the English statesman with regard both to the 'foundation' on which the Protestants meant to work, and the 'amity' they were ready to offer. He further undertook to get himself duly acknowledged 'under the hands of some of the nobility.'

Although less than a week elapsed between Kirkcaldy's interview with Percy and Crofts and the formal recognition of his negotiations by the Lords of the Congregation, the delay appears to have suggested fresh doubts, and possibly suspicions, to the minds of the English agents. On the 20th of July, Crofts wrote from Berwick, informing Cecil that Grange, though expected the day before, had not yet arrived, and suggesting reasons for the delay.

'Kirkcaldy,' he wrote, 'has not yet discovered himself plainly to be of the Protestant party, nor does he come to the Queen-Regent, but feigns himself sick. Money is owing him for serving in the late wars, in hope whereof he drives time. The man is poor and cannot travail in these matters without charges, wherein he must be relieved by the Queen, if these proceedings go forward, and so must as many as be principal doers have relief. They all be poor, and necessity will force them to leave off when all they have is spent, and you know, in all practices, money must be one part.'

A few days later, however, on the 26th of the month, the same writer was able to announce that Kirkcaldy had now 'declared himself plainly,' and was with the Protestants. That pecuniary considerations, even if they had influenced him at all, as Crofts had previously stated, had not been allowed to deter him from the course of action which his conscience pointed out to him, was proved by the fact that, as Crofts himself

acknowledged, in a later communication, his declaration cost him fifteen or sixteen months' pay, which he should have received from France.

Kirkcaldy's object and ambition had been the formation of a Protestant alliance, and he had fervently declared that all Europe should know that a league, in the name of God, had another foundation and assurance than factions made by man for worldly commodity. But the result of his negotiations fell very far short of his sanguine hopes. He was obliged to be content for the time with a vague promise of assistance.

VII. HARASSING THE FRENCH

WHILST the heads of the Protestant party were corresponding with England, the Queen-Regent, on her side, had also been preparing for the struggle which she was now determined to force on, though in order to gain time, she had not discouraged the negotiations entered upon with a view to a peaceable settlement. In answer to her appeals for assistance, the French Court sent her a body of troops, to oppose the forces which the Lords of the Congregation were raising. About the middle of August 1559, a thousand men, under the command of an officer named Octavian, landed at Leith, which they at once began to fortify. Protests and proclamations on the part of the Lords having failed to prevent the operations of the French from being actively carried on, under the eyes of the Regent herself, Leith was invested by the forces of the Congregation.

Sir William Kirkcaldy was one of the military leaders on whose skill and experience the party mainly relied. It is scarcely possible to determine with what official rank he was invested; but there is not wanting evidence to show that, whether by actual appointment, or by virtue of his zeal and of his valour, he stood in a position of considerable importance. When Maitland of Lethington, Secretary to the Queen-Regent, 'perceiving himself to be suspected as one that favoured the Congregation, and to stand in danger of his life if he should remain at Leith, because he spared not to utter his mind in controversies of religion,' determined to join the Protestant party, it was to Sir William Kirkcaldy that he surrendered. Such indeed, was his recognised influence with his associates, that, as Throckmorton informed Cecil, the Regent 'weighed him more than a great many of the rest,' and made strenuous, but vain efforts to gain him over to her side.

Of Sir William's personal exploits, the records are only casual and incidental; but they invariably bear testimony to the dashing courage which

had won distinction for him in foreign wars. It was conspicuously displayed in one of the most important engagements between the opposing forces. On the 5th of November, a body of French troops was sent from Leith to intercept a convoy of provisions intended for Edinburgh. Arran and Lord James, being 'more forward than circumspect' in their attempt to drive them back, allowed themselves to be hemmed in, and forced into a 'very narrow corner,' between the low-lying swamp near Restalrig, and the wall that enclosed the park of Holyrood. But for the Laird of Grange and Alexander Whitelaw, who rode up at the head of a few horsemen, and who succeeded in keeping the enemy in check for a time, the whole escort would have been surrounded, and either killed or taken. Even as it was, the loss was serious; and, together with the capture of the expected provisions, led to the abandonment of Edinburgh, which was at once occupied by the French. Kirkcaldy, who had been in the front of the fight, was in the rear of the retreat; and, according to Killegrew's report of the event to Queen Elizabeth, he only 'very narrowly escaped over the walls.'

Another of Kirkcaldy's sallies from the camp before Leith is narrated in a dispatch to Cecil by Sir Henry Percy, who also took part in it—for this was in April 1560; and by that time Elizabeth had at length sent a small contingent of troops to reinforce the army of the Congregation. Dunbar being but a short distance from Leith, and on the highroad to Berwick, it frequently happened that messengers and straggling parties, on their way from the camp to the English Border, were intercepted by pickets from the garrison. To check this, and to teach the French caution, Lord Grey and Sir William devised a stratagem. The latter, with Sir Henry Percy and three hundred troopers, left the camp at dead of night and took up a carefully chosen position, about half a mile from Dunbar. Next morning, at nine o'clock, when there was every probability of detection, a detachment of a dozen men was sent forward as though for the purpose of riding to Berwick. As soon as they were perceived, Captain Hayes, with an equal number of cavalry, started in pursuit, whilst Captain Perrot, at the head of fifty footmen, also marched out so as to be at hand to reinforce him, if necessary. Feigning to be taken at unawares, the decoys turned and made for the camp, managing their flight in such a manner as to lead the pursuers into the ambush. Grange made no attempt to meet the enemy; but as soon as they had all passed by, he rode out with his three hundred men, and cut off their retreat. Charging the French before they had time fully to realise their

position, he overwhelmed them and took most of the footmen prisoners. The cavalry were able to take refuge in the neighbouring mansion of Innerwick, but a very brief siege obliged them to surrender also; and Kirkcaldy returned to the camp after having killed thirteen of the enemy and captured forty-five, including the two leaders, Hayes and Perrot, and without having suffered any loss himself.

On the eve of the last but still unsuccessful assault made against Leith, on the 7th of May 1560, by the combined forces of the Congregation and of England, it was Sir William Kirkcaldy who, with Sir Ralph Sadler and Crofts, went forward to examine the breach which the besieging artillery had made in the works. Had his advice been followed, the next day's failure would have been avoided, for he reported that the attack ought not yet to be made. But, either owing to a misunderstanding or, as was commonly reported subsequently, to treason on the part of Crofts, who was instructed to communicate Kirkcaldy's opinion to Grey, the assault took place, and was repulsed with heavy loss to the besiegers.

Whilst the siege of Leith was going on, the skirmishing was not confined to the southern side of the Forth. Crossing to the other shore, the French established themselves at Kinghorn and, sallying forth, laid waste all the adjoining country, sparing neither Papist nor Protestant, and even pillaging the estates of their own confederates. Amongst the chief sufferers from their depredations and wanton destruction of property, was Sir William Kirkcaldy, whose house was deliberately blown up. Next day he sent a characteristic message to the French leader, d'Oysel. He told him that, up to that hour, he had acted considerately towards the French, and saved their lives when he might have allowed their throats to be cut. But he warned him not to expect such treatment for the future. 'As for Monsieur d'Oysel,' reports the chronicler, 'he bade say to him, he knew he would not get him to skirmish with, because he knew he was but a coward. But it might be he should requite him in full, either in Scotland or in France.'

The French soon learnt to their cost that Kirkcaldy had not been indulging in mere braggart threats. At the head of a thousand horse, and accompanied by the Master of Sinclair, he lay in wait for them day and night, and made it unsafe for them to venture out of Kinghorn except in large bodies. One of his exploits was the capture of three ships, laden with victuals, and the slaughter of some sixty Frenchmen that were on board. Another, of which the details have been recorded, resulted in the death of

the French Captain, L'Abast, and of forty or fifty of his men. L'Abast having sallied out from Kinghorn, was plundering as usual, sparing 'neither sheep, oxen, kye, nor horse.' When he and his men got sufficiently far inland to make it impossible for reinforcements to come to them from the main body, Grange, who had been following their movements, charged down upon them with a company of his horsemen. The French beat a hasty retreat as far as Glennis House, into which they threw themselves. Whilst some occupied the mansion, others took up their position within the courtyard. The assailants were at considerable disadvantage, for they were armed with spears only; and their horses were useless to them in an attack against men posted behind stone walls. The French, on the contrary, all had arquebuses. Undeterred by the odds against him, Kirkcaldy ordered his men to dismount, and led them to the assault. As they advanced, they were met with a sharp fire that injured several of them, amongst others, Sir William's brother, David. There was one critical moment of hesitation, which would probably have been followed by a disordered and disastrous retreat but for the courage of the Scottish leader. 'Fie!' he cried to his men, 'Let us never live after this day, if it is to be said we recoiled before French skybalds!' Then, rushing forward with the Master of Sinclair, and followed by others whom his words had roused, he succeeded in forcing his way into the courtyard. The death of L'Abast, who, though borne down by the impetuous inrush, refused to ask for quarter, threw the French into confusion. Few of those outside the house escaped the fierce slaughter that followed; whilst those within it were glad to surrender at discretion. From that day, as the chronicler drily remarks, 'the French were more circumspect in straying abroad.'

At Tullybodie, too, there was some sharp fighting for the possession of the bridge. But, though Kirkcaldy succeeded in cutting it down, the check to the advance of the French was only temporary. They retired to Doune, where they crossed the river by means of a bridge, which they built of timber torn from the roof of the parish church.

Kirkcaldy and Sinclair did not carry on this harassing mode of warfare without considerable danger to themselves. On one occasion the Master had his horse slain under him, and barely got off with his life. On another, Grange was nearly captured in his own house at Halyards. Referring to these narrow escapes, Maitland of Lethington bears testimony to the estimation in which the two dashing leaders were held, and to the value set

on their services by the Lords of the Congregation. 'If at this time they should have lost the said two men,' he wrote, 'it would have been to them more hurt than to the Frenchmen to have lost a thousand soldiers; it would have been more skaith than to have had all the Frenchmen in Scotland slain.' John Knox, in a letter to Mrs Anna Locke, also makes admiring and grateful mention of Kirkcaldy's achievements. 'God will recompense him I doubt not,' he says; 'for in this cause and since the beginning of this last trouble specially, he hath behaved himself so boldly, as never man of our nation hath deserved more praise. He hath been in many dangers, and yet God hath delivered him above man's expectation. He was shot at Lundie, right under the left pap, through the jack, doublet, and sark, and the bullet did sticke in one of his ribs. Mr Whitelaw hath gotten a fall, by the which he is unable to bear armour. But, God be praised, both their lives be saved.'

Whether Kirkcaldy was actually wounded, however, seems rather doubtful. That, if he was, his hurt cannot have been serious, may be gathered, not only from the fact that no interruption of his activity at this time is recorded, but also from the following passage, which occurs in one of Sadler's letters to Crofts: 'Kirkcaldy hath no such hurt as we wrote of, which arose of another Scottishman that was indeed hurt in the same sort as we did write; and before that Kirkcaldy slew a Frenchman, whereby the Protestants had the first blood, which they do take for good luck.'

By the beginning of 1560, both contending parties had grown tired of the desultory, and practically useless fighting which had now been going on for months. Negotiations had again been entered upon with a view to the cessation of hostilities, when, on the 10th of June, the death of the Queen-Regent took place. Although there is reason to believe that this time she was really sincere in her wish for peace, it is probable that her demise accelerated rather than retarded the conclusion of the treaty. That it secured for the Protestant party more favourable terms than she herself would readily have granted, scarcely admits of a doubt.

VIII. AT CARBERRY

THE cessation of hostilities, and the departure from Scotland of the French and English contingents which had helped to carry on the war, inaugurated a period of comparative rest and tranquillity in Sir William's adventurous life. During the next four years there is but rare and incidental reference to him in the correspondence of the time. A letter from Randolph to Maitland states that Grange was one of the leaders of a small force sent into Renfrewshire for the purpose of reducing the rebellious Master of Semple to subjection. The only notable feature of this very unimportant expedition was the difficulty experienced in bringing the artillery to bear on Castle Semple, which was situated in a small lake. It took seven days to get the guns into position. Twenty-four hours later Semple capitulated.

Another letter from the same source shows that Kirkcaldy's friendly relations with the English Court were still maintained. It informs Cecil that when the agent wished to take special means for the safe delivery of his dispatches to the Government, he availed himself of the services of the Laird's retainers. The young Queen of Scots, on the other hand, in spite of her dying mother's injunctions to secure the good-will of 'Kirkcaldy of Grange, whom the Constable de Montmorency had named the first soldier in Europe,' still looked with suspicion on the man who had so largely contributed to the success of the Reformers. Indeed, her objection to him was expressed with sufficient plainness to attract the attention of Throckmorton, who was 'nothing sorry' for it, and who did not think the circumstance too insignificant to be communicated to Elizabeth.

Closer acquaintance with the gallant soldier, however, appears to have altered Mary Stuart's opinion of him after her return to Scotland. In 1562, when she undertook an expedition to the North, against the Earl of Huntly, he was one of the leaders whom she appointed to serve under Lord James,

the commander of her forces. A few days later, he was at Strathbogie, at the head of a body of horsemen sent to apprehend the Earl. His progress had been so rapid, that Huntly was taken by surprise, and only narrowly avoided capture. 'Without boot or sword he conveyed himself out at a back gate, over a low wall, where he took his horse.' Being better acquainted with the country, and better mounted than his pursuers, who had already ridden twenty-four miles that morning, he succeeded in making good his escape, but only to fall at the battle of Corrichie. It was, doubtless, as a reward for Kirkcaldy's services during this expedition that the act of attainder passed against him and his family, for the murder of Cardinal Beaton, was reversed by Parliament in the following year. His lands were also restored to him a few months later.

In the year 1564, the project of a marriage between Mary Stuart and Darnley again roused dissatisfaction amongst the Protestant leaders. The matter was one with regard to which Kirkcaldy was not likely to remain indifferent; and a letter written to Randolph, on the nineteenth of September, shows that he had already entered into negotiations with the English Court, for the purpose of offering the support and co-operation of his party to Elizabeth, who was known to look upon the intended marriage with great disfavour. As might have been expected from this preliminary and early step, the Laird of Grange was amongst those who, with Lord James at their head, openly expressed their disapproval of Darnley, as one more than suspected of being ready to adopt and forward Mary's views in favour of the Catholic religion, and who consequently disobeyed the Queen's commands to come to Edinburgh, 'Weill bodin in feir of weir, furneist to remaine the space of fifteen dayis efter thair cuming, for attending and awayting upon her Hienes.' Although no record exists of his individual action, testimony is borne to the importance which Mary and her Council attached to it, by a proclamation issued on the 2nd of August 1565, only four days after the celebration of the obnoxious marriage. It commanded Andrew, Earl of Rothes, and William Kirkcaldy of Grange to enter themselves prisoners within the Castle of Dumbarton. On the 14th of the same month, Kirkcaldy was denounced as a rebel, and charged, under pains of treason, to deliver up the fortalice of Halyards. Next day a proclamation, setting forth that the Earls of Murray and Rothes, Grange, and Provost Haliburton, were riding and going about the Realm where they pleased, and were being entertained as if they were good and true subjects,

forbade the lieges to supply those rebels with meat, drink, munition, or armour. Another of the numerous proclamations issued at this time—its exact date is the 24th of August—gave commission to the Earl of Athole to pursue them with fire and sword. This was on the eve of the Queen's departure from Edinburgh, at the head of five thousand men, to take part in what is known as the Round About Raid.

The ill-advised and ill-managed rising afforded Grange no opportunity of distinguishing himself or even of doing justice to the reputation which he had already acquired. He hurried with the rest of his party from Paisley to Hamilton, from Hamilton to Edinburgh, then back again, through Lanark to Hamilton and thence to Dumfries. There the insignificant force of some thirteen hundred horsemen was disbanded; and Kirkcaldy, with a number of the leaders, sought safety across the Border.

From letters written by Bedford immediately after these events, it seems justifiable to conclude that he, at least, attributed the failure of the Protestant rising to neglect of the advice given by Kirkcaldy. Not only does he speak of him in special terms of praise, which would have been quite out of place if he had done no more than flee before the Queen, and style him 'as able a man in war or peace as any in Scotland or France;' but he also particularly 'bemoans' his fate and significantly adds that he will not speak of 'what services Grange might have done.'

As early as the beginning of January 1566, steps were being taken to procure an amnesty in favour of Sir William Kirkcaldy, and to enable him to return to Scotland. They were not successful, however, and two months later he was still in England, and according to a communication made by Bedford and Randolph to Cecil, was one of those who were privy to the plot for the assassination of David Rizzio. That he knew of it can scarcely be doubted. It may even be admitted that he entertained no special scruples with regard to the removal of an officious and obnoxious foreigner, whose influence on the Queen was being exercised to prevent her receiving the exiles into favour, and whom it was, moreover, originally intended to bring to trial, not, it is true, in a formal and legal manner, but with some sort of judicial proceeding sufficient to make his death appear an execution rather than a brutal murder. But there is no evidence to prove that his complicity went any further; on the other hand, it is noteworthy that his name does not appear in the list of 'such as were consenting to the death of Davy,' forwarded to Cecil within a fortnight after the occurrence. Nor can this

omission be explained by the fact that Grange was known not to have returned to Edinburgh, with Murray and his company, till twenty-four hours after the murder. Knox has never been accused of being actually present at the grim tragedy either, and yet his name figures on the black roll. Finally, it is not unimportant to note that as early as the 4th of April, less than a month after the assassination of Rizzio, Bedford was able to announce to Cecil that the Laird of Grange was now restored to favour. If that did not refer to the remission of the pains and penalties he had incurred through his connection with the Round About Raid, it may be taken as evidence that his complicity with the murderers of the Secretary was not thought to be very direct.

Not many months elapsed before events far more startling and far more momentous in their results again called upon Sir William Kirkcaldy to play a prominent part both as a politician and as a soldier. On the 10th of February 1566, Darnley was murdered under circumstances which led many to believe not only that Bothwell was the murderer, but that Mary was his accomplice. Such was the view adopted by the Laird of Grange. When the mock trial of the Earl convinced him that the law of the land was powerless to inflict punishment on the perpetrator of the foul deed; and when, in addition to this, the subservience of five and twenty bishops, earls, and barons, who affixed their signatures to the notorious Ainslie Bond, showed him that a union with Mary would probably be the unscrupulous adventurer's next step, he made an earnest appeal for help from England. 'It may please your Lordship to let me understand,' he wrote to Cecil, 'what will be your sovereign's part concerning the late murder committed among us; for albeit her Majesty was slow in all our last troubles, and therefore lost that favour we did bear unto her, yet nevertheless, if her Majesty will pursue for the revenge of the late murder, I dare assure your Lordship she shall win thereby all the hearts of all the best in Scotland again. Further, if we understand that her Majesty would assist us and favour us, we should not be long in revenging of this murder. The Queen caused ratify in Parliament the cleansing of Bothwell. She intends to take the Prince out of the Earl of Mar's hands, and put him into Bothwell's keeping, who murdered the King, his father. The same night the Parliament was dissolved, Bothwell called the most part of the noblemen to supper, for to desire of them their promise in writing and consent for the Queen's marriage, which he will obtain; for she has said that she cares not to lose France, England, and her own country for him, and shall go with him to the world's end in a white petticoat ere she

leave him. Yea, she is so far past all shame, that she has caused make an act of Parliament against all those that shall set up any writing that shall speak anything of him. Whatever is unhonest reigns presently in this court. God deliver them from their evil!’

Before any answer could be returned to Sir William, his worst anticipations had been verified. With or without her consent, Mary had been carried off by Bothwell. Two days later another letter was sent from the Grange to the English agent in Berwick. It ran as follows: ‘The Queen will never cease till she has wrecked all the honest men of this realm. She was minded to cause Bothwell ravish her, to the end that she may the sooner end the marriage which she promised before she caused murder her husband. There is many that would revenge the murder, but that they fear your mistress. I am so suited to, for to enterprise the revenge, that I must either take it upon hand or else leave the country, which I am determined to do, if I can obtain license; but Bothwell is minded to cut me off ere I obtain it. The Queen minds hereafter to take the Prince out of the Earl of Mar’s hands, and put him in his hands that murdered his father. I pray your Lordship let me know what your mistress will do, for if we seek France we may find favour at their hands, but I would rather persuade to lean to England.’

That Kirkcaldy’s determination to go abroad was not merely empty and exaggerated talk was proved by the two plain facts reported by Sir William Drury—that Grange had sold all his corn and moveables, and that he had obtained a license to leave Scotland for seven years. It might have been well for him if his purpose had been carried out; but events shaped his conduct differently.

Sir William’s communications were duly forwarded to Elizabeth. The tone adopted by a subject in writing of his sovereign was highly displeasing to the English Queen, and shocked her exalted notions of regal dignity and prerogative. She consequently vouchsafed no reply to them; but she took occasion to express her indignation to Randolph, who thus reports to Leicester the substance of her remarks to him on the subject of Kirkcaldy’s plainly-worded arraignment of Mary’s conduct: ‘Her Majesty also told me that she had seen a writing sent from Grange to my Lord of Bedford, despitefully written against that Queen, in such vile terms as she could not abide the hearing of it, wherein he made her worse than any common woman. She would not that any subject, what cause soever there be

proceeding from the prince, or whatsoever her life and behaviour is, should discover that unto the world; and thereof so utterly misliketh of Grange's manner of writing and doing, that she condemns him for one of the worst in that realm, seeming somewhat to warn me of my familiarity with him, and willing that I should admonish him of her misliking. In this manner of talk it pleased her Majesty to retain me almost an hour.'

In the meantime, discontent at the Queen's treatment of Bothwell had been spreading through the country, and was gradually assuming the tangible shape of a coalition having for its avowed object the punishment of Darnley's murderers. The leading men of the movement were Argyle, Athole, and Morton. They made Stirling their headquarters; and it was there the Laird of Grange joined them in the early days of May. On the eighth of that month he again wrote to Bedford, no longer as a private individual, but with the authorisation, and in the name of the confederate Lords. 'All such things as were done before the Parliament, I did write unto your Lordship at large,' said he. 'At that time the most part of the nobility, for fear of their lives, did grant to sundry things, both against their honours and consciences, who since have convened themselves at Stirling, where they have made a "band" to defend each other in all things that shall concern the glory of God and commonweal of their country. The heads that presently they agreed upon is, first, to seek the liberty of the Queen, who is ravished and detained by the Earl of Bothwell, who was the ravisher, and hath the strengths, munitions, and men of war at his commandment. The next head is the preservation and keeping of the Prince. The third is to pursue them that murdered the King. For the pursuit of these three heads they have promised to bestow their lives, lands, and goods. And to that effect their lordships have desired me to write unto your lordship, to the end they might have your sovereign's aid and support for suppressing of the cruel murderer Bothwell, who, at the Queen's last being in Stirling, suborned certain to have poisoned the Prince; for that barbarous tyrant is not contented to have murdered the father, but he would also cut off the son, for fear that he hath to be punished hereafter. The names of the Lords that convened in Stirling were the Earls of Argyle, Morton, Athole, and Mar. These forenamed, as said is, have desired me to write unto your Lordship, to the end that I might know by you if your sovereign would give them support concerning these three heads above written. Wherefore I beseech your lordship, who I am assured loveth the quietness of these two realms, to let me have a direct

answer, and that with haste; for presently the foresaid Lords are suited unto by Monsieur de Croc, who offereth unto them, in his master, the King of France's name, if they will follow his advice and counsel, that they shall have aid and support to suppress the Earl Bothwell and his faction. Also he hath admonished her to desist from the Earl Bothwell, and not to marry him; for if she do, he hath assured her that she shall neither have friendship nor favour out of France, if she shall have to do:^[2] but his saying is, she will give no ear. There is to be joined with the four forenamed lords, the Earls of Glencairn, Cassillis, Eglinton, Montrose, Caithness; the Lords Boyd, Ochiltree, Ruthven, Drummond, Gray, Glamis, Innermeith, Lindsay, Hume, and Herries, with all the whole West Merse and Teviotdale, the most part of Fife, Angus and Mearns. And for this effect the Earl of Argyle is ridden in the West, the Earl of Athole to the North, and the Earl of Morton to Fife, Angus, and Montrose. The Earl of Mar remaineth still about the Prince; and if the Queen will pursue him, the whole Lords have promised, upon their faiths and honour, to relieve him. In this meantime the Queen is come to the Castle of Edinburgh, conveyed by the Earl Bothwell, where she intendeth to remain until she have levied some forces of footmen and horsemen, that is, she minds to levy five hundred footmen, and two hundred horsemen. The money that she hath presently to do this, which is five thousand crowns, came from the font your Lordship brought unto the baptism; the rest is to be reft and borrowed of Edinburgh, or the men of Lothian. It will please your Lordship also to haste these other letters to my Lord of Moray, and write unto him to come back again into Normandy, that he may be in readiness against my Lords write unto him.'

This time Queen Elizabeth deemed it expedient to take notice of Grange's communication; and on the 17th of May, she instructed Bedford as to the answers which he was to return in her name, with regard to the three points indicated in the letter. As to the first of them—to have their sovereign delivered from bondage—Elizabeth pointed out that Mary's own statement to herself was at variance with that of the Lords, and that the Scottish Queen attributed their hatred of Bothwell to the anger and disappointment which they felt at his having 'in her distress recovered her liberty out of their hands.'

Respecting the preservation of the young prince, Elizabeth professed not to understand what was intended—whether the Lords merely wished to entrust him to the care of his grandmother, Lady Margaret Lennox, or

whether they had some other object in view. She did not hide her anxiety to get him into her own keeping; and suggestively added that if she could not be trusted with his protection, she thought intermeddling with the rest of the matters would prove more hurtful than profitable. The notion of placing the Crown on the child's head in the event of his mother's marriage with Bothwell, was one which Elizabeth altogether refused to entertain—'it was a matter for example's sake, not to be digested by her or any other monarch.'

With reference to the pursuit of the murderers of the King, the English Queen confined herself to the diplomatic remark that she saw great difficulties in the way of undertaking it if Bothwell were to marry Mary.

Two days before this letter was written, the marriage had actually taken place. This was the signal for open and direct action on the part of the 'Associators.' With two thousand horse, which they had collected in all haste, they set forth from Stirling intending to seize Mary and Bothwell in the Palace of Holyrood. But this plan was frustrated by the sudden retreat of the Queen and her husband to Borthwick Castle. Thither the confederates followed them; but information of their advance having preceded them, they were again disappointed. Bothwell made good his escape, and betook himself to the stronghold of Dunbar, which Mary 'in men's clothes, booted and spurred' also succeeded in reaching some hours after him, for, to ensure safety, they had found themselves obliged to part company.

On the 14th of June, the Queen and the Duke of Orkney, as Bothwell was now styled, marched out of Dunbar with an army of some four thousand men and six field pieces of brass, and reached Prestonpans in the evening. On receiving intelligence of these movements the Associators set out from Edinburgh, to which they had advanced from Borthwick; and about mid-day on Sunday the 15th of June, the opposing forces came into view of each other at Carberry Hill, eight miles from the Capital.

The royal troops having taken up their position on the hill, whilst the Lords had halted on the lower ground at its foot, Kirkcaldy of Grange, together with Douglas of Drumlanrig, Ker of Cessford, and Home of Cowdenknowes, was sent, at the head of two hundred horse, round the hill, towards the east side, for the double purpose of cutting off Bothwell's retreat, and of securing more favourable ground for an attack. The men, who in obedience to the Queen's command, had gathered round her

standard, were but half-hearted in her cause; and Bothwell's conduct had not increased their sympathy with her. As soon as they found themselves hemmed in between the infantry on the one side, and Kirkcaldy's horse on the other, they began to desert in great numbers, and it is asserted that Mary and Bothwell were left with only sixty gentlemen and the band of arquebusiers. Seeing this, the Queen asked who led the cavalry. On learning that it was Grange, she sent Cockburn of Ormiston to summon him to an interview with her. After having informed the Lords of the message, and obtained their consent, Sir William rode forward. Although the Queen had pledged her word for his safety, it is asserted by Sir James Melville, that Bothwell had instructed a soldier to shoot him. Mary perceived the man, as he was taking aim, and uttering a loud cry, she exclaimed, 'Shame us not with so foul a murder!'

In his conversation with the Queen, Kirkcaldy assured her that all in the field were ready to honour and serve her on the condition that she abandoned the Earl of Bothwell, who had murdered her husband, and who could not be a husband to her, as he had but lately married the Earl of Huntly's sister. Hearing these words, Bothwell, who was standing near, exclaimed that he was ready to fight, in single combat, any man who laid Darnley's death to his charge: 'You shall have an answer speedily,' said the Laird of Grange; and riding back, he obtained the Lords' permission to do battle as their champion in the quarrel. On his return, however, he was objected to by Bothwell, as being neither Earl, nor Lord, but only a Baron, and consequently not his equal. The Laird of Tullibardine next offered to fight, but was refused on the same ground. 'Then,' exclaimed his elder brother, Sir William Murray, 'I at least am his Peer; my estate is better than his, and my blood nobler.' Him too Bothwell rejected, on the pretence that Tullibardine was not his equal in degree of honour, and, wishing he said, to have an Earl as his adversary, he selected Morton, who at once answered that he would fight on foot with a two-handed sword. Here, however, Lord Lindsay of the Byres put in his claim, as a relative of the murdered Darnley, and begged to be allowed to meet Bothwell. This was granted him, and Morton presented him with his own sword, a weapon he highly valued as having belonged to his ancestor, the famous Earl of Angus, 'Bell-the-Cat.' But all those preliminaries led to no result. Whether from pusillanimity, as some have maintained, or because of the Queen's interference, as others have asserted, or, according to a third opinion, because the Lords, amongst

whom were some of his former confederates, wished him well away, for fear lest being taken he might have revealed the whole plot, he retired from the field, without having struck a single blow.

Left to herself, Mary again sent for Grange, and told him that if the Lords would do as he had said, she would renounce Bothwell, and go over to them. Sir William having obtained their recognition of the promises which he had made, again rode up the hill to communicate it to the Queen. In reply, she said to him: 'Laird of Grange, I render myself unto you, upon the condition you rehearsed unto me.' With those words, she gave him her hand, which the gallant soldier respectfully kissed. Having helped her to mount, he led her horse by the bridle down the hill towards the Lords, who received their Queen with 'all dutiful reverence.' Some of the meaner sort, however, behaved in a very different manner; to check their coarse ribaldry, Grange struck at them with his drawn sword.

Mary's ignominious entry into Edinburgh, and the treatment to which she was subjected after being taken, not to Holyrood, but to the house of Sir Simon Preston of Craigmillar, did not augur well for the observance of the conditions which Sir William had been authorised to grant on the field of Carberry. Indeed, there never seems to have been a serious thought on the part of any one except the Laird of Grange to keep faith with the unfortunate Queen. He, however, had been thoroughly sincere throughout; and his indignation was therefore great when he learnt that it had been resolved to relegate Mary, as a prisoner for life, to the island fortress in Lochleven. When he protested against the violation of the promise which he had made to the Queen, he was told that on the very night of her return to Edinburgh, Mary had written to Bothwell, and bribed one of her keepers to get her letter conveyed to him, but that the man had handed it over to the Lords. In this letter, it was alleged, she called the Earl her Dear Heart, whom she should never forget nor abandon, though she was obliged to be absent from him for the time; she assured him her only object in sending him away had been to ensure his safety; and she besought him to be comforted and to remain on his guard.

Even though he does not appear to have questioned the genuineness of her letter, Kirkcaldy urged that it did not free them from the obligation contracted by them towards the Queen. In spite of it, she had, in actual fact, abandoned the Earl; and that she should give him a few fair words was, he said, no wonder. He expressed his own conviction that 'if she were

discreetly handled, and humbly admonished what inconveniences that man had brought upon her, she would by degrees be brought not only to leave him, but ere long to detest him; and therefore he advised to deal gently with her.'

To Sir William's earnest remonstrances, the Lords replied that 'it stood them upon their lives and lands; and that therefore, in the meantime, they behoved to secure her; and when that time came that she should be known to abandon and detest Earl Bothwell, it would be then time to reason upon the matter.' Their arguments did not, however, satisfy him, and 'had it not been for the letter, he had instantly left them.'

In the meantime, Mary had written to the Laird of Grange, complaining of the harsh treatment to which she had been subjected, and protesting against the breach of faith of which she was the victim. His answer was to the effect that he himself had already reproached the Lords with their conduct towards her, but that they had shown him a letter of hers to the Earl of Bothwell, in which 'Among many other fair and comfortable words,' she promised never to abandon or forget him. 'That,' he said, 'had stopped his mouth.' He went on to express his wonder that her Majesty could consider herself wedded to a man who had but recently married another woman, and deserted her without any just ground. He besought her 'to put him clean out of mind, seeing otherwise she could never get the love or respect of her subjects, nor have that obedience paid her, which otherwise she might expect;' and he added 'many other loving and humble admonitions, which made her bitterly to weep; for she could not do that so hastily, which process of time might have accomplished.'

Judging that the most practical means of destroying Bothwell's influence would be to get possession of his person—a measure which had been strangely and, indeed, suspiciously neglected at Carberry—and to bring him to justice, Sir William readily accepted the command of an expedition having for its object the capture of the Earl. After Carberry, the Duke of Orkney had betaken himself to his dukedom, which had not yet seen its new master. Having met with a very hostile reception at the hands of Gilbert Balfour, the keeper of Kirkwall, he went over to Shetland, where the more friendly bailiff, Olaf Sinclair, supplied him with provisions. The two vessels with which he had come from the south being but small, he got possession of two Hanseatic ships, the *Pelican* and the *Breame*. After forcibly seizing them and casting out their cargoes on the shore, as Geert

Hemelingk related, he had obliged the two German skippers to sign a contract, so as to give his act of violence the appearance of a legitimate transaction, and had begun a piratical cruise amongst the islands. He was reported to have killed the Bishop of Orkney's son and put all his servants out of the castle.

On the 12th of August, Kirkcaldy, with whom was Sir William Murray of Tullibardine, received seabriefs, 'for the seeking, searching, and apprehension of the Earl of Bothwell and his accomplices.' Exactly a week later, he set sail for Dundee, fully determined to give the pirate Earl no chance of escape. In a letter to Bedford, written immediately before his departure, he said: 'And for my owne part, albeit I be no gud seeman, I promess unto your Lordship, gyf I may anes encounter hym, eyther be see or land, he shall either carie me with him, or else I shall bryng him dead or quick to Edinburgh.'

The squadron under his orders consisted of four ships—the *Unicorn*, on which he himself embarked, the *Primrose*, the *James*, and the *Robert*. They were all heavily armed, and had four hundred arquebusiers, besides the respective crews.

Calling at Kirkwall, Grange was informed that Bothwell was at Shetland, and at once made for the Bressay Sound. There the *Pelican* and the *Breame*, with the two lesser craft, were seen lying at anchor. A number of the men belonging to the crews were on shore, and the Earl himself was dining with Sinclair. When those who remained on board caught sight of the squadron as it entered the Sound by the south, they slipped their cables, and setting all sail, steered for the northern channel. In spite of the remonstrances of his master-mariner, Kirkcaldy, bent on carrying out the dashing tactics which he had so often found successful in his cavalry charges on land, ordered every stitch of canvas to be crowded on the *Unicorn*, and hastened in pursuit. His ship sailed well, and was gradually gaining on the hindmost of the fugitives; but it drew more water than they. Even for them, the navigation of the rock-strewn channel was difficult and dangerous. One of them grazed a sunken reef, over which it barely managed to slip, though not without damage. The *Unicorn* was less fortunate. Striking the same rock with violence, it filled and sank so rapidly that Grange and his men were with difficulty rescued by the other ships. The rock that caused the catastrophe is still known by the name of the vessel to which it proved fatal.

When Bothwell heard of Kirkcaldy's arrival, he succeeded in reaching the *Pelican*, which, with its consorts, had retired to Unst, the most northerly of the islands. But before he could get safely away the pursuers were upon him again. There followed a sharp engagement which lasted three hours, and in the course of which the mast of his best ship was shot down. He owed his deliverance to a south-westerly gale which suddenly sprang up and drove him out to sea, together with two of his other ships. The fourth was captured; but Grange was obliged to return to Dundee with a few prisoners of inferior note. The Earl whom he had promised to take quick or dead, had escaped to Norway.

IX. LANGSIDE—AND AFTER

WHILST Sir William Kirkcaldy was cruising in the North, important events were taking place in the Capital. The enforced abdication of Queen Mary had been followed by the appointment of her half-brother, the Lord James, Earl of Murray, to be Regent of the Realm. One of his first acts was to obtain the surrender of Edinburgh Castle from Sir James Balfour, who had been made Governor of it by the interest of Bothwell. That had not prevented him, however, from siding with the Lords when he saw the success of their arms. But, 'though they loved the treachery, they had no great liking for the man.' And they were anxious to prevent the possibility of his again turning against them, if circumstances should seem to favour the Queen's party. On the 24th of August, he agreed to deliver the fortress into the Regent's hands, subject to certain conditions, of which one was that the Laird of Grange should succeed him as Governor and should pledge his word for his safety. When Kirkcaldy returned to Edinburgh, he found himself appointed to the command of what was then one of the most important strongholds in Scotland.

For a few months after this, the country enjoyed a brief respite. But the Queen's friends had not abandoned her. On the third of May 1568, Murray, who was at Glasgow on justiciary business, received the unexpected and startling information that Mary had escaped from Lochleven the day before. The news was soon confirmed by a message from the Queen herself, who, as soon as she reached Hamilton, 'sent a gentleman to the Earl of Murray and the other Lords, to declare that she was delivered by God's providence out of captivity, and albeit she had consented to a certain kind of approving their authority, she was thereunto, for defence of her life, compelled; seeing God had thus mercifully relieved her, she now desired them that they would restore her with quietness to her former dignity and estate, and she would in

like manner, wholly remit all manner of actions committed against her honour and person.'

Murray's unconditional refusal to resign the regency and restore Mary, was followed on both sides by active preparation for war. In answer to his proclamation some 4,000 men assembled in Glasgow, which he had made his headquarters. Amongst them was a body of arquebusiers and archers, who had come from Edinburgh with Sir William Kirkcaldy. The Queen's partisans had gathered round her in even greater numbers; and contemporary accounts estimate the strength of her forces at fully 6,000.

The Regent having received information that it was Mary's intention to proceed to Dumbarton, drew up his army outside the Gallowgate Port, but, at the same time, he sent Kirkcaldy to reconnoitre the ground lying between the Clyde and Langside. He was thus prepared to intercept the royal forces, whether the northern or the southern side of the river were chosen for their line of march.

Early in the morning of the 13th of May, the Queen with her army started on her march to Dumbarton. From the elevated position which he held at the Calton, Murray perceived the advancing columns of the enemy as they neared Rutherglen. As soon as it was ascertained that the vanguard was not taking a northerly direction, for the purpose of crossing the Clyde at the Dalmarnock ford, Grange, with an arquebusier mounted behind each of his two hundred horsemen, rode with all speed back to Glasgow, forded the river at the east of the old Bridge, and made for Langside, where the road to Dumbarton lay between a commanding eminence and the Clyde, and where he had already selected an advantageous position. On reaching Langside hill, he posted his footmen at the head of a narrow lane, where cottages and gardens afforded them shelter and made it impossible for the enemy's cavalry to dislodge them.

With his infantry and his ordnance, which was carried in carts, Murray made all haste towards Langside, along the route already taken by Grange. Although he had further to march than had his opponents, the comparative slowness of their movements, due partly to their greater numbers, and partly to the confidence which they felt that no attempt would be made to hinder their progress, enabled him to reach the village and to take up his position before they came in view. As soon as Lord Claud Hamilton, who commanded the 2,000 men of the Queen's vanguard, saw that the village

was occupied, he made an attempt to carry the lane in which Grange had posted his infantry. A sharp fire checked the advance, and threw the assailants into confusion for a time. Rallying, however, they courageously and fiercely stormed the hill held by Murray. Grange, to whose experience and discretion it had been left to 'encourage and make help where greatest need was,' was at this point; and, as the foremost ranks came to close quarters, he gave his men an order which illustrates the peculiar mode of warfare of the time. He called out to them, says Melville, who was present, 'to let their adversaries first lay down spears, to bear up theirs.' A stubborn struggle ensued. According to Buchanan's account, the two brigades held out a thick stand of pikes like a breast-work before them, and fought desperately for half-an-hour, without yielding ground on either side; insomuch that they whose long spears were broken, hurled pistols, daggers, stones, fragments of lances, and whatever was at hand, into the faces of the enemy.'

Another remarkable incident is mentioned by Melville. 'So thick,' he says, 'were the spears fixed in others' jacks, that some of the pistols and great staves that were thrown by them which were behind, might be seen lying upon the spears.'

In the meantime, Grange perceived that the right wing of the Regent's vanguard, chiefly composed of men from the Barony of Renfrewshire, was beginning to waver. Hastening to them, he called out that the enemy was already giving way, and besought them to hold out till he returned with reinforcements. Then riding at full speed to the Regent's left wing, which had been standing in reserve, he obtained a body of fresh troops, with which he dashed at the enemy's flank. This movement decided the fate of the battle. The vanguard of the Queen's army was forced to fall back upon the main body, which, instead of supporting it and enabling it to rally, broke into precipitate flight. Grange pursued with the cavalry; but he 'was never cruel,' and moreover, the Regent had issued orders to save and not to kill, so that there were but few taken, and fewer slain. No indiscriminate slaughter of his fleeing countrymen was needed to make the victory complete and decisive. His clever tactics and his courageous behaviour had secured that already.

On the 8th of May 1568, immediately before his departure to join the forces of the Regent in Glasgow, Sir William Kirkcaldy, being obliged to withdraw a considerable part of the garrison on which the safety, no less of

the Capital than of the stronghold depended, took the precaution of securing the active co-operation of the citizens themselves, for the repression of any insurrectionary movement in the Queen's favour, by means of a mutual bond signed by himself on behalf of the Castle, and by Sir Simon Preston of Craigmillar, Provost of Edinburgh, acting for himself, the bailies, Council, and community. With many protestations of loyalty to the 'most undoubted sovereign's Regent and Governor, James, Earl of Murray,' and with strong expressions of indignation at the 'unnatural and ungodly proceedings' of those who were convened in arms against him, it bound each of the contracting parties to assist the other 'at all times and in all places needful, against all and sundry.'

After his return from the brief but decisive expedition, to the success of which he had materially contributed, the Governor of the Castle was entrusted with the custody of some of the most important of the prisoners taken at Langside. A few months later, his steady adherence to the Regent brought him the double distinction of being raised to the dignity of Provost of Edinburgh, and of being not only denounced by the leaders of the faction which still looked upon the exiled Mary as the lawful sovereign, but actually ordered by them to constitute himself a prisoner, within twenty days, in the Castle of Dumbarton. When next he appeared as a prominent actor in the politics of the time, circumstances had worked startling changes in the respective positions of parties, and were already hurrying public men towards a momentous crisis, under the influence of which old ties were to be violently severed, and new sympathies and new aims were to bring former friends into bitter conflict with each other.

The policy which Elizabeth had adopted from the moment when the Scottish Queen was in her power, and the discovery of her scheme for assuming the virtual management of Scottish affairs, after obtaining possession of the infant prince, had produced a strong revulsion in the feelings of many who had hitherto looked trustingly and hopefully towards England; and Murray's popularity, already shaken by his severity towards Mary's adherents, after the battle of Langside, sank lower and lower as proof after proof of his subserviency to the English Government was produced by his opponents. Those who, realising the difficulty of his position, and believing that he was as much the victim as the accomplice of the unscrupulous policy of Elizabeth and her astute minister, Cecil, were still inclined to give him credit for sincerity and honesty of purpose, felt

their confidence in him die away when, to propitiate Elizabeth, he consented to the impeachment of Maitland. Amongst them was Kirkcaldy. At first, indeed, he could not bring himself to believe in the Regent's responsibility for the step. Writing to Bedford, he confessed that he was unable to give a better or certain ground for the committing of Lethington to ward but the malice and envy of some of his enemies, who by means of a faction, had craftily induced the Regent to do that which he was most unwilling to do. He was assured, he said, that Murray in his heart sorely repented that ever he had yielded to their passions; and he felt no doubt that the trial would result in a declaration of the innocence of Lethington and the confusion of his enemies.

The confidence which Kirkcaldy still endeavoured to feel in his old friend Murray, was roughly shaken by a letter which he received from Lord Doune, and from which he learnt that it was a part of the Regent's plan to get possession of Edinburgh Castle, and to entrust it to the keeping of the Laird of Drumwhazel. So far as he was personally concerned, Grange was so heartily tired of public life, of the plotting and counter-plotting which seemed to have become the very essence of politics, that he would very willingly have surrendered his command, and have withdrawn altogether from the Court. For the sake of Lethington, however, whose danger he fully realised, and to whom he knew that he might be of service so long as he retained the power and influence which the possession of the Castle gave him, he determined to remain at his post. At the same time, he thought it his duty to remonstrate with Murray, and to point out to him the injustice of his conduct towards the Secretary, as well as towards Sir James Balfour who had also been arrested, and in whom Kirkcaldy was in so far interested, that, on taking over the command of the Castle, he had pledged his word for the safety of the former Governor. In his reply, Murray endeavoured to throw the whole responsibility upon the Council. The members, he alleged, were so banded together against Maitland and Balfour, and the charge of murder brought against both of them was so grave, that he could not take it on himself to release them from custody. He promised, however, that, at his next meeting with Kirkcaldy, he would explain his views and show them to be perfectly honourable. In the meantime, he besought him to suspend his judgment.

Sir William refused to be satisfied with the obvious evasion, and he met it with a bold and vigorous measure. Seeing that it was really intended to

bring Maitland and Balfour to trial for their lives he demanded that Morton and Archibald Douglas should be dealt with in the same manner. He charged them with being 'upon the council, and consequently art and part of the King's murder.' In support of the accusation he offered to meet them in single combat with Lord Herries as his fellow-champion. This stayed the proceedings against the two prisoners for a while. Still protesting that he was a helpless and unwilling agent in the matter of their impeachment Murray informed Kirkcaldy that he intended to send Balfour to St Andrews, and to bring Lethington to Edinburgh for the purpose of entrusting him to the safe-keeping of the Governor of the Castle. At the same time, however, Grange received information that this apparent concession hid a treacherous plot against himself. It was intended to make the Secretary an instrument to draw his friend, the Governor, from the Castle into the town, under pretence of handing the prisoner over to him; and then to retain him until the fortress had been given over to Drumwhazel. Kirkcaldy was subsequently to be sent home, and to be appeased with a gift of the Priory of Pittenweem.

According to Melville, Morton had devised a more unscrupulous plot, with a view to revenging himself upon Kirkcaldy. 'He had appointed four men to slay Grange at the entry of the Regent's lodging, without the Regent's knowledge.' But the Governor had a scheme of his own, which effectually thwarted those of his two adversaries. Arguing that if, as he declared, the Regent had really been coerced into sanctioning the arrest of Lethington, he would be glad of his escape; but that if, on the contrary, he were playing a double game, his disappointment at losing his prisoner would expose his treachery, the Laird of Grange resolved to rescue Maitland from the hands of his enemies.

On his arrival in Edinburgh the Secretary was committed to the custody of Alexander Hume of North Berwick. That same evening, about ten o'clock, Kirkcaldy went to Hume with an order bearing what purported to be the Regent's signature. Hume knew that Murray and the Laird had but lately been on terms of the closest friendship; but he does not appear to have been aware of their more recent estrangement and antagonism. Suspecting no deception, and very possibly unacquainted with the Regent's handwriting, he assumed the genuineness of the document presented to him, and allowed Maitland to be quietly conveyed to the Castle.

When Murray and his friends learnt that the Secretary was no longer in their power they were in great perplexity, 'supposing all their counsels to be

disclosed.’ It was thought best, however, that the Regent should cover his anger for the time, and that he should take the earliest opportunity of calling upon Grange at the Castle as though nothing had happened. This he did the very next day. But in his anxiety to deceive the Governor he protested too much, and gave him more fair words than he was wont to do, ‘which Grange took in evil part.’

The Castle was becoming the headquarters of Murray’s opponents. He had, prior to Maitland’s arrest, induced the Duke of Chastelherault and Lord Herries to come to Edinburgh with a view to discussing the position of affairs, and had then handed them as prisoners to the custody of the Governor. Grange had duly received them, but he treated them as friends and as guests, and protested against the treachery of which they had been the victims. John Wood, an ardent partisan of the Regent’s, was sent to the Castle for the purpose of appeasing and conciliating the Governor. The substance of their conversation, as reported by Melville, goes far to explain Kirkcaldy’s attitude towards the party of which he had once been a zealous supporter. ‘I marvel at you,’ said Wood, ‘that you will be offended at this; for how shall we, who are my Lord’s dependers, get rewards, but by the wreck of such men?’—‘Yea,’ replied Grange, ‘is that your holiness? I see nothing among you but envy, greediness, and ambition; whereby you will wreck a good Regent, and ruin the country.’

In spite of Murray’s assumed indifference, Lethington’s escape caused him the most grievous disappointment and annoyance; and it was evident that he and Grange were gradually being carried further apart. With a view to preventing an open rupture between them, Melville devised a plan, which he took it on himself to lay before the Regent. He suggested that Lethington should retire to France, and that after his friend’s departure, Kirkcaldy should, of his own accord, resign his command of Edinburgh Castle. The Regent, however, still protested that he bore Maitland no ill-will, and had no wish to drive him into exile. As to Grange, he said he had too many obligations to him, and too great proofs of his fidelity to mistrust him. It had never been his intention, he again declared, to take the Castle from him; and if it were not in his keeping already, he would entrust it to him rather than to any other. He even went further than that, and denied that he entertained any suspicion of either Grange or the Secretary. In proof of the sincerity of his words, he went up to the Castle and ‘conferred friendly with them of all his affairs, with a merry countenance, and casting in many

purposes, minding them of many straits and dangers they had formerly been together engaged in.' But both Kirkcaldy and Maitland were too well acquainted with him, and had too long 'been his chief advisers under God,' not to detect the violent effort which this show of friendship cost him. No good to either party resulted from the interview. Indeed, it is scarcely possible to doubt that an irremediable breach was only prevented by Murray's tragic and untimely end. He was shot by Bothwellhaugh on the 23rd of January 1569. Political differences were forgotten in the presence of death; and Kirkcaldy's grief at his former friend and comrade's untimely fate was heartfelt and sincere. When Murray's body was solemnly carried to its resting-place in the Cathedral of St Giles, he was amongst those who came to pay him the last tribute of respect. It was he who, bearing the banner of the murdered Earl, headed the mournful procession from Holyrood to the church.

X. DEFECTION?

DURING the troubled days that intervened between the death of Murray and the regency of Lennox, Sir William Kirkcaldy, whilst continuing to assert his allegiance to the youthful King, maintained his intercourse with Maitland and the other leading men of the party which openly favoured the captive Queen. The correspondence of the time bears evident testimony to the importance which his possession of the Castle gave him, and to the doubts and fears with which his conduct inspired Elizabeth's ministers. On the 7th of April 1570, Randolph, who had returned to Scotland, wrote to Cecil that he had found in Grange great honesty and dutifulness to his sovereign. Less than a week later he repeated the statement, but with a suggestive limitation, and with the expression of his fears that the Laird of Grange might be 'enchanted' by Lethington, whose efforts to bring back his mistress to Scotland were attributed rather to a desire 'to spite others than to profit himself.' Writing to Cecil on the 21st of the same month, Sussex, the leader of the English forces that had recently spread devastation through Teviotdale, informed him that 'Grange was vehemently suspected of his fellows;' and 'the defection of Grange' was one of the indications which, about the same time, he gave Elizabeth of the gradual falling off of the King's adherents. In a communication bearing the date of the 25th, Morton forwarded a scarcely less unfavourable account. The furthest they could get from the Captain of the Castle, he told Randolph, was that he should remain neutral. In explanation of this luke-warmness, the writer repeated a rumour current at the time, that Kirkcaldy had been bribed by Mary with the gift of the Priory of St Andrews. That, he added, was the Secretary's device, for *Judas non dormit*.

A similar report had reached the Governor's ears, and he gave it a direct and emphatic denial, in a letter which he addressed to Randolph on the 26th

of April, and which deserves notice as containing his own apology for the line of conduct he was following:—

‘BROTHER THOMAS,—I received your writing this Wednesday at nine of the clock, and perceive thereby of divers and sundry reports ye have heard of me, and of your desires therefore to be assured, either by word or writ, what ye may trust unto. Therefore, this is to assure you, that I remain, and shall continue, the King’s faithful subject, and shall maintain his authority aye and while the same be taken away by order of law. As to the pursuit of my Lord Regent’s murder, I shall be as ready to the revenging thereof as any in Scotland; but I will not take the deadly feud upon me of all the Hamiltons, as some would I should do.

‘My grey hair has let me understand what truth and constancy is in our nobility; therefore, brother, albeit I will not enterprise as I have done, yet I pray you and others not to have the worst opinion of me; for since he is dead I mind never to subject myself overfar to any of them that are left behind, for I know their humour and condition too well. I am sure it is come to your ears, that I should give over this house for the Priory of St Andrews, to the Lord Seaton; which, truly, was never meant nor yet laid to my charge, but is only sown abroad by them that hate me, and would make me odious to the world. Therefore, this shall be to assure you, and all others, that I shall keep this house to the King’s behalf, until an order be taken, or else the highest house in it shall be the lowest. But now, to be plain with you, your manner of proceedings make many to suspect ye intend to do otherwise with us than ye have set out by your proclamation; for so have ye begun upon the Lord Maxwell, who has never offended you, nor yet left the King’s obedience, nor yet had to do with your rebels.

‘As I wrote before unto you, seeing that ye have wrecked Teviotdale, whereby your Mistress’s honour is repaired, I pray you seek to do us no more harm; for I am sure in the end you shall lose more than you can gain thereby; for the Queen your Mistress shall spend much silver, and lose our hearts in the end; for whatsoever ye do to any Scotsman, the whole nation will think them interested thereby. Amongst other things, I am sure there come many evil reports of me to you, for the putting to liberty of my prisoners. But when ye shall understand what I had for me so to do, I trust ye shall be satisfied. As I spoke to you and wrote, if your Mistress pleases she may take up this whole division that is in Scotland, and make the whole to be hers and at her devotion. I will trouble you no further; but, I pray you, do as ye would be done to; or else, all the cloaks ye can cover your cause with will be disclosed in the end. I am preparing this house to resist all that shall pursue, and to hold you at the gate, whensoever ye put on your jack. Till farther occasion, I bid you heartily well to fare. At Edinburgh Castle, 26th April, at eleven hours, in haste.—Your brother in perpetuum,

W. KIRKCALDY.’

Following closely upon this, Grange dispatched to the Earl of Sussex a further and fuller explanation of his conduct. It was in reply to a letter which the Lord-Lieutenant had written a few days earlier, and of which the substance may easily be inferred from Kirkcaldy’s reply.

‘MY VERY GOOD LORD,—I have received your letter, dated at Berwick, the 26th of this instant, the sum whereof is to utter unto me such occurrents as by report have gone to your Lordship of my doings, to the end that by my affirmation or reproving of them, your Lordship may understand what credit may be given to the said reports. The whole matter rests in two heads—the one that I have declined from mine old friends in this realm, which heretofore have desired the amity of England; the other that I have given countenance, or gone further, with others that have showed another course of their doings, and capitulated with the French. Both the points are general, and therefore the more difficult for me to answer them particularly. Yet for your Lordship’s satisfaction, I will not leave you altogether unanswered. As to the former point—that I have declined from my old friends—I trust none of themselves will blame me of inconstancy in friendship; and by the contrary, sure I am such as have of old used friendly dealings with me, and were worthy of themselves with whom an honest man might maintain friendship, are yet still with me in the same degree of amity they were wont to be. No occasion hath proceeded of me, by my behaviour, to the breaking thereof; as also that all my friends, so far as I know, are yet still desirous of the amity of England. If any man in this realm will charge me herein particularly, when, by his own letter or speech to myself, he will utter his mind, I shall answer him accordingly. As to the other point, I have not altered my accustomed form of dealing with the nobility of this realm, nor used me otherwise towards them than becomes a man of my mean estate. I have not given countenance to any that, to my knowledge, mean unonestly either to Scotland or England; nor yet have gone either further or nearer with any that in their doings have showed an undutiful course. Who have capitulated with the French, or after what sort, I know not. A Frenchman, indeed, was lately here, sent, as he affirmed, from the King of France. With him I spake, upon his desire; and therein, I think I have done nothing against my duty. For, this realm being at peace with all nations, I see no cause why the subjects of all nations may not freely resort amongst us, and have communication with us in peaceable manner, principally Princes’ avowed servants. In all his conference with me, I assure your Lordship, he used no language with me prejudicial to the amity betwixt these two realms. How others have in particular dealt with him, I know not. But for mine own part, I wish no occasion be offered, on either part, to disturb the quietness of this Isle; and whosoever shall offer best means for the maintenance thereof, his doings I shall best allow. For conclusion, as I have ever naturally been affected towards the amity of England, and, in particular, at my poor power, have borne a special devotion towards the Queen’s Majesty, as well for benefits received of her father and brother, by me and my friends, as for Religion’s sake, and her honourable dealings with this realm, in the beginning of her Majesty’s reign, so I will wish her Highness shall procure the union of this nobility, and I doubt not she may bring it to pass, if it please her. And if your Lordship will take that course in hand, I trust assuredly it shall be easy for your Lordship to begin and for her Majesty to end whereby the whole nobility of Scotland may remain at her Majesty’s devotion; and I, for my part, most earnestly desire it. And so, leaving to trouble your Lordship further, for the present, I commit your Lordship to the protection of God. At Edinburgh Castle, the 29th of April, 1570.

WM. KIRKCALDY.’

Grange’s letters were not agreeable to the English agents. To accept his explanation would have been to admit that, as he very clearly hinted, the

defection was not on his side, but on that of the English Government, which, now that it had Mary in its power, was working as persistently and as unscrupulously as ever the Guises had done, to reduce Scotland to political dependence and subjection, and was consequently losing the confidence and alienating the sympathy of many of those who had been staunch supporters of the English alliance so long as they recognised in it a guarantee of their own liberty. Randolph's reply, written on the first of May, ignored the important point, and confined itself to the secondary matters mentioned by Grange. The writer expressed his satisfaction at learning the Governor's determination to maintain the King's authority, but professed his inability to understand the meaning of the proviso 'until the same be taken away by order of law.' He justified the severe treatment of Maxwell on the ground that he had received and maintained the Queen of England's rebels; and, as to the liberation of the Castle prisoners, he oracularly pronounced that Kirkcaldy would some day repent it. He avoided expressing either belief or incredulity in respect of the bestowal and acceptance of the Priory of St Andrews, which the Laird had directly and emphatically denied, by bantering his 'brother William' about his unfitness to figure as an ecclesiastic. 'It was indeed most wonderful unto me,' he said, 'when I heard that you should become a Prior. That vocation agreeth not with anything that ever I knew in you, saving for your religious life, led under the Cardinal's hat, when we were both students in Paris.' He concluded with a sarcastic allusion to Kirkcaldy's letter to the Lord-Lieutenant. 'The Earl of Sussex has made me privy to a very eloquent, fine-written letter of yours, which passes my wit to understand. Either you have lately altered your hand, your style, your manner, and your meaning, or used the pen of some fine secretary.'

Sussex's reply was even less conciliatory. He considered the principal points raised by him to be utterly unanswered. He was quite aware that it was lawful for Kirkcaldy to use conference with the French or any other nation, but he remembered the time when he would not have dealt with them without the Queen of England's knowledge and consent. As to the earnest desire that the Queen should take in hand the union of the nobility of Scotland, those words were very honourable but general, and yielded no ground to conceive the writer's meaning in particulars. Referring to himself, he said that the course he had hitherto held consisted of two points: the one, to be revenged on such as had maintained the rebels of England; and the

other, to continue by all means the good affection borne towards the Queen of England by many of the nobility of Scotland, of which number he had always accepted Grange to be a special person to be accounted of.

Perceiving from this that Sussex was not 'fully satisfied with his last writing,' Kirkcaldy informed him that he meant to send a special friend to let him know 'his full intentions in all things.' If this messenger was ever sent, the result of his mission was not satisfactory; for, on the 4th of May, the Lord-Lieutenant addressed what he himself called 'a plain letter' to the Lairds of Grange and Lethington. After reproaching them with the ingratitude of their conduct towards the Queen of England, he warned them that, if they continued in their course, he would take the field with all the forces at his disposal, and not fail to take that revenge which should be honourable for his Mistress.

Neither threats nor blandishments could avail to turn Kirkcaldy from the purpose which he had set himself. That which, to those who were anxious and impatient to have the weight of his influence and the support of his authority on their side, seemed the result of a halting policy, was due to his earnest and sincere desire to avert, if possible, an outbreak of hostilities. He still cherished a lingering hope that Elizabeth might adopt a course of action which would not oblige him wholly to cast aside his old sympathy with England. As late as the 5th of July, Randolph was able to say of him that 'he doubted not of his honesty.' If proof were required that the whole responsibility for the apparently vacillating conduct of those who, like Grange, put the welfare of their country above mere party considerations, lay with the English Queen, it could be adduced in the very words of her own agent. Writing to Sussex, Randolph did not hesitate to inform him that the public feeling was one of distrust in Elizabeth, 'who so often changed her course.' That, he said, was in almost every man's speech, and preached in pulpit plainer than he listed to write.

About the middle of July, the King's Lords, as the opponents of the exiled Queen were now called, took a step which did not augur well for the pacification of the country. They held a convention in Edinburgh, for the purpose of conferring the Regency on Lennox, who had practically been chosen by Elizabeth. He had been for years a pensioner on her bounty, and he was known to be wholly devoted to her interests.

If Grange had been actuated by the sentiments of hostility which some chose to attribute to him, he could have struck a decisive blow by bringing down the Tolbooth about the ears of those who were assembled within it with the intention of sanctioning and adopting a policy which he believed to be fraught with danger to Scotland. He contented himself, however, with absenting himself from the convention, to which he had been summoned, as a member of the Privy Council,—a dignity which he held in virtue of his office, as Provost of Edinburgh, and with refusing ‘to shoot off any piece of ordnance upon request, after the proclamation.’

Instead of giving Grange credit for his attitude of neutrality, Sussex chose to take umbrage at it. In another of those letters which he prided himself on writing ‘somewhat plainly,’ he reproached the Governor with inconsistency in professing to be ‘at the Queen of England’s devotion in all matters that might continue the amity between both realms,’ and yet refusing to join the Lords convened in Edinburgh. On the very same day, the Earl showed the sincerity of his own desire for amity by writing to Cecil, to suggest a pretext on which the West Borders of Scotland might be invaded, and the Scots weakened—a pretext which Elizabeth admitted that she ‘liked very well,’ and which, before long, was duly seized upon.

Throughout all this plotting and intriguing, the party which had Knox and the Presbyterian clergy at its head, still continued, in its hostility to Mary, to put faith in Elizabeth and her ministers. To the members of it, Grange’s policy caused the greatest anxiety, and the remonstrances which they deemed it their duty to address to their former champion were frequent and vigorous. Verse as well as prose was brought to bear upon him, and a ‘Hailsome Admonition,’ published by the balladist, Robert Semple, presumably about the beginning of September, when the interference of both France and Spain was feared, may serve to show the spirit of these exhortations. It opens with an ungrudging recognition of Grange’s services in the past:—

O Lamp of licht and peirless Peirll of pryse!
O worthy Knicht, in martiall deidis most ding!^[3]
O worthy wicht, most vailzeant, war, and wyse!
O Captaine, ay constant to the King!
O Lustie Lord, that will na wayis maling!
O Barroun bauld, of Cheualry the floure!
O perfyte Prouest, but maik into this Ring!^[4]
O gudely Grange, but spot vnto this houre!

After recapitulating Kirkcaldy's exploits, the poet touches on a delicate subject—the disinterested policy of England—and indicates by his doubtless sincere belief in it, the real and essential cause of disagreement between Grange and his former associates.

Quhat neids ye skar, thocht Ingland do support vs,
To puneis sic as proudly dois Rebell?
That tyme at Leith thou knawis they did comfort vs,
And maid vs fre quhen strangers did vs quell,
And never socht na profitte to thame sell:
Thou neids not feir, that hous thay never craifit:
The Regent sayis, sa far as I heir tell,
Wald thow be trew thair can na better haif it.

A threat more sorrowful than angry, of Divine vengeance, if the Captain abandoned the cause which Semple and his friends still believed to be that of religion, closes the spirited poem:—

Thocht at this tyme thow haif that warlyke craig,
And is in hart curagious and bald,
God will nocht mys to scourge the with a plaig
Gif in his caus thow lat thy curage cald.
As thow may se, thick scurgis monyfald
Lich vpon thame that proudly dois disdane.
Except the Lord be watche man of the hald,
Quha walkis the same, thair laubour is in vane.

Before the close of the year 1570, an incident which was not directly connected with the politics of either party, and to which but little importance would probably have been attached, but for the intense excitement of the times, brought Kirkcaldy into direct conflict with John Knox himself. In the beginning of December, Sir William's first cousin, John Kirkcaldy, the same in whose quarrel he had fought with Ralph Evers, was called to attend a justice-court in Dunfermline, as a juryman on a murder trial. During his stay in the town, he was attacked, whilst peacefully going to church, by George and Laurence Durie, brothers to the Commendator of the Abbey, and by several friends of theirs, amongst whom was a young man named Henry Seton. The immediate cause of the quarrel is not stated. But the two families stood on such bad terms that a very slight circumstance may have sufficed to give rise to it. According to Grange's statement, the house of Durie had done many injuries to him and his; and he attributed the death of his father-in-law, the Laird of Raith, who

had been executed on a charge of treason, to the animosity of the head of that family. 'Since that time,' he asserted further, 'the Duries had continuallie troubled Raith's posteritie and friends, in their righteous titles, native estates and possessions.' On the present occasion, the actual aggressor was George Durie, who 'ignominiously buffeted John Kirkcaldy with his fist.' When the latter attempted to defend himself, he was set upon by Laurence Durie, and Henry Seton, and would, in all probability, have been killed, if the Provost had not opportunely interfered. A few days later, Seton, being in Edinburgh, chanced to meet some of the Laird of Grange's servants in the streets, and insulted them, not with words, but 'with jesting and mocking countenance.' This having been reported to the Laird, he resolved to punish the young man for the double offence of abetting the Duries and affronting the Kirkcaldys. For this purpose he sent six of his men to Leith, where Seton was to embark on his return journey to the Fifeshire shore, and gave them instructions to administer a sound castigation with cudgels, but, on no account to use their arms. Finding himself suddenly attacked, the young man drew his sword, and used it to such good purpose that one of his assailants fell seriously wounded to the ground. At the sight of his blood, his companions forgot the restriction that had been put upon them, and continued the fray with sharper weapons. Out-numbered as he was, Seton might have succeeded in reaching the boat that was waiting for him, if he had not unfortunately tripped and fallen over a cable. As he lay helpless, some of the aggressors thrust their swords into him, and left him dead on the shore. After perpetrating this outrage, they retreated at full speed towards the Castle, closely followed by a number of the citizens. One of them was captured before reaching the North Loch, which was frozen at the time, and over which the other four succeeded in crossing. Here the pursuers were held in check by the Captain, who having noticed the chase, had come out with a body of soldiers, and threatened to fire if any further attempt were made to molest the fugitives.

Fleming, the one man who had been captured, and in whose defence it was subsequently urged that he was not actually concerned in the murder, was lodged in the Tolbooth; and his release having been refused, Kirkcaldy determined to take the law into his own hands, and to set him free. The Governor must still have had many sympathisers in the city, for it is stated that 'the deacons of the crafts were easily persuaded to assist him in his wicked enterprise.' Having ordered a battering-ram to be made ready for

use against the prison gate, if force should be necessary, and got the guns of the Castle loaded and prepared for action, Kirkcaldy, at the head of a strong body of men, set out, without noise or clamour, between six and seven o'clock, on a dark evening, a few days before Christmas, for the purpose of liberating James Fleming. Men armed with culverins and pikes were posted so as to prevent access, by any side approach, to the street leading from the Castle to the prison. Grange and Lord Home stationed themselves above the Upper Tron, with the object of securing a safe retreat; and the Laird of Drylaw was sent forward to demand the surrender of the prisoner. That having been refused by the jailor, the battering-ram was brought forward, and the gates were forced open. According to reports circulated at the time, the soldiers not only carried off their comrade Fleming, but also set free another prisoner—a woman—probably Bothwellhaugh's wife, who had been apprehended on a charge of complicity in the murder of the Regent. After Kirkcaldy and his men had returned from their nocturnal expedition, 'nine great cannons were discharged' from the ramparts, 'to give the Regent who was then in the town, a defiance in his face.' Fortunately, however, for the guns were shotted, 'no harm was done, but that John Wallace's house was shot through, and a barn in the Cannongate.'

John Knox was in Edinburgh at the time; and raised his powerful voice in condemnation of 'so slanderous, so malapert, so fearful, and so tyrannous a deed. For,' said he, 'if the committer had been a man without God, a throat-cutter, one that had never known the works of God, it would have moved me no more than other riots and enormities which my eyes have seen the Prince of this world, Satan, to raise by his instruments. But to see the stars fall from heaven, and a man of knowledge commit so manifest treason, what godly heart cannot lament, tremble, and fear? God be merciful! for the example is terrible, and we have all need earnestly to call to God, that we be not led into temptation; but specially to deliver us from the company of the wicked; for, within these few years, men would have looked for other fruits than have budded out of that man.'

As soon as the Reformer's rebuke was communicated to him, Kirkcaldy replied to it in a letter which he addressed to Craig, the minister of the church, to whom it was delivered as he was in his pulpit. It ran as follows: 'This day John Knox, in his sermon, called me, openly, a murderer and a throat-cutter, wherein he hath spoken farther than he is able to justify. For I take God to witness, if it was my mind that the man's blood should have

been shed, of whom he calleth me the murderer. And the same God I desire, from the bottom of my heart, to pour out his vengeance suddenly upon him or me, which of us two hath been most desirous of innocent blood. This I desire you, in God's name, to declare openly to the public. At Edinburgh Castle, the 24th of December 1570.'

Craig, however, refused to comply with the request contained in the latter part of the letter, stating that he would read nothing from the pulpit without the knowledge and consent of the Kirk. In another letter, which he wrote to the Kirk Session of Edinburgh, Kirkcaldy gave his version of what had happened, throwing all the blame on the Duries, and protesting his innocence of any intention to cause the death of Seton.

To the first of these letters, Knox publicly made reply on his next appearance in the pulpit, denying that he had ever made use of the words imputed to him. 'Is there any of you,' he asked, 'that heard me, in this public place, call the Laird of Grange, now Captain of the Castle of Edinburgh, a cruel murderer, an open throat-cutter, and one whose nature I had long known to be bloodthirsty? I accused indeed, that unjust and cruel murder; I affirmed the violating of the house of justice to be treason; and finally I complained, that the like enormity and pernicious example I never saw in Scotland. Not but I had seen murder and rebellion before; yea, I have seen magistrates gainstood, and the supreme magistrates of the Crown besieged in their own tolbooth; and I have seen condemned persons violently reft from the gallows and gibbet. But none of all these forenamed can be compared to this last outrage. For, if the masters and authors of this last riot had been known before to have been open throat-cutters, bloodthirsty men, and such as had been void of the true fear of God, I would have been no more moved at this time, than I have been at other times before. But, to see stars fallen from Heaven; to see men who have felt as well God's judgments as mercies, in a past; and to see men of whom all godly hearts have had a good opinion—to see, I say, such men so far carried away, that both God and man are not only forgot, but also publicly despised, is both dolorous and fearful to be remembered.' Then, referring to Kirkcaldy's escape from Mont Saint-Michel, the preacher continued: 'For I have known that man in his greatest extremity, when he might have set himself at freedom by shedding of blood, at the counsel of sober men, he utterly refused all such cruelty, and took a hazard to the flesh most fearful; which God notwithstanding blessed, having a respect to the simplicity of

his heart. And, therefore, then I said, and yet I say, that this example in him is the most terrible example that ever I saw in Scotland. I know that some have made other report. But, in their face I say, that of their father the Devil they have learnt to lie, wherein if they continue without repentance, they shall burn in Hell.'

In a letter to the Kirk-Session, Knox again denied having called Kirkcaldy a murderer and a cut-throat; but maintained that he had only done his duty in publicly denouncing a public outrage. Unwilling to prolong the controversy, Kirkcaldy declared himself satisfied that the words at which he had taken offence were uttered in lament, and for amendment of his fault, and not to his hurt, injury, or defamation, and formally withdrew his complaint. But Knox was not content with a view that implied a recantation on his part; and on the following Sunday, when the Captain, after nearly a year's absence from Divine Service, again appeared in St Giles's, the Reformer, construing his presence into an open defiance, denounced 'proud contemners,' and warned them that God's mercy appertained not to such as, with knowledge, proudly transgressed, and thereafter most proudly maintained their transgression.

The excitement produced by an open quarrel between two such men as Knox and Kirkcaldy was not confined to the Capital. Exaggerated rumours were circulated from town to town, and in several places there arose a belief that Grange had sworn the death of the Reformer. Acting on this, a number of noblemen and gentlemen wrote from Ayr to the Laird of Grange, to signify their strong condemnation of his conduct. They could hardly believe, their protest ran, that he who had been, not a simple professor, but a defender of religion, could be moved to do any harm to him on whose safety the prosperity and increase of religion depended; and they deprecated any hostile design against the man whom God had made both the first planter, and also the chief waterer of his Kirk amongst them, and whose welfare was as dear and precious to them as their own.

Kirkcaldy had thought the incident of sufficient importance, under the existing circumstances, to justify his reporting it directly to the English Government himself. In replying to his letter, it suited Cecil to adopt the lofty moral tone which he knew would meet with the approval of the Clerical party. After condemning the 'heinous fact,' and expatiating on its guilt in one 'having a place of government committed to him, and having for so many years made the world think that he professed the Evangel,' he

closed his letter in these sharp terms:—‘how you will allow my plainness I know not; but surely I should think myself guilty of blood if I should not thoroughly mislike you; and to this I must add, that I hear, but yet am loath to believe it, that your soldiers that broke the prison have not only taken out the murderer your man, but a woman that was there detained as guilty of the lamentable death of the late good Regent. Alas! my Lord, may this be true? And, with your help, may it be conceived in thought that you—you, I mean, that were so dear to the Regent, should favour his murderers in this sort. Surely, my Lord, if this be true, there is provided by God some notable work of His justice to be shewed upon you; and yet I trust you are not so void of God’s grace: and so for mine old friendship with you, and for the avoiding the notable slander of God’s word, I heartily wish it to be untrue.’

Cecil had no reason to congratulate himself on having given credence to details for which he had not the authority of Kirkcaldy himself. In reply to his epistle, the Captain of the Castle was able to inform him that the woman, whose supposed escape had aroused his indignation, was still in the Tolbooth.

XI. THE HOLDING OF THE CASTLE

IN the summer of 1570, the treacherous advice of Sussex had been followed, and, under pretence of punishing those who had given shelter to the rebellious Dacres, he had been sent, with an army of four thousand men, into Annandale, which he ravaged with such remorseless ferocity that, in his own words, not a stone house was left to an ill neighbour within twenty miles of Carlisle. This unjustifiable act of aggression may be looked upon as one of the immediate causes that led Grange decisively and irrevocably to throw in his lot with the party which refused to recognise the authority of Lennox. A two months' truce delayed what had now become an inevitable step on his part. And even then, when the crisis came, it had been hurried on by Lennox's action. On the 19th of March, before the actual expiration of the armistice, he caused proclamation to be made in Edinburgh, forbidding, upon pain of treason, that any should serve Grange, and commanding those who were already with him to leave him within three days. On the same afternoon, Kirkcaldy retaliated by causing Captain Melville to go through the town, with beat of drum, offering pay to all such as would repair to the Castle. Next day he took possession of the Abbey and of St Giles's, and put men and munitions into them. He further levied provisions from the Leith merchants, and took every measure of prudence and precaution that a long military experience suggested, with a view to enabling the Castle to stand a long siege. He was so satisfied with the result of his efforts that he indulged in a 'rowstie ryme' in which, besides reviling his enemies and casting upon them the entire responsibility for the calamities under which the country was groaning, he proudly set forth all that he had done to resist any attempt on their part to drive him from his stronghold.

For I haue men and meit aneugh,
They know I am ane tuilyeour teoch,
And wilbe rycht sone greved:

When thei haue tint als mony teith,
As thei did at the seige of Leith,
 They wilbe faine to leive it.
Then quha, I pray you, salbe boun
 Thair tinsall to advance?
Or gif sic compositione
 As thei got then of France?
This sylit, begylit,
 They will bot get the glaikis;
Cum thai heir, thir tuo yeir,
 They sall not misse thair paikis.^[5]

On the 13th of April, when, in answer to his call, a considerable number not only of soldiers, but of powerful noblemen and gentlemen also, had gathered about him, he issued a proclamation in which he charged the Earl of Lennox with having unlawfully usurped the government of the kingdom, and with having unjustifiably circulated calumnies, injuries, and untrue reports about him, and which, after declaring with pardonable pride and damaging truth, that he had risked his life for Scotland when the new Regent was against it, he closed with a characteristic challenge:—

‘If anie gentleman undefamed, of my qualitie and degree, of his factioun and perteaning to him, will say the contrare heerof but I am a true Scottish man, I will say he speeketh untruelie, and leeth falslie in his throat; and denounce by thir presents to whatsomever persons will take the said querrell in hand, I sall be readie to fight with him on horsebacke or on foote, at time and place to be appointed, according to the lawes of armes.’

When the Captain’s preparations were complete, he set himself to the task of training the garrison. For that purpose he devised a sham assault, which the chronicler who records it, ignorant of military matters, sets down as a foolish skirmish, and as mere boastful display. His graphic description of it, however, is interesting as a quaint picture of mediæval warfare. ‘The one part of the Captan’s souldiours tooke upon them to skirmishe, in manner of an assault to the Castell; the other part of the Captan’s gentlemen took upon them the defence and keeping of the Castell. The skirmishe continued from eight houres at night till nyne. It was demanded from the Castell, who these were that troubled the Captan, under silence of night? It was answered by the other partie below, that they were the Queen of England’s armie. These beganne brawling and flytting; and these in the Castell answered, “Away, lubbard! Away, blew-coat! I defy thee, white-coat!” “Dirt in your teeth!” “Hence, knaves, and goe tell that whoore, your mastresse, yee sall not come heere. We lett you know, we have men, meat, and ordinance for seven yeeres.” About the end of the skirmishe, three cannons were discharged, and the counterfoot assaulters tooke the flight.’

That no misrepresentation of the course which he had been driven into adopting should supply the English Government with a pretext for laying the resumption of hostilities to his charge, Kirkcaldy wrote a full justification of his conduct to Sussex, Leicester, and Burghley. It ran as follows: ‘I have received your letter, dated at Westminster the 7th of this

instant, and thereby understand that your Lordships have, upon the sight of my letters and the Marshal of Berwick's report, rightly conceived my meaning touching the pacification of these inward troubles and continuation of the amity between these two realms, which course I intend still to follow further, so far as I may conveniently. I greatly mislike that a part of this nobility should go about by all means to destroy the other; and would wish that on both parts they should moderate their passions, being content every one of his own rank and degree, and not seek by extraordinary means one to overthrow the other. As to the amity between the realms, if any occasion has fallen out of late time, or shall fall out hereafter, which may disturb, change, or diminish the intelligence happily begun, I protest that I have detested, and shall detest such as are the occasioners thereof; and wish that your Lordships hold hand to remove all such incidents as may breed a misliking on your part; the best whereunto is to procure that the Queen's Majesty, your sovereign, hold the balance equal to both the sides, showing like favour and good countenance to both, so that neither party may think themselves prejudged till the difference for the title for the Crown may by her means be compounded, or brought to an end. For my own part, the Earl of Lennox (whom I never thought a fit person to bear any rule, for the great imperfections which are known to be in him) has so ungently, unreasonably and unlawfully used me, that he has compelled me to provide for my own security, and of the place which I have in charge, and to stand upon my guard with him. Besides many injuries and wrongs which he before had done, against all good order, to me and my friends, whereat I partly winked, and lightly overlooked them, he has of late charged by open proclamations, that all the soldiers which I keep for the preservation of this place, do depart from me and leave my service, by which doing he has uttered his ill-will and intention he had to denude me of my forces, whereby the place, for lack of men to defend it, might fall as a prey in his hands. And when he saw that his commands in that behalf were not obeyed, his malice has burst out further, to set further false and calumnious proclamations against me, full of injurious language, such as neither he nor any of his faction dare maintain, thinking thereby to have made me odious to the people. But my behaviour in times past, and hazarding of my person and goods, for the liberty of my country and duty to my friends is so well known in Scotland, that I am not afraid that anything the Earl of Lennox or his faction can speak or do, who has not as yet given the like proof, may make men that know me to doubt of my honesty. Since he has made open demonstration to be my enemy, I could do no less than let him know the like of me, and so have been forced to join myself with such of the nobility as would concur with me, and provide every way for my own surety, wherein I doubt not but your Lordships will not only bear with me, but also allow of my doings.

'For nature teaches both men and beasts to procure means for their own preservation, and to avoid all things tending to the contrary. And yet I dare undertake, if it shall please the Queen's Majesty your mistress, to prosecute the course she has begun, for according the difference for the title of the Crown, and to show her favour in the mean season indifferently to both parties, that number of noblemen, with whom I have joined myself, shall be as far at her Majesty's devotion, and as able every way, and as willing, to entertain the good intelligence between the realms as any others; and, indeed, they are no less able to serve her Majesty's turn. As to the abstinence mentioned in your Lordships' letter, I shall willingly accommodate myself to everything accorded between the Commissioners for both parties, not only in the order of the Castle of Edinburgh, but all other things lying in my power; and shall attempt nothing farther than the surety of myself and place I have in charge shall force me, unless the others attempt to do injury to me or my friends, in which

case the Earl of Lennox shall have no cause to look for quietness, if he make occasion to me and my friends to stand in doubt of our own surety; for I am resolved to use him as he shall do me and my friends. I have seen heretofore how the former abstinences have been kept on his part, and I know what harm my friends have sustained under the colour thereof; so that I would look for little better at his hand now, were not the trust I repose in her Majesty, who I doubt not will overrule him and bridle him from disordered doings; upon the confidence whereof, her Majesty shall have experience what reverence I bear to her Highness, and how far I respect your Lordships' advice. As to the common quietness in the town of Edinburgh, and people therein, I assure myself none of them will complain; for of truth, there is no man within the compass of the same has received injury or violence, by word or deed, of me or any of mine; whereof I desire your Lordships to assure her Majesty. So, not willing to trouble your Lordships farther, I commit your Lordships to the protection of the Almighty God. From Edinburgh Castle, the 21st of April 1571.

Your Lordships' to command,

W. KIRKCALDY.'

Hostilities between the garrison of the Castle and the Regent's forces, which were encamped at Leith, began on the 29th of April, with a skirmish at Lowsilea. Next day, Kirkcaldy issued a proclamation, commanding all who sympathised with Lennox, to leave the city within six hours, and requiring the citizens to be within doors, after nine o'clock every night. Two days later, he followed this up by demanding the keys of the city from the bailies, and setting his own men to guard the gates; and his next step was to plant artillery on the roof and steeple of St Giles's.

About the beginning of May, the Regent made an attempt to hold a Parliament, but was driven off by the Castle guns. On learning this, Queen Elizabeth made a great show of indignation. It was 'necessary for her that the Regent and his party should not be ruined.' Nor, indeed, did it suit her that either faction should obtain the upper hand independently of her. She consequently directed Sir William Drury to tell Grange and the noblemen joined with him, that she strongly disapproved of their conduct in preventing the Regent and his friends from holding a Parliament to appoint commissioners to treat with those of the Queen of Scots. In energetic language she desired him to 'condemn Kirkcaldy of falsehood and untruth' if it were actually the case that he had said, as had been reported to her, that Lennox was 'sworn English against his country,' and meant to deliver all the castles and strongholds to her; and to require him to give her full satisfaction on this point. She further instructed him to inform the Captain that, if he continued to increase the troubles of the realm, she would 'judge that to be true which, by some had been long doubted, that he and his

companions were partially disposed, for their own lucre and to maintain their disordered authorities, to continue these inward troubles, by pretending to favour the Queen, with whom it was known that, before time, they could not be content.' If this should not be enough, Drury was to add "some sharper speech" of his own.

In his reply to this communication, Kirkcaldy assured the Queen of England that his enemies had misreported him. Had it really been the intention of Lennox and his party to choose persons authorised to carry on the negotiations referred to by her Highness, he would have given them free access to Edinburgh. But he had been told by Morton himself, that 'the treaty was dissolved in England, and clean cut off without any promise of abstinence, or hope of recontinuation.' He pointed out that, if the Lords did not get entrance into the town, they, nevertheless, did hold a Parliament outside the walls; and, as they did not then appoint commissioners, he concluded that it had never been their object to do so. He denied ever having told the people, in his proclamations, that Lennox was 'sworn English against his country;' but he admitted that, in private conversation, he had said that the Earl was the Queen of England's subject by oath. Again protesting his pacific intentions, his unselfish aims, and his respect for Elizabeth, he offered to do battle against any gentleman undefamed, of England or Scotland, who dared charge him with having written or uttered any word against her honour.

Elizabeth admitted that Grange's reply was not unreasonable, and that she did not dislike it. In truth, she found it admirably suited to her purpose. On the strength of its conciliatory tone, she could approach Lennox, and bring pressure to bear on him, by declaring that his opponents were ready to accept her mediation, and by making him responsible for the continuance of hostilities, unless he, too, consented to submit the whole quarrel to her arbitration. It was in this sense that, on the 7th of June, she addressed another long letter of instructions to Sir William Drury.

Apart from a series of sorties and raids, which contemporary chroniclers faithfully record, with scrupulous minuteness, even, at times, to the names of the wounded, and the nature of their hurts, no incident of special interest marked the civil war till the 11th of June. On that day Kirkcaldy, to whose knowledge it had come that he had publicly been accused of being a traitor and a murderer, issued a public challenge, offering to fight, in single combat, and to the death, any man, of whatsoever estate he might be, who

took it on himself to support such a charge. It was taken up by Alexander Stuart of Garlies. He ridiculed the style assumed by Grange—a style more befitting the chief nobility or even the Royal Blood, than one whose father had but eight ox-gangs, and whose progenitors were, for the most part, saltmakers. ‘Nevertheless,’ he continued, ‘although thou art so notorious a traitor, that this action should be decided by other judges than by the adventure of arms, I, Alexander Stuart of Garlies, will offer myself to prove thy vile and filthy treason with my person against thine, as the law and custom of arms requireth: with protestation, that it shall not be prejudicial to my honour, nor to my blood, to compare myself with so late a printed gentleman, manifestly known to have committed, at sundry times, divers treasons; and taken out of the galleys to be kept for the gallows.’

There ensued a long correspondence between Grange and Garlies. Stripped of the accusations, recriminations, and contemptuous allusions to birth and rank, it resolved itself into a wrangle as to the choice of a fitting place for the encounter. Neither party would accept the views of the other as to a sufficiently neutral ground; and after dragging through many weeks, the quarrel was left undecided.

In the meantime, Grange had figured in a less personal and more important incident. Under his auspices, the Queen’s Lords, to whom he delivered the regalia for the occasion, held a Parliament in Edinburgh. Their first act was to invalidate Mary’s abdication, and, as a consequence, to repudiate the transfer of the royal authority to her son and the Regent acting on his behalf. The next was to decree that no change should be made in the form of religion or administration of the sacraments. At a subsequent sitting, they pronounced a decree of forfeiture against the Earl of Morton and some two hundred of the King’s party. In retaliation, the King’s Lords, in a Parliament of their own, held at Stirling, dealt in the same manner with their opponents. But their meeting was to be marked by an event of far greater moment. Grange, who had been informed of their imprudent negligence in not even appointing guards to insure their safety, planned a daring expedition, of which the object was nothing less than the capture of all the leading men of the faction, including the Regent himself.

It was at first Kirkcaldy’s intention to conduct the raid in person. But the Lords and Council would not allow him, alleging that ‘their only comfort under God consisted in his preservation.’ They undertook scrupulously to follow his instructions, and at his earnest request, promised

to respect the lives of the captives. He yielded to their urgent entreaties, but not till the Laird of Wormeston, one of the most honourable gentlemen of the party, had pledged his word to save the Regent's life at every risk.

Between five and six o'clock on the evening of the 3rd of September, Huntly, accompanied with three hundred and forty horse, set out from Edinburgh, and reached Stirling before day-break. Dismounting about a mile from the town, lest the clattering of the horses' feet should betray them, the party entered it by a secret passage, between four and five in the morning. Lennox and his friends were surprised in their houses and captured. They would have been brought safely to Edinburgh if the soldiers and Borderers had not fallen to spoiling. The disorder which followed enabled the enemy to rally. There was a sharp skirmish, in the course of which the Regent was shot. Wormeston had proved so faithful to his trust that the fatal bullet passed through his body before striking Lennox.

The assailants were ultimately obliged to retire, but not till they had held possession of the town for more than three hours. On their return to Edinburgh, they were very unwelcome guests to the Laird of Grange. He was convinced that if, by bringing the Regent to Edinburgh, he had been able to withdraw him from the influence of Morton and of the English agent Randolph, an end might have been put to the disastrous struggle. With the death of Murray a peaceful settlement became well nigh hopeless.

Captain George Bell and James Calder, who had been taken prisoners on the retreat from Stirling, were by torture, compelled to confess that they had special instructions from the Hamiltons to slay the Regent. Calder's confession is significantly signed 'James Calder with my hand laid on the pen because I cannot write.' In a very remarkable letter addressed by Grange and Lethington to Drury, the blame of Lennox's death is imputed to his own associates, who are accused of using the opportunity given by the tumult for obtaining that which they had long sought after. The writers not only point out that the Hamiltons, whom the Regent had the greatest cause to fear, were those who surprised him in his house, and that they might have taken his life then and there; but they also assert that they themselves had previously been urged to concur in Murray's destruction.

Within twenty-four hours a new Regent was appointed. Randolph was anxious that the choice of the Lords should fall on Morton, but they preferred to elect the Earl of Mar.

XII. THE MERCAT CROSS

THE Earl of Mar's Regency lasted a little over a year,—from the beginning of September 1571 to the 29th of October 1572. The secret history of the period is contained in a long series of communications between Elizabeth and her Ministers on the one hand, and the heads of the two contending parties on the other. The subject was still the pacification of the Kingdom; but the discovery of the Duke of Norfolk's plot, in favour of Mary Stuart, had modified the English Queen's policy with respect to the Castilians, as the holders of the Castle were termed. It supplied her with a plausible excuse for casting aside even the semblance of a desire to reinstate her captive; and the spirit in which the negotiations with Grange and Lethington were conducted is illustrated by the following summons delivered to them in her name:—‘Her Majesty's pleasure is, that ye leave off the maintenance of civil discord, and give your obedience to the King, whom she will maintain to the uttermost of her power. And if ye will so do, she will deal with the Regent and the King's party to receive you in favour, upon reasonable conditions, for security of life and livings. In respect the Queen of Scots hath practised with the Pope, other Princes, and her own subjects, great and dangerous treasons against the state of the country, and destruction of her own person, she will never suffer her to be in authority, so far as in her lieth; nor to have liberty while she liveth. If ye refuse these offers, her Majesty will presently aid the King's party with men, munition, and other things against you. Whereupon her Majesty desireth your answer with speed.’

In the meantime, hostilities were being carried on with the greatest ferocity by both factions. As Bannatyne reports, there was ‘nothing but hanging on either side.’ The chronicles and the correspondence of the time record, as common occurrences, the most cold-blooded atrocities. It is related in the *Historie of King James the Sext*, that a band of Queen's

soldiers from Edinburgh were attacked by a body of the King's partisans, to whom they were obliged to surrender and give up their weapons. 'But the horsemen of Leith, after they had received them as prisoners, slew fifteen of the most able and strong men of them; the remainder they drove to Leith like sheep, stabbing and dunting them with spears, where they were all hanged without further process.' Randolph reported to Lord Hunsdon that nothing was left undone on either side that might annoy the other, that the Regent, to keep the Castilians from victuals, had placed men in Craigmillar, Redshawe, and Corstorphine, and had broken down all the mills to the number of thirty or more within four miles of Edinburgh, and that he had sent three hundred Highland men to the villages and cottages about the town to intercept and spoil all that attempted to repair to the Castle. Those of the other side made reprisals by hanging not only the prisoners whom they had received to mercy, but those who afterwards fell into their hands. Lord Hunsdon informed Elizabeth that four horsemen of the Castle having been taken in a skirmish, were immediately hanged; and that those of the Castle, for revenge, after dinner, hanged five of their opponents. When fuel was scarce in the town, the garrison of the Castle threw down several houses of the adverse faction, and sold the timber at an exorbitant price. They further appointed a functionary, nick-named by the populace the Captain of the Chimneys, to take account of such houses as had been abandoned by King's men, and sell them by public auction. These stern proceedings so terrified the neutral citizens, that they fled to Leith; but instead of finding protection there they were driven back to the Capital, and threatened with the gibbet as spies. So strictly were supplies to the city prohibited that the country people who attempted to smuggle in provisions were barbarously put to death. Two men and one woman, from Wester Edmonstoune, were hanged for bringing leeks and salt to Edinburgh. Lethington, writing to Queen Mary, told her that when poor women hazarded, during the night, to bring in some victuals for themselves and their poor bairns, they were hanged without mercy.

'By that way,' he said, 'they have hangit a great number of women, and some of them with bairn, and parted with bairn upon the gallows, a cruelty not heard of in any country.' If both parties displayed the same vindictive spirit in the commission of these outrages, the voice of the people by whom 'this form of dealing was called the Douglas wars,' proclaimed the guilt of Morton as the originator of them.

That Grange and his friends were not responsible for continuing the disastrous struggle, even the English agents admitted. Lord Hunsdon, writing to Burghley, about the end of April, confessed that it passed his capacity any more to deal with the parties in Scotland. 'The Castle side,' he said, 'require surety of their lives, lands, goods, and honours, where they have reason; and the keeping of the Castle, because they would be loath to put themselves into their new reconciled friends' hands until they see some proof how they and their friends will be dealt with. On the King's side, their malice is so deadly against some of the Castle as they have more respect to be revenged than regard to the Commonwealth; others are so resolved to keep such offices, spoils, and authority as they possess by these troubles, that they will never agree to any composition by treaty; the meaner sort who live upon entertainment and such spoils as now and then they can get, and live uncontrolled of any whatsoever they do, cannot abide to hear of peace.'

For the next three months negotiations still dragged on. Neither threats nor persuasions could induce Kirkcaldy to consent to the one condition without which his opponents were determined that there should be no peace—the surrender of the Castle. In an evil hour for themselves however, he and Lethington so far yielded to the representations and solicitations of the English Court as to agree to a truce. The conditions were that it should last for two months from the 30th of July; that, during that time there should be a meeting of the noblemen of the Kingdom to treat for peace; and that, if they should not agree, they should refer the difference between them to the arbitration of the King of France and Queen of England, promising upon their honour to accept all the conditions their Majesties should propose to them. During the truce all the subjects of the realm should be at liberty freely to traffic, haunt, or converse together unmolested. The town of Edinburgh was to be set at liberty the same as it was when the late Regent quitted it on the 27th of January 1570; and the Castle to be kept with no greater garrison than it had at that date.

On the 11th of the following month Grange and Lethington had already ground for complaint that, contrary to promise, 'the town was still guarded and garrisoned as a town of war.' A few days later they drew up a formal protest in which they stated that the Capital was occupied by companies of soldiers and townsmen, who kept watch and ward day and night, and continually used the Kirk and Tolbooth as guard-houses. Leith also, they said, was guarded as in time of war, in contravention of the abstinence.

Men-at-arms were lodged upon the poor, to be fed at their expense; and in many cases the inhabitants were forbidden to enter their own houses, which had been taken possession of by the soldiery.

In the beginning of September, a new agent, Killegrew, was dispatched to Scotland for the ostensible purpose of effecting a compromise between the two parties, but in reality with a view to arranging with Morton for the secret execution of Queen Mary. All that his intervention achieved was the prolongation of the truce till the 1st of January. The result of his secret mission, however, was to secure the complicity of Mar and Morton in Elizabeth's scheme for the destruction of her rival, on condition that they should receive help from England for the subjugation of the Castilians, at the expiration of the truce.

When Killegrew arrived in Scotland, the Earl of Mar was lying ill at Tantallon Castle, and it was there the English ambassador had his first interview with him. He recovered sufficiently to be removed to Stirling. On the 27th of October, it was reported to Burghley that he had been bled, and was 'somewhat amended.' The very next day, however, he died, with a suddenness that gave rise to a suspicion of poison. Rather less than a month later, Morton was chosen to succeed him.

The day that the new Regent was elected, there occurred another important event, which was destined to exercise great influence on Kirkcaldy's fate. On that same 24th of November, John Knox died in Edinburgh, to which he had returned shortly before in a sinking condition. As he lay on his death-bed he desired his friend, David Lindsay, the minister of Leith, to take a message from him to the Laird of Grange. "'Go, I pray you,' he said, 'and tell him that I have sent you to him yet once to warn him; and bid him, in the name of God, leave that evil cause, and give over that Castle. If not, he shall be brought down over the walls of it with shame, and hang against the sun. So God hath assured me.' Mr David thought the message hard, yet went to the Castle, and meeteth first with Sir Robert Melville walking on the wall, and told him what was his errand; who, as he thought, was much moved with the matter. Thereafter he communed with the Captain, whom he thought also somewhat moved. But he went from him in to Secretary Lethington, with whom, when he had conferred a little, he came out to Mr David again, and said, 'Go, tell Mr Knox he is but a drytting prophet.' Mr David returned to Mr Knox and reported how he had discharged his commission; but that it was not well

accepted of the Captain after he had conferred with the Secretary. 'Well,' said Mr Knox, 'I have been earnest with my God anent the two men. For the one, I am sorry that so shall befall him, yet God assureth me that there is mercy for his soul. For the other, I have no warrant that ever he shall be well.' Mr David thought the speech hard, yet laid it up in his mind till Mr Knox was at rest with God, and found the truth which he had spoken within a few days after."

When the last day of the truce arrived, no step towards the pacification of the Kingdom had been taken. The King's party continued to make demands which the Castilians, hopeful of help from the King of France, absolutely refused to entertain, and the resumption of hostilities was inevitable. On the 1st of January, at six o'clock in the morning, Kirkcaldy 'warned all men to take heed to themselves, by a shot of a piece out of the Castle.' A little later in the morning, 'the war began by shot of arquebuss, but did no harm.' Next day the Castilians fired eight rounds at the steeple of St Giles's. No one was hurt in the church itself, but some shot that missed it, having broken down the neighbouring chimneys, one poor man was killed and two were wounded by their fall. If Killegrew's reports to Burghley are to be believed, either the Castle gunners must have been poor marksmen, or Grange must at first have instructed them to discharge their artillery rather in the hope of frightening the citizens than for the purpose of causing them serious loss or injury. One despatch states that on the 16th of January they fired eighty-seven cannon and culverin shot at the town, 'but did no more harm but killed one dog going to the Regent's house.' Men, women, and children, the writer asserts, walked quietly in the streets, as though there were no shot; and even went to the church, which had been fenced in with a rampart of turf, faggots, and other stuff. One of the chroniclers, on the other hand, presents a wholly different picture. 'None,' he says, 'might walk safely on the streets of Edinburgh for shooting out of the Castle.' The truth may not improbably be that the gunners could fire effectively enough when it was thought there was occasion for it.

Before the end of the first month the besieged were already beginning to suffer from want of water. On the 25th, Killegrew informed Burghley that they had found it necessary to get their supply by sallying out of a postern beside St Cuthbert's Church and drawing it from St Margaret's well, hard by. The besiegers, noticing this, poisoned the well with white arsenic and new lime stones, and filled it up with dead carrion. The garrison then

devised a plan for drawing water out of a ditch near the Castle; but before it could be put into execution, the Regent was informed of it by a deserter, and drained the ditch. In the same communication, Killegrew stated that the surveyor of Berwick and Mr Fleming, the master-gunner, had been with the besiegers for the last week, and were helping Morton to lay out the trenches, of which the works were progressing apace.

It was not to open warfare alone that Kirkcaldy's enemies trusted to force him into subjection. Even before the resumption of hostilities, Morton had begun negotiations with the Queen's Lords in other parts of the country. One after another, the Captain's former associates fell away from him. Sir James Balfour was the first, Argyle, Huntly, Chastelherault, and the Hamiltons followed; and their submission made it hopeless and useless for the lesser men to stand out alone. By the beginning of April, the Privy Council was able to announce that 'good peace was restored over all the country, the Castle of Edinburgh excepted.'

From another quarter too, there fell an unexpected blow. Through the treachery of his own wife, James Kirkcaldy, who had hitherto successfully acted as his brother's agent with the Court of France, was captured, together with a considerable sum of money, which Mary had supplied from her dowry, and on which the Castilians were depending. Within the Castle, Maitland was as firm and uncompromising as the Governor himself; indeed, his enemies attributed the obstinate resistance of the soldier to the 'enchantment' cast over him by the statesman. But though the Secretary's mental vigour was undiminished, his bodily health was so shattered that, when it was intended to discharge the heavy ordnance, he had to be carried down into the low vault of 'David's Tower,' as he could not 'abide the shot.'

For all this, there was no wavering on the part of Kirkcaldy. He felt the fullest confidence as to his ability to hold out, so long as he had Morton alone to deal with; and he believed that fear of irritating the French Court, and unwillingness to incur the heavy expenses of sending a siege train to Scotland might yet deter Elizabeth from lending active assistance to the Regent. In spite of the besiegers' utmost efforts to prevent him, he continued the work of fortifying the Castle with earth, stone, and timber; and indeed, in his determination to 'give the Earl of Morton and all his men of war enough to do to wait upon him,' he omitted nothing that experience could suggest or courage carry out, to add to the natural strength of the fortress.

Unfortunately for the Captain, the six or seven score fighting men that made up his garrison were not all animated with the same spirit. Not one of them had ever stood a siege before, and the hardships which they had to undergo were beginning to tell on them both morally and physically. Obligated, with but little intermission, to fight their guns by day, and by night to repair the damage done to their outworks, and having to subsist on the one pint of water and the scant rations of salt-beef that Lady Kirkcaldy distributed to them daily, 'they were all ill-like in the face with over-working or watching.' They were beginning to feel too that there was no remedy or recompense to be looked for at Grange's hands; and some of them, indeed, were already anxious to make terms for themselves. As the Captain's increasing watchfulness left them no opportunity of communicating directly with the enemy, they cast a letter enclosed in a glove over the walls, trusting to the finder to take it to those for whom it was intended. It contained a request that, if there were any hope of mercy for the garrison, a certain sign should be made in a certain place, and they would come forth. On the part of Morton, nothing was left undone to foster this spirit of mutiny; and his secret agents were not only authorised to promise a free pardon in his name, to such as were already planning to desert from the Castle, but also to bribe the others, by distributing two thousand crowns amongst them.

The discontent that was spreading amongst his men did not escape the Captain's vigilance. Calling them together, he asked if any amongst them wished to abandon the cause. Lord Home's resolute reply, that he would serve as a private soldier, both by day and night, 'stopped the mouths of the meaner sort,' though, according to Killegrew, they meant to make a very different answer, and though many were anxious to come away, if only they might well get forth.

In the meantime, the negotiations which had been dragging on between the Regent and the English Court, had effected a definite result. On the 13th of April, a proclamation issued in the name of King James, announced that the assistance of England had been secured, with a view to putting an end to the Civil War, and that a body of English troops would soon arrive to reinforce the besieging army. Twelve days later, an English contingent, under Sir William Drury, arrived in Edinburgh, and a final summons was sent to Sir William Kirkcaldy of Grange, and the other holders and retainers of the Castle of Edinburgh, to surrender it, with the artillery, munitions, and

household stuff; and to remove, devoid, and rid themselves, their wives and servants forth of it, within six hours. Being intended for the wavering soldiers, and not for their resolute leader, this summons was not delivered to the Governor in writing, but was publicly proclaimed by a herald. To drown his voice Kirkcaldy ordered his drums to beat; and the only reply he vouchsafed to make was, that he wist not what the messenger had declared.

The ordnance sent from England was disembarked at Leith, on the 26th of April. Next day, besides running up the Scottish Queen's standard, the Governor of the Castle hoisted 'a banner of red colour, denouncing war and defiance, upon the chief tower of the Castle called King David's Tower.' Including 'both tag and rag,' there were at that moment one hundred and ninety-two persons within the Castle. Forty-two of them were women, and thirteen were boys. That left a hundred and thirty men, not all soldiers, besides the Governor himself; and of these according to Killegrew's information, eighteen of the best would fain have been out.

It took much longer than had been anticipated to get the ordnance into position. By the 5th of May, of twenty-four pieces of battery and four mortars, there were but six planted; and the month was half through before 'the artillery of England was placed about the Castle of Edinburgh in this manner. On the north side of Mr John Thornton's lodging on the Castle Hill lay the cannon royal, and two other cannons; on the crofts of the Grey Friars, lay three great culverin; at the Scots crofts lay six great culverin; above the west side of St Cuthbert's Kirk lay two Scottish iron pieces; at the north side two Scots great culverins, and my Lord Argyle's cannon, with four pott pieces; at the lang gait on the east side of the said pott pieces lay three small pieces, with strong and deep trenches in all parts.' At length, on Sunday, the 17th of May, at one in the afternoon, 'some of the pieces began to speak such language that it made them in the Castle think more of God than they did before.' When the first 'tier' of ordnance was discharged, the women within the walls uttered a great and lamentable cry, 'terming the day and hour black.' 'The soldiers, however,' says Drury, 'showed themselves in no small companies here and there, but especially they showed many on the top of St David's Tower, with great pride displaying two ensigns, and shooting at every advantage they saw.' To what good effect the Castilians plied their guns may be learnt from Birrell's Diary. 'Ther wes,' he says, 'a very grate slaughter amongst the English canoniers, sundries of them

having ther legges and armes torne from their bodies in the aire by the viholence of the grape shot.'

On the 21st of May the English gunners began battering St David's Tower; and two days later a large portion of it came crushing down. The 26th saw the capture of an important position called the 'Spur.' This disaster, combined with the growing dissatisfaction of his men, who complained that Lady Grange scanted their victuals, that were scant enough already, at length obliged the Governor to beat a parley. A two days' truce was granted, and negotiations were opened with a view to the surrender of the Castle. The three thousand great shot, which, according to Drury's computation, had been fired at the fortress, had wrought such havoc that no practicable means of exit was left. In order to meet Drury, Grange, Pitarrow, and Robert Melville had to be let down by a rope over the wall.

The conditions demanded by the besieged were that they should have surety for the lives and livings of all that were within the Castle, that Lethington and Lord Home, because of particular quarrels might go into England, and that Grange should remain in Scotland, with a licence to depart the realm if he found himself ill-used. Morton was quite willing to spare the soldiers, and he took special care that they should be informed of it; but he insisted that the surrender should be unconditional as regarded Grange, Lethington, and nine others, including the two goldsmiths who had coined money for the use of the Castilians. On hearing this, Kirkcaldy went back to the Castle determined to hold out to the last. But the men were now in open mutiny. They declared their determination of hanging Maitland from the battlements if he did not urge Grange to surrender, and of handing the Governor himself to Morton, if he still refused to yield. There was no alternative. On the 29th of May Sir William gave himself up to Drury who, in recognition of the courage which he had displayed, allowed him to leave the Castle with his arms. The citizens had suffered too much at his hands to entertain any generous feeling towards him, and as he and his companions were led through the crowd to the lodgings of Drury, jeers and insults were heaped upon him. The balladist Semple has described the scene:—

'Thair wes compleit the prophecie of Knox:
Doun fra that Crag Kirkcaldy sall reteir,
With schame and sclander lyke ane hundit fox.'

With gild^[6] of pepile sa thay brocht thame down,
As birdis but plumis, spulizeit of the nest:
Part cryde: 'quhair is he? lat vs se the loun;
Go to and staen him; lat him tak na rest.'

Quhen thay yt buir him saw thame selfis opprest,
Thay cryit for succour for to saue thair lyuis:
The Generallis lugeing, thair thay thocht it best,
Thay led him in, thay war sa red^[7] for wyuis.'

For three days Grange was allowed to go about freely, rather as a guest than a captive, but at the end of that time he was treated as a prisoner.

One of Morton's first cares, after the surrender of Edinburgh Castle, was to demand that the jewels which Queen Mary was known to have left there when she fled from her capital, should be delivered up to him. His greed, however, was doomed to disappointment. The greater part of the treasure upon which he was so characteristically anxious to lay hands, had already been disposed of. Indeed, the Queen's diamonds had been the chief source of the garrison's credit during the three years that the Castle was held for her. In 1570 several objects of value had been sent by Kirkcaldy to be sold in London. Elizabeth, however, had got information, and not only stopped the sale, but ordered the articles to be detained. The Governor met with better success in France; and when, in the following spring, his brother arrived in Leith with munitions and stores, it was commonly reported that they had been purchased with the price of some of Mary's diamonds.

The next year, another parcel of jewels was said to have been sold to a secret agent of Queen Elizabeth's for two thousand five hundred pounds. At various other times, objects of value had been given in pledge to merchants and others for moneys advanced to supply the needs of the beleaguered garrison. There was consequently but little left at the time of the surrender; but to prevent even that from falling into Morton's hands, some of it had been hidden in a crevice of the Castle rock. A confession having been extracted from Morsman to the effect that at the last moment he had made over certain valuables to Kirkcaldy, the Governor was called upon to restore them. He replied that he had, indeed, got some gear in an evil favoured clout, but did not see what it was, and had thrown it into an open coffer in his room. He protested that he had taken nothing out of the Castle but the clothes on his back and four crowns in his purse.

From the moment that Grange and Lethington surrendered as prisoners to the English, Morton resolved that their lives should pay the penalty of their open defiance of his authority, and he did not hesitate to declare that he thought them 'fitter for God than for this world, for sundry considerations.' He accordingly demanded that they should be given over to him; and after some hesitation real or pretended, Elizabeth granted his request. Whilst she still seemed to be wavering the two prisoners wrote the following appeal to Burghley:—

'MY LORD,—The malice of our enemies is the more increased against us, that they have seen us rendered in the Queen's Majesty's will, and now to seek refuge at her highness's hands. And, therefore, we doubt not but they will go about by all means possible to procure mischief; yea, that their cruel minds shall lead them to that impudency to crave our bloods at her Majesty's hands. But whatsoever their malice be, we cannot fear that it shall take success; knowing with how gracious a Princess we have to do, which hath given so many good proofs to the world of her clemency and mild nature, that we cannot mistrust that the first example of the contrary shall be shewn upon us. We take this to be her very natural, *Parcere subjectis, et debellare superbos*.

'We have rendered ourselves to her Majesty, which to our own countrymen we would never have done, for no extremity that might have come. We trust her Majesty will not put us out of her hands to make any others, especially our mortal enemy, our masters. If it will please her Majesty to extend her most gracious clemency towards us, she may be as assured to have us as perpetually at her devotion as any of this nation, yea, as any subject of her own; for now with honour we may oblige ourselves to her Majesty farther than before we might, and her Majesty's benefit will bind us perpetually. In the case we are in, we must confess we are of small value; yet may her Majesty put us in ease, that perhaps hereafter we will be able to serve her Majesty's turn, which occasion being offered, assuredly there shall be no inlack of good-will. Your Lordship knoweth already what our request is; we pray your Lordship to further it. There was never time wherein your Lordship's friendship might stand us in such stead. As we have oftentimes heretofore tasted thereof, so we humbly pray you let it not inlack us now, in time of this our great misery, when we have more need than ever we had. Whatsoever our deservings have been, forget not your own good natural. If, by your Lordship's mediation, her Majesty conserve us, your Lordship shall have us perpetually bound to do you service.

'Let not the misreports of our enemies prevail against us. When we are in her Majesty's hands she may make us what pleaseth her.

'From Edinburgh, the 1st June 1573.'

The petition was unheeded. A few days later Drury was instructed to hand over his prisoners to the Regent. In the meantime Maitland had died,—it is difficult to determine whether it was from natural causes or 'after the old Roman fashion, to prevent his coming to the shambles'—and Grange was left to bear the brunt of Morton's revenge.

On the 3rd of August, Sir William Kirkcaldy and his brother James, together with Morsman and Cockie, the two goldsmiths who had coined money in the Queen's name, were brought to trial and condemned to death. Between the passing of the sentence and its execution in the afternoon of the same day, a final and frantic effort was made to save the Laird of Grange. Five score gentlemen,—kinsmen, friends, and well-wishers,—the least of them having heritage worth five hundred marks Scots a year, offered to become servants, themselves and their offspring, perpetually, to the houses of Angus and Morton, by giving their bond of man-rent; and, in addition to that, to pay twenty pounds annually, for more thralldom. They further promised to hand over twenty thousand pounds to the Regent, before the following Michaelmas, and to restore twenty thousand pounds of the Queen's jewels that were in sundry hands. But Morton was under the influence of a power greater than even his own avarice. The offers, he admitted to Burghley, were as large as could possibly have been made; yet, he added, 'considering what has been, and is, daily spoken by the preachers, that God's plague will not cease till the land be purged of blood, and having regard that such as are interested by the death of their friends, the destruction of their houses, and the away-taking of their goods, could not be satisfied by any offer made to me in particular, I deliberated to let justice proceed.'

It was through David Lindsay, the minister of Leith, who visited Kirkcaldy after the trial, that this last appeal for mercy was made. When he returned with a stern refusal the condemned man said to him: 'Mr David, for our old friendship and for Christ's sake leave me not.' A little later, when he saw the scaffold prepared at the Cross, the day fair and the sun shining brightly, so marked a change came over him that Lindsay, noticing it, inquired what affected him. 'Faith, Mr David,' replied he, 'I perceive well now that Mr Knox was the true servant of God, and that his threatenings are accomplished.' He then desired Lindsay to repeat Knox's words. The minister did so, adding that Knox had told him that he had been earnest with God for Grange; that he was sorry for what should befall his body for the love he bore him; but that he was assured there was mercy for his soul. Kirkcaldy seemed much comforted and encouraged by this. As the fatal hour drew near he begged Lindsay to accompany him to the scaffold: 'I hope in God, that after men shall think I am passed and gone, I shall give

you a token of the assurance of that mercy to my soul according to the speech of that man of God.'

In the afternoon the Laird of Grange, and Morsman, who was to be executed with him—James Kirkcaldy and Cockie were to be hanged later in the day—were drawn backwards from their prison to the gibbet. It was about four o'clock, 'the sun being west, about the north-west corner of the steeple, when Sir William was thrust off the ladder. As he was hanging, his face was set toward the east; but within a prettie space turned about to the west against the sun, and so remained; at which time Mr David marked him, when all supposed he was dead, to lift up his hands which were bound before him, and to lay them down again softlie; which moved him with exclamation to glorify God before all the people.'

Of the man who thus ended his eventful life, his contemporary Melville has written: 'He was humble, gentle, and meek, like a lamb in the house, but like a lion in the fields. He was a lusty, strong, and well-proportioned personage, hardy, and of a magnanimous courage, secret and prudent in all his enterprises, so that never one that he made or devised misgave, where he was present himself. When he was victorious he was very merciful, and naturally liberal, an enemy to greediness and ambition, and a friend to all men in adversity. He fell frequently in trouble in protecting innocent men from such as would oppress them, so that these his worthy qualifications were also partly causes and means of his wreck; for they promoted him so, in the opinion of many, that some loved him for his religion, uprightness, and manliness; others, again, depended upon him for his good fortune and apparent promotion, whereby divers of them hoped to be advanced and rewarded, supposing that offices and honours could not fail to fall to him. All which he wanted through his own default; for he had fled from avarice, and abhorred ambition, and refused sundry great offices even to be Regent, which were in his offer as well as other great benefices and pensions. Thus wanting place and subsistence to reward he was soon abandoned by his greedy and ambitious defenders: for when they saw him at a strait, they drew to others, whom they perceived to aim at more profitable marks. On the other hand, he was as much envied by those who were of a vile and unworthy nature, of whom many have made tragical ends for their too great avarice and ambition, as shortly after did the Earl of Morton. This gallant gentleman perished for being too little ambitious and greedy.'

Nothing that has been recorded in these pages contradicts Melville's eulogy. And posterity may be content to adopt his estimate of the character of an honourable man, a brave soldier, and a sincere patriot.

THE END.

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FOOTNOTES:

[1] Sent back.

[2] If any troubles should arise.

[3] Worthy.

[4] Without equal in this kingdom.

[5]
For I have men and meat enough,
They know I am a fighter tough,
And will be right soon grieved;
When they have lost as many teeth,
As they did at the siege of Leith,
They will be fain to leave it.
Then who, I pray you, shall be bound
Their losses to make good?
Or give such composition
As they got then of France?
Thus blinded, beguiled,
They will but get a cheat;
Come they here, these two years
They shall not miss their thrashing.

[6] clamour.

[7] afraid.

TRANSCRIBER'S NOTE:

—Obvious print and punctuation errors were corrected.

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GRANGE ***

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